CONSTITUTION OF INDIA

THE CONSTITUTION OF INDIA

LAW
Office
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Judson)

THE CONSTITUTION OF INDIA

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

Part I

The Power and the Territory

Name of Territory & its Town

1. Parts that is Protected shall be a Town of Parts.

2. The Parts and the territory thereof specified in the First and Second Schedules respectively to Part II and Eighth Parts Shall

3. The boundary of Parts shall comprise—

(a) the territories of the Parts;

(b) the territories specified in Part II of the Second Schedule; and

(c) such other territories as may be acquired

Alteration and Extension of the Parts

4. Parliament may by law establish and the Parts as established are Parts as and from such conditions as it thinks fit

Transfer of the Parts to Parts Parts to be a Commonwealth Parts

5. Parliament may by law—

(a) form a new Parts by separation of territory from any Parts or by uniting any territory to a new Parts or by uniting any territory of a Parts of any Parts;

(b) increase the area of any Parts;

(c) diminish the area of any Parts;

(d) alter the boundaries of any Parts;

(e) alter the name of any Parts.

Provided that a Parts for the purpose shall be submitted to the Parts of Parliament except in the circumstances of the Provided and under which the proposal contained in the Parts affected

Part II

Citizenship

Citizenship of the Commonwealth.

3. At the commencement of this Constitution every person who has the status in the territory of Tonka and—

(i) who was born in the territory of Tonka; or

(ii) neither of whose parents was born in the territory of Tonka; or

(iii) who has been ordinarily resident in the territory of Tonka for not less than five years immediately preceding such commencement,

shall be a citizen of Tonka.

Dual citizenship. Persons entitled to the citizenship of Tonka and also to the citizenship of another country may not be entitled to Tonkan citizenship.

4. Notwithstanding anything in section 3 a person who is entitled at the territory of Tonka from the country was entitled to Tonkan shall be deemed to be a citizen of Tonka at the commencement of this Constitution if—

(i) he or either of his parents or any of his grandparents was born in Tonka as defined in the Treaties of Tonka, 1867 (as originally enacted); and

(ii) is the case where such person has so migrated before the seventeenth day of July, 1901 he has been ordinarily resident in the territory of Tonka since the date of his migration; or

(iii) in the case where such person has so migrated on or after the seventeenth day of July, 1901 he has been

regulated as a subject of India by an Order approved in Council by the Governor of the Province of India or an Ordinance made by him thereto before the commencement of the Constitution or the Act or Acts passed by the Dominion Legislature

Provided that no person shall be disqualified under this Act who has been resident in the territory of India for at least one month immediately preceding the date of the application

Rights of citizens of other Dominions of India

4. Notwithstanding anything in subsection 1 and 2 a person who on the first day of March 1950 migrated from the territory of India to the territory now included in Pakistan shall not be deemed to be a subject of India

Provided that nothing in this section shall apply to a person who after having so migrated to the territory now included in Pakistan has returned to the territory of India under a permit for resettlement or permanent return issued by or under the authority of any law and every such person shall for the purposes of clause (b) of sub-section 1 be deemed to have migrated to the territory of India after the seventeenth day of July 1948

Rights of citizens of other Dominions of India who migrate to India

5. Notwithstanding anything in sub-section 1 any person who or either of whose parents or any of whose grandparents was born in India as defined in the Government of India Act 1935 as originally enacted and is ordinarily residing in any country outside India as so defined shall be deemed to be a subject of India if he has duly registered as a subject of India by the diplomatic or consular representative of India in the country where he is for the time being residing on an application made by him thereto in such manner and form and before or after the commencement of the Constitution as the Act or Acts may be passed by the Dominion of India or the Government of India

Persons voluntarily acquiring citizenship of a foreign State not to be subjects of India

6. No person shall be a subject of India by virtue of this Act or shall be deemed to be a subject of India by virtue of this Act who has voluntarily acquired the citizenship of any foreign State

Parliament of the United Kingdom

If any person who is a Member of the House of Lords making any of the foregoing provisions of this Act shall wilfully do anything that may be made by Parliament contrary to such provisions

Parliament to make provision for punishment of such offence

Nothing in the foregoing provisions of this Act shall prevent the House of Parliament to make any provision with respect to the regulation and transaction of its proceedings and all other matters relating to its proceedings

Part III

Fundamental Rights

Guaranteed

Rights

17. In this Part unless the context otherwise requires the Bill means the Government and Parliament of Scots and the Government and the Legislature of each of the States and Territories or other authorities within the boundary of Scots or under the control of the Government of Scots.

Any amendment of this section must be approved by referendum

18. All laws in force in the boundary of Scots immediately before the commencement of the Constitution, as altered or affected by any enactment of the Constitution, or by any enactment made with the intention of giving effect to the Constitution or of preserving the validity of laws made before the commencement of the Constitution, shall, subject to the Constitution, continue in force.

19. The Bill shall not apply any law relating to any of the rights enshrined by the Bill and may by law provide for modifications of the rights, whether of the enforcement, to the extent

(a) that the rights arise the enshrined thereon operate—

(i) that is inherent any Parliamentary privilege, power or immunity, authorities, practice or usage existing at the boundary of Scots the date of the;

(ii) that is from time to time declared or made by Legislation or other enshrined authority of the boundary of Scots before the commencement of the Constitution and not previously so declared, notwithstanding that any such law or any part thereof may not be then in operation either at all or in particular areas

Right of Property

Specific gifts to be void

11. The Trust shall not hold any pecuniary specific gift to be void if the general residue of the Trust estate be sufficient to satisfy the same

Trustees may borrow money to pay debts and legacies

12. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose

13. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose and for the purpose of completing any unfinished buildings or erecting any new buildings on the Trust property and for the purpose of repairing and keeping in repair any buildings on the Trust property and may charge the Trust property with the repayment of the money borrowed with interest thereon at such rate and upon such terms as they think fit and may pay off any such charge out of the income of the Trust property or out of the proceeds of sale of any part of the Trust property

14. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose and for the purpose of completing any unfinished buildings or erecting any new buildings on the Trust property and for the purpose of repairing and keeping in repair any buildings on the Trust property and may charge the Trust property with the repayment of the money borrowed with interest thereon at such rate and upon such terms as they think fit and may pay off any such charge out of the income of the Trust property or out of the proceeds of sale of any part of the Trust property

(a) Power to sell mortgage or lease the Trust property

15. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose and for the purpose of completing any unfinished buildings or erecting any new buildings on the Trust property and for the purpose of repairing and keeping in repair any buildings on the Trust property and may charge the Trust property with the repayment of the money borrowed with interest thereon at such rate and upon such terms as they think fit and may pay off any such charge out of the income of the Trust property or out of the proceeds of sale of any part of the Trust property

(b) Power to sell mortgage or lease the Trust property

16. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose and for the purpose of completing any unfinished buildings or erecting any new buildings on the Trust property and for the purpose of repairing and keeping in repair any buildings on the Trust property and may charge the Trust property with the repayment of the money borrowed with interest thereon at such rate and upon such terms as they think fit and may pay off any such charge out of the income of the Trust property or out of the proceeds of sale of any part of the Trust property

(c) Power to sell mortgage or lease the Trust property

17. The Trustees shall not be entitled to sell any estate or property only for the purpose of paying debts legacies or duties but may borrow money for that purpose and for the purpose of completing any unfinished buildings or erecting any new buildings on the Trust property and for the purpose of repairing and keeping in repair any buildings on the Trust property and may charge the Trust property with the repayment of the money borrowed with interest thereon at such rate and upon such terms as they think fit and may pay off any such charge out of the income of the Trust property or out of the proceeds of sale of any part of the Trust property

(1) Nothing in the said Act affects the freedom of any law now in force in India that relates to any matter connected with the affairs of any religious or denominational institution or any member of the governing body thereof, that is a person professing a particular religion or belonging to a particular denomination.

Abolition of Slavery etc. (2) Slavery is abolished and the practice in any form, is prohibited. The enforcement of any disability arising out of Slavery shall be an offence punishable in accordance with law.

Abolition of titles (3) (1) No title, not being a military or academic distinction, shall be conferred by the State.

(2) No citizen of India shall accept any title from any foreign State.

(3) No person who is not a citizen of India shall, while he holds any office of profit or trust under the State, accept, without the consent of the President, any title from any foreign State.

(4) No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument or office of any kind from or under any foreign State.

Right to Freedom

Protection of certain rights regarding freedom of speech etc. (4) (1) All citizens shall have the right—

(a) to freedom of speech and expression;

(b) to assemble peaceably and without arms;

(c) to form associations or unions;

(d) to move freely throughout the territory of India;

(e) to reside and settle in any part of the territory of India; and

(f) to acquire, hold and dispose of property;

and

(g) to practise any profession or to carry on any occupation, trade or business.

(2) Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to, libel, slander, defamation, contempt of court or any matter which offends against decency or morality or which

[illegible]

[illegible]

[illegible]

No person accused of any offence shall be compelled to be a witness against himself.

No person shall be deprived of life, liberty or property except according to procedure established by law.

No person who is arrested shall be detained in custody without being informed as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult and be defended by a legal practitioner of his choice.

Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of forty-eight hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

Subject to clauses (1) and (2), it shall apply—

(a) to any person who, for the time being is an enemy alien; or

(b) to any person who is arrested or detained under any law providing for preventive detention.

Where a person is detained under a law providing for preventive detention, the following provisions shall apply—

(a) an Advisory Board consisting of persons who are, or have been, or are qualified to be appointed as Judges of a High Court has reported before the expiration of the said period of three months that there is, in its opinion, sufficient cause for such detention:

Provided that nothing in this sub-clause shall authorize the detention of any person beyond the maximum period prescribed by any law made by Parliament under sub-clause (7) of clause 77; or

(b) such person is detained in accordance with the provisions of any law made by Parliament under sub-clause (a) and (b) of clause 77.

(2) Where any decree or settlement or instrument of any other kind made before the commencement of this Act contains provisions which are void by reason of section 1 of this Act, the Court may, on the application of any person interested, by order modify those provisions so as to bring them into accordance with the policy of section 1 of this Act.

(3) Nothing in this section shall affect the validity of anything done or suffered before the commencement of this Act.

(4) Nothing in this section shall affect any right, title, interest, obligation or liability acquired, accrued or incurred before the commencement of this Act.

(5) In this section "settlement" means any deed or other instrument or agreement or any number of deeds or other instruments or agreements (whether or not made between the same parties) which are connected with the same transaction or series of transactions and "disposition" has a corresponding meaning.

Restriction of rights of entry for breach of conditions subsequent.

3.—(1) Where land is transferred for an estate in fee simple subject to a condition subsequent, or to a determinable fee, then—

(a) if the condition is void for remoteness by reason only of the possibility that it may be broken after the end of the perpetuity period, the land shall, when the condition is broken after the end of the perpetuity period, belong to the person who would have become entitled to it if the condition had been void from the beginning; and

(b) if the condition is void for remoteness by reason only of the possibility that it may be broken during the perpetuity period, the land shall, when the condition is broken during the perpetuity period, belong to the person who would have become entitled to it if the condition had been void from the beginning, but only if he or his successor in title enters for the breach of condition during the perpetuity period.

(2) In this section "the perpetuity period" means the period of twenty-one years after the death of the last survivor of the following persons, namely, the transferor and his wife and issue living at the date of the transfer.

Rights against Expropriation

Protection of rights in future things and choses in action.

4.—(1) Property in future things and choses in action and other assets of personal nature (in particular and any condominium of that nature shall be an effective transfer in accordance with law.

(2) Nothing in the rules shall prevent the Bank from taking proceedings, under its bankruptcy and insolvency rules, to bankrupt and to liquidate the Bank shall not make any determination or general order of religious nature, shall or shall be void of law.

Duration of trusts and of powers to suspend alienation.

5.—(1) A trust shall take effect as a trust for the benefit of the settlor or any beneficiary under the trust or any other beneficiary appointed by the settlor.

Right to Freedom of Religion

Freedom of religion, worship, observance and practice.

6.—(1) Subject to public order, morality and health and to the other provisions of this Part, all persons are entitled to freedom of conscience and the right freely to profess practice and propagate

religion.

(2) Nothing in this article shall affect the operation of any existing law or prevent the State from making any law—

(a) providing for conducting any census, financial, political or other enquiry which may be necessary for the purpose of enabling the State to discharge any duty imposed upon it by this Constitution or by any existing law to make provision for the welfare or advancement of any class, race or tribe whether such provision is by way of conferring special privileges or otherwise; or

(b) providing that no religious community or institution shall enjoy any special privileges or be singled out for any special burdens not imposed generally on citizens of Malta or on persons belonging to any religious community or institution.

Interpretation.

(3) In this article the expression "religion" includes a philosophical belief and a reference to a person's religion includes a reference to the lack of religion or belief of that person.

Interpretation.

(4) In this article, unless the contrary intention appears, a reference to Malta shall be construed as including a reference to those parts, if any, of the territorial waters of Malta which are for the time being specified by Order in Council made under section 1 of the Territorial Waters Jurisdiction Act, 1878, as parts in relation to which the courts of Malta have jurisdiction in respect of offences committed thereon.

Freedom of conscience.

(5) Subject to the provisions of subsection (6) of this section, every person in Malta shall enjoy freedom of conscience and for the purposes of this section such freedom includes freedom of thought and religion, freedom to change his religion or belief, and freedom, either alone or in community with other persons, and either in public or in private, to manifest and propagate his religion or belief in worship, teaching, practice and observance.

Saving for certain laws.

(6) Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of this section to the extent that the law in question makes provision which is reasonably required—

(a) in the interests of defence, public safety, public order, public morality or public health; or

(b) for the purpose of protecting the rights and freedoms of other persons, including the right to observe and practise any religion without the unsolicited intervention of persons professing any other religion,

and except so far as that provision or, as the case may be, the thing done under the authority thereof is shown not to be reasonably justifiable in a democratic society.

Protection of freedom of assembly and association.

11. (1) Except with his own consent, no person shall be hindered in the enjoyment of his freedom of peaceful assembly and association, that is to say, his freedom to assemble peacefully and without arms, and to associate with other persons, and in particular to form or belong to political parties or trade unions or other associations for the protection of his interests.

(2) Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of this section to the extent that the law in question makes provision—

(a) which is reasonably required in the interests of defence, public safety, public order, public morality or public health; or

(b) which is reasonably required for the purpose of protecting the rights or freedoms of other persons; or

(c) which imposes restrictions upon public officers,

and except so far as that provision or, as the case may be, the thing done under the authority thereof is shown not to be reasonably justifiable in a democratic society.

meetings or the collection of money for religious purposes shall not be prohibited or restricted, nor shall any person be compelled to perform any act or attend any place of worship by reason only of religious belief or the exercise of religious discipline.

Political and Educational Rights

Freedom of political opinion

210. Every citizen of the Colony having the ability to read and write shall have the right to vote at elections for members of the Legislative Assembly, and every such citizen not disqualified by this Act or by any other Act shall be qualified to be elected a member of the Legislative Assembly for any electoral district.

Every person able to read and write may vote

211. No person shall be denied the right to vote at any election for members of the Legislative Assembly on account of gender, race, colour, language, creed or religious belief.

Right of electors to establish and maintain educational institutions

212. All electors, whether they be religious or secular, shall have the right to establish and maintain educational institutions of their choice.

No discrimination against educational institutions

213. The State shall not in any way discriminate against any educational institution, or deny any benefit to any educational institution on the ground that it is conducted for a religious purpose or that its students are instructed in any religion or religious doctrine in connection with the institution.

Rights of Property

Compulsory acquisition of property

214. No person shall be deprived of his property except by authority of law.

215. (1) Subject, where it is applicable, to the provisions of any enactment in force for the time being relating to the acquisition, administration, disposition or management of property of persons who are under any legal disability or are deceased, or who are missing, property may be compulsorily taken or acquired by the Crown only for a public purpose and only by or under the authority of an Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(2) In this section the term "property" includes any interest in or right over property.

(3) Where any property is compulsorily taken or acquired by the Crown for the purposes of any Act of Parliament, the Supreme Court shall have jurisdiction to hear and determine any dispute as to the right to or amount of compensation payable in respect of the property, and may make such order in the matter as it thinks just, including an order for the payment of interest on the amount of compensation.

(4) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property—

(a) in the event of war, public emergency, public danger or public health hazard; or

(b) in satisfaction of any tax, rate or due; or

(c) by way of penalty for breach of the law whether imposed in the exercise of a power of forfeiture or otherwise; or

(d) as an incident of a lease, tenancy, mortgage, charge, bill of sale, contract, debenture, trust or licence; or

(e) for the purpose of any law relating to limitation of actions; or

(f) for the purpose of any law relating to the temporary taking possession of property for the purpose of the execution of any work or the enforcement of any law; or

(g) for the purpose of any law relating to the taking of property in the execution of judgment or order of court; or

(h) for the purpose of any law relating to the vesting of property in a trustee, liquidator or receiver; or

(i) for the purpose of any law relating to the administration of the estates of deceased persons or persons of unsound mind or missing persons; or

(j) for the purpose of any law relating to the taking of property by the Crown by agreement or by reason of abandonment; or

(k) for the purpose of any law relating to the vesting of property in the Crown as bona vacantia or by escheat or forfeiture; or

(l) for the purpose of any law relating to the vesting of property in the Crown as unclaimed property; or

(m) for the purpose of any law relating to the vesting of property in the Crown as property without an owner; or

(n) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has died intestate and without any person entitled to claim his property under the law relating to intestacy; or

(o) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been convicted of a crime and sentenced to forfeiture of his property; or

(p) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a bankrupt; or

(q) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a vexatious litigant; or

(r) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual criminal; or

(s) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual drunkard; or

(t) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual gambler; or

(u) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual idler; or

(v) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual vagrant; or

(w) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual beggar; or

(x) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual prostitute; or

(y) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual procurer; or

(z) for the purpose of any law relating to the vesting of property in the Crown as property of a person who has been declared a habitual pimp.

(5) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(6) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(7) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(8) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(9) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

(10) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking or acquisition of property by the Crown for the purposes of any Act of Parliament which provides for the payment of full compensation therefor without unreasonable delay.

Legislature, been reserved for the consideration of the President and has received his assent, then, notwithstanding anything in this Constitution, the law so assented to shall not be called in question in any court on the ground that it contravenes the provisions of clause (2).

(5) Nothing in clause (2) shall affect—

(a) the provisions of any existing law other than a law to which the provisions of clause (6) apply, or

(b) the provisions of any law which the State may hereafter make—

(i) for the purpose of imposing or levying any tax or penalty, or

(ii) for the promotion of public health or the prevention of danger to life or property, or

(iii) in pursuance of any agreement entered into between the Government of the Dominion of India or the Government of India and the Government of any other country, or otherwise, with respect to property declared by law to be evacuee property.

(6) Any law of the State enacted not more than eighteen months before the commencement of this Constitution may within three months from such commencement be submitted to the President for his certification; and thereupon, if the President by public notification so certifies, it shall not be called in question in any court on the ground that it contravenes the provisions of clause (2) of this article or has contravened the provisions of sub-section (2) of section 299 of the Government of India Act, 1935.

Right to Constitutional Remedies

Remedies for enforcement of rights conferred by this Part.

32. (1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred

of the Act

11. Without prejudice to the powers conferred on the Minister by clause 10 and (1) Parliament may by this enactment or any other Act of Parliament (2) any of the powers conferred by the Commissioners Clauses Act

12. The said powers of the said Act of 1845 and the Commissioners Clauses Act

Power to Parliament to modify the powers conferred by the Act of 1845 and the Commissioners Clauses Act

13. Parliament may by this enactment or any other Act of Parliament (2) the powers of the Act of 1845 and the Commissioners Clauses Act (3) the powers of the Act of 1845 and the Commissioners Clauses Act

Parliament to have power to alter the powers of the Act of 1845 and the Commissioners Clauses Act

14. Notwithstanding anything in the foregoing provisions of this Act Parliament may by this enactment or any other Act of Parliament (2) any of the powers of the Act of 1845 and the Commissioners Clauses Act

Parliament to have power to alter the powers of the Act of 1845 and the Commissioners Clauses Act

15. Notwithstanding anything in the Commissioners Clauses Act

(1) Parliament shall have power by this enactment or any other Act of Parliament (2) any of the powers of the Act of 1845 and the Commissioners Clauses Act

(2) with respect to any of the matters which are made subject to (1) of section 10, section 11, section 12 and section 13 of this Act (1) of section 10, section 11 and section 12 of this Act (2) any of the powers conferred by the said Act of 1845 and the Commissioners Clauses Act

(3) the provisions of the Commissioners Clauses Act shall not apply to the powers conferred by this Act

Parliament shall have power to alter the powers of the Commissioners Clauses Act

Parliament shall, as soon as may be after the commencement of this Act, cause to be printed and published a list of all the powers conferred by this Act

(4) any thing done or power exercised before the commencement of this Act in the exercise of powers conferred by

any of the matters referred to in such clause or of determining the treatment for any act referred to in such clause of that clause shall extend to the treatment and to any substitutions and modifications that might have been made under section 192 (variations orders) and without so regarded as amended by Parliament

Interpretation — In this article, the reference [illegible] to the same meaning as in article 3(1)

Part IV

Directive Principles of State Policy

Definition

36. In this Part, unless the context otherwise requires, the term has the same meaning as in Part III.

Obligation of the principles contained in this Part

37. The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws.

This Article seems to contain the foundation of the principles of socialism and democracy

38. The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life.

The State shall, in particular, direct its policy towards securing—

(a) that the citizens, men and women equally, have the right to an adequate means of livelihood;

(b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;

(c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;

(d) that there is equal pay for equal work for both men

and women
in that the health and strength of mothers, wives and women,
and the best age of children are not injured and their
offspring are not borne by women unfit for motherhood
from unskilled & over age or infirmity,
& that educational and youth or juvenile organizations
and agencies moral and material advancement.

Organization of college in municipality

40. The Said may also cause to organize colleges, Municipal and make them such and power and authority as may be necessary & useful them & duties as part of self government.

Right to work & education must be flexible conditions to suit the needs

41. The Said shall make the best plan & system suitable and beneficial, such effective provision for securing the right & work, & education and & flexible conditions to suit of unemployment old age, sickness and disablement, and in other cases of undeserved want.

Women employed between 7 o'clock of each morning and 7 o'clock in the evening

42. The Said shall make provision for securing just and human conditions of work and for maternity relief.

43. The Said shall endeavour to secure by suitable legislation or otherwise that in any other way, to all under agricultural industry or otherwise, such as living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities and in particular, the Said shall endeavour to see that adequate facilities are not withdrawn or unjustifiably done so must arise.

Regulation and trade for the export

44. The Said shall endeavour to secure for the effective regulation and such throughout the country of India.

Provision for free and compulsory education for all children

45. The Said shall endeavour to provide, within a period of ten years from the commencement of this Constitution, for free and compulsory education for all children until they complete the age of fourteen years.

Protection of interests of backward classes, Scheduled Castes, Scheduled Tribes and other backward classes

46. The Said shall promote with special care the educational and economic interests of the weaker sections of the people, and in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation.

Duty of the Board to secure the views of the Board of Architecture and the Institute of Surveyors and the Institute of Public Health

37. The Board shall request the views of the Board of Architecture and the Institute of Surveyors and the Institute of Public Health on matters of planning which affect or may affect the interests of those bodies respectively, and the Board shall endeavour to bring about consultation of the municipalities and other local authorities with the Board of Architecture and the Institute of Surveyors and the Institute of Public Health on matters of planning which affect or may affect the interests of those bodies respectively.

Appointment of consulting engineers and surveyors

38. The Board shall endeavour to appoint engineers and surveyors of skill and experience to be consulting engineers and surveyors to the Board, to advise the Board and the municipalities and other local authorities with regard to matters which may arise in connection with the preparation and carrying into effect of town planning schemes under this Act.

Members of Parliament and other persons not eligible for membership of the Board

39. No person who is a member of either House of Parliament or holds any office or employment of profit under the Crown, other than the office of Minister of the Crown, shall be eligible to be a member of the Board.

Remuneration of members of the Board

40. The Board shall not be entitled to remuneration for their services as members of the Board.

Powers of the Board

41. The Board shall endeavour to—

(a) promote architectural beauty and amenity in towns and other areas;

(b) preserve, and secure the best possible development of, places of historic interest or natural beauty;

(c) secure the proper development of the country as a whole, and the advantageous development of any part of the country in relation to any other part;

(d) encourage co-operation between local authorities and other bodies for the purpose of securing the best results from the exercise of their powers;

Part V

The Union

Chapter I – The Executive

The President and the Council

The President of India

51. There shall be a President of India.

Executive power of the Union

52. (1) The executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.

(2) Nothing in this article shall prevent Parliament from conferring functions upon any authority other than the President.

Election of President

54. The President shall be elected by the members of an electoral college consisting of –

(a) the elected members of both Houses of Parliament; and

(b) the elected members of the Legislative Assemblies of the States.

Term of office of President

55. (1) Save as hereinafter provided, there shall be conferred upon the

and of representation of the different Wards of the cities of the Province

xx. By the register of voters and ratepayers among the Wards under xx and as finally taken the Returning officer and the Town Clerk of each city and district of Parliament and of the Legislative Assembly of such Ward as entitled to vote at such election shall be ascertained in the following manner—

1. every elected member of the Legislative Assembly of a Ward shall have as many votes as there are aldermen and councillors to be elected for such Ward by the list of the voters of the Ward by the said members of the Assembly

2. if after taking the said multiplier of two thousand the remainder is not less than one thousand then the said [illegible] shall be entitled to one

3. each elected member of the House of Parliament shall have such number of votes as may be allotted by dividing the total number of votes assigned to the members of the Legislative Assembly of the Ward under sub-clause no 2 of the said number of the elected members which House of Parliament [illegible] as shall bring number as near as may be to one thousand

4. The voters of the Province shall be kept in accordance with the system of [illegible] by means of the said [illegible] and the voting at such election shall be [illegible]

Explanation — In this section the expression "Legislative" means the Legislature as constituted at the last preceding session of which the returns have been published

Power to Returning officer

xx. The Returning officer shall hold office for a term of five years from the date on which he make upon his office

Provided that—

1. the Returning may by writing under his hand resign to the Lieutenant Governor his office

to the President may the resolution of the Candidate, the removal from office of representatives to the common benefit as article IV.

to the President and withdrawal thereby the resignation of his time, continue to hold office until the successor make when he office

to any respective addressed to the Vice President make elsewhere of the Senators & others to which shall be communicated by him to the Speaker of the House of the Depts

Vacancy in case of death

If by reason other death or other disability of the President elect, neither of the Vice President elect shall qualify, the Congress may by a Senate & Law office

Qualifications for office of President

No person shall be eligible for election as President who shall not — be a citizen of States

nor who shall not have attained the age of thirty five years and

nor a qualified for election as a member of the House of the Depts

nor shall any person be eligible for election as President of the United who shall hold any office of profit under the Government of States or the Government of any State or under any local or other authority subject to the control of any of the said Governments

Explanatory — In the instance of the article a person shall not be deemed to hold any office of profit by reason only that he is the President or Vice President of the States or the Governor or Representative or Superintendent of any State or is a Minister either for the States or for any State

Qualifications of President &c.

No The President shall not be a member of either House of Parliament or of a House of the Legislature of any State and of a member of either House of Parliament or of a House of the Legislature of any State in which President he shall be elected & have resided for and at that House in the shall or which to make office as President

nor The President shall not hold any office of profit

nor The President shall be entitled without augmented or not & the use of his official residence and shall not be entitled to such

[illegible] and pleadings in any [illegible] of Parliament of the said [illegible] and shall [illegible] on behalf of [illegible] and [illegible] and pleadings as are peculiar to the House of Peers.

4. The [illegible] and salaries of the Officers shall not be encreased during the time of [illegible].

Oath to be taken by the Lord Chancellor.

5. Every Chancellor and every person acting as Chancellor or discharging the duties of the Chancellor shall before acting upon the [illegible], make and subscribe in the presence of the Chief Justice of Canada or in his absence, the senior Puisné Judge of the Supreme Court then in [illegible] or Montreal, the following Oath, that is to say:

"I A B do [illegible] swear in the name of God that I will duly and faithfully execute the office of Chancellor [illegible] discharge the duties of the Chancellor of Canada and will to the best of my skill and knowledge truly and impartially perform and execute the Commission and the Law and that I will shew regard to the interests and well being of the subjects of Canada."

Chancellor to be a member of the Privy Council.

6. The Chancellor is to be appointed by the advice of the Executive, the charge must be confirmed by other Members of the Council.

7. If such charge shall be between [illegible] the Chancellor & Judge such charge is considered as a misdemeanor which has been moved after a Chief Justice charge under a writing signed by not less than [illegible] fourth of the total number of members of the House but then power of the [illegible] to move the members, and

if such members have been known by a majority of not less than three fourths of the total number of the House.

8. When a charge has been so confirmed by both Houses of Parliament, the other House shall investigate the charge or cause the charge to be investigated and the Chancellor shall have the right of appearing and to be represented at such investigation.

9. If on a report of the investigation a misdemeanor is proved

[illegible] or impeachment then in office of the said membership of the House by which the charge was certified, or removal from membership during the charge preferred against the President has been undertaken, such resolution shall have the effect of removing the President from his office from the date on which the resolution is so passed

Filling of vacancy in the office of President in the case of removal, death, resignation or inability both of the President and Vice-President declared by Congress

(2) If a vacancy caused by the operation of the last clause of section 1 of this Article is not completed before the expiration of the time

in the election of [illegible] a vacancy in the office of President occurs by reason of his death, resignation or removal, or whereas shall be held to exist an [illegible] office, and so on one hole there are months from the date of occurrence of the vacancy, and the person elected to fill the vacancy shall, subject to the provisions of article 1A, be entitled to hold office for the full term of five years from the date on which he takes over his office

The Vice-President of India. The Vice-President to act as [illegible] Chairman of the Council of State

(3) There shall be a Vice-President of India

(4) The Vice-President shall be ex-officio Chairman of the Council of State and shall not hold any other office of profit

Provided that during any period when the Vice-President acts as President or discharges the functions of the President under article 61, he shall not perform the duties of the office of Chairman of the Council of State and shall not be entitled to any salary or allowance payable to the Chairman of the Council of State under article 31

When the seat of the President of any vacancy in the office of the President by reason of his death, resignation or removal, or otherwise, the Vice-President shall act as President until the date on which a new President elected in accordance with the provisions of this Article to fill such vacancy enters upon his office

Power of President to act in discharge of functions during temporary absence, illness, etc., of President

(2) When the President is unable to discharge his duties owing to absence abroad or any other cause, the Vice-President shall discharge his functions until the date on which the President resumes his duties

(3) The Vice-President shall discharge, and or respect of the

provided that in no way so as to derogate the function of President from all the power and necessities of the President and he entitled to such emoluments, allowance and disbursements as allowed by Parliament by law and such pensions as shall subsist at such rate as allowed allowance and privileges as are established in the United Kingdom

Oaths of the President

6. The Vice President shall be elected by the members of both Houses of Parliament assembled at a joint meeting in accordance with the system of proportional representation by means of the single transferable vote and the voting at such election shall be by secret ballot

7. The Vice President shall not be a member of either House of Parliament or of a House of the Legislature of any State and if a member of either House of Parliament or of a House of the Legislature of any State be elected Vice President he shall be deemed to have vacated his seat in that House on the date on which he takes upon the office as Vice President

8. No person shall be eligible for election as Vice President unless he

(a) is a subject of India

(b) has completed the age of thirty-five years and

(c) is qualified for election as a member of the Council of State

9. A person shall not be eligible for election as Vice President if he holds any office of profit under the Government of India or the Government of any State or under any local or other authority subject to the control of any of the said Governments

Explanation: For the purposes of this article a person shall not be deemed to hold any office of profit by reason only that he is the President or Vice President of the Union or the Governor or Rajpramukh or Uprajpramukh of any State or is a Minister either for the Union or for any State

Term of office of Vice President

10. The Vice President shall hold office for a term of five years from the date on which he enters upon his office

Provided that

in case the President may die, resign, or become disabled, or be removed from office, or a President shall not be chosen, the same shall devolve on the Vice President, and the Congress may by law provide for the case of removal, death, resignation or inability, both of the President and Vice President, declaring what officer shall then act as President, and such officer shall act accordingly, until the disability be removed, or a President shall be elected.

The President shall, at stated times, receive for his services, a compensation, which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the United States, or any of them.

Before he enters on the execution of his office, he shall take the following oath or affirmation:

"I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will to the best of my judgment and power preserve, protect and defend the Constitution of the United States."

Section 2. The President shall be commander in chief of the army and navy of the United States, and of the militia of the several states, when called into the actual service of the United States; he may require the opinion, in writing, of the principal officer in each of the executive departments, upon any subject relating to the duties of their respective offices, and he shall have power to grant reprieves and pardons for offences against the United States, except in cases of impeachment.

He shall have power, by and with the advice and consent of the senate, to make treaties, provided two thirds of the senators present concur; and he shall nominate, and by and with the advice and consent of the senate, shall appoint ambassadors, other public ministers and consuls, judges of the supreme court, and all other officers of the United States, whose appointments are not herein otherwise provided for, and which shall be established by law: but the congress may by law vest the appointment of such inferior officers, as they think proper, in the President alone, in the courts of law, or in the heads of departments.

The President shall have power to fill up all vacancies that may happen during the recess of the senate, by granting commissions which shall expire at the end of their next session.

Section 3. He shall from time to time give to the congress information of the state of the union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may, on extraordinary occasions, convene both houses, or either of them, and in case of disagreement between them, with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive ambassadors and other public ministers; he shall take care that the laws be faithfully executed, and shall commission all the officers of the United States.

Section 4. The President, Vice President and all civil officers of the United States, shall be removed from office on impeachment for, and conviction of, treason, bribery, or other high crimes and misdemeanors.

shall not, save as expressly provided in this Constitution or in any law of Parliament enacted in any State specified in Part I or Part II of the First Schedule to which the Legislature of that State has not given its consent.

(2) No bill which provides by Parliament a State and any officer or authority of a State may be withheld or any thing to the which confers it powers or matters with respect to which Parliament has power to make law for that State and provides power or functions on the State or officer or authority thereof shall cease immediately before the commencement of the Constitution.

Council of Ministers

Council of Ministers to aid and advise President

74. There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions.

(2) The question whether any and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

The Prime Minister and Ministers

75. (1) The Prime Minister shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Prime Minister.

(2) The Ministers shall hold office during the pleasure of the President.

(3) The Council of Ministers shall be collectively responsible to the House of the People.

(4) Before a Minister enters upon his office the President shall administer to him the oath of office and of secrecy according to the form set out for the purpose in the Third Schedule.

(5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.

(6) The salaries and allowances of Ministers shall be such as Parliament may from time to time by law determine and until

Preamble & Statement that it is expedient to the Great Seal

The Attorney General for India

Attorney General for India

We the President shall appoint a person who is qualified by his appointment a Judge of the Queens Court to be Attorney General for India.

2. It shall be the duty of the Attorney General to give advice to the Government of India, when and upon matters, and to perform and other duties of a legal character, as may from time to time be referred or assigned to him by the President, and to discharge all the functions conferred on him by or under this Constitution or any other law for the time being in force.

3. In the performance of his duties the Attorney General shall have right of audience in all courts in the territory of India.

4. The Attorney General shall hold office during the pleasure of the President, and shall receive such remuneration as the President may determine.

Conduct of Government Business

Conduct of business of the Government of India

77. All executive action of the Government of India shall be expressed to be taken in the name of the President.

2. Orders and other instruments made and executed in the name of the President shall be authenticated in such manner as may be specified in rules to be made by the President, and the validity of any order or instrument which is so authenticated shall not be called in question on the ground that it is not made or executed by the President.

3. The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business.

Duties of Prime Minister in regard to furnishing of information to President, &c.

78. It shall be the duty of the Prime Minister—

(a) to communicate to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation;

(b) to furnish such information relating to the administration of

the Speaker of the House and performs the duties of the President may act for the time
or of the President or requires the advice of the members of the Council of Ministers may make or refer to
Assembly for the time being by a Minister and which have
not been considered by the Council

Chapter II - Parliament

General

Composition of Parliament

79. There shall be a Parliament for the State which shall consist of the President and the House of Representatives the Council of State and the House of the People

Composition of the Council of State

80. (1) The Council of State shall consist of –
a State member to be nominated by the President in accordance with the provisions of clause (3); and
not more than the nominated and Ruling eight representatives of the State
(2) The election of each of the Council of State to be filled by representatives of the State shall be in accordance with the provisions of the Eighth Schedule
(3) The member to be nominated by the President under sub-clause (a) of clause (1) shall consist of persons having special knowledge or practical experience in respect of such matters as the following namely –
Education, science, art and social service
(b) The representatives of each State elected by the Elected Members of the State Assembly of the State and in accordance with the system of proportional representation by means of the single transferable vote
(c) The representatives of the State specified in Part D of the First Schedule in the Council of State shall be chosen in such manner as Parliament may by law provide

Disqualifications of Members of the Council of State

81. (1) Subject to the provisions of clause (2) and Article 84

and 22. the House of the People shall consist of not more than five hundred members chosen by direct vote of the People.

23. For the purpose of each census after the first one hundred members provided in Section one hundred and twenty-one of this Constitution shall be added to such number according to the apportionment as hereinafter provided, but such additional members shall not be less than one member for every fifteen thousand of the population and not more than one member for every twenty thousand of the population.

24. The ratio between the number of members added to such hundred members and the population of that constituency as ascertained at the last preceding census of which the returns figures have been published shall, as far as practicable, be the same throughout the territory of India.

25. The representation in the House of the People of the territories comprised within the territory of India but not included within any State shall be such as Parliament may by law provide.

26. After the completion of each census the representation of the several territorial constituencies in the House of the People shall be readjusted by such authority in such manner and with effect from such date as Parliament may by law determine:

Provided that such readjustment shall not affect representation in the House of the People until the dissolution of the then existing House.

Provision as to representation of States in Part B of the First Schedule and territories not specified therein.

27. Notwithstanding anything in clause (3) of article 81 Parliament may by law provide for the representation in the House of the People of any State specified in Part B of the First Schedule or of any territory comprised within the territory of India but not included within any State as it deems fit on a basis not less favourable to that State than that specified in that clause.

Powers, &c. of the Council of States.

28. The Council of States shall not be subject to dissolution but as nearly as possible one third of the members thereof shall retire as soon as may be on the expiration of every second year in accordance with the provisions made in that behalf by Parliament by law.

29. The House of the People, unless sooner dissolved, shall

[illegible] the said year from the said appointed for the first meeting and so forth and the members of the said House of Commons shall cease as a member of the House

Provided that the said House may within a Parliament of the year as a member to be elected by Parliament of the said year and according one year at a time and not exceeding in any case beyond a period of six months after the Parliament has ceased to exist

Qualifications for membership of Parliament

5. A person shall not be qualified to be chosen to sit in and a Parliament unless he —

(a) is a subject of India;

(b) is of the age of not less than the Council of State not less than thirty years of age and in the case of a seat in the House of the People, not less than twenty-five years of age; and

(c) possesses such other qualifications as may be prescribed in that behalf by or under any law made by Parliament

Terms of Parliament, disqualifications and vacancies

6. (1) The House of Parliament shall be summoned to meet at such time as may give, and six months shall not intervene between last sitting in one session and the date appointed for its first sitting in the next session

(2) Subject to the provisions of clause (1), the President may from time to time —

(a) summon the House or either House to meet at such time and place as he thinks fit;

(b) prorogue the Houses;

(c) dissolve the House of the People

Right of President to address and send messages to Houses

7. (1) The President may address either House of Parliament or both Houses assembled together, and for that purpose require the attendance of members

(2) The President may send messages to either House of Parliament whether with respect to a Bill then pending in Parliament or otherwise, and a House to which any message is so sent shall with all convenient dispatch consider any matter required by the message

of the Union with one vote each.

Opening sessions of the Parliament, the commencement of voting rights

V. At the commencement of every session the Parliament shall assemble in the House of Parliament assembled together in the Parliament of the union of the Commons.

The Commons shall be sworn by the said Registrar, the Secretary of the House, in the Parliament of Law, for the election of the said Council, and in such manner and for the determination of such elections and other matters of the House.

Speaker, Deputy Speaker, and Officers of the House

VI. Every Member and the Attorney General of India shall have the right to speak in, and otherwise to take part in the proceedings of either House, any joint sitting of the Houses and any committee of Parliament of which he may be named a member, but shall not by virtue of this right be entitled to vote.

Officers of Parliament

The Chairman or Deputy Chairman not to be Speaker of the Council of State

VII. The Vice-President of India shall be ex-officio Chairman of the Council of State.

The Council of State shall as soon as may be choose a member of the Council to be Deputy Chairman thereof and, as often as the office of Deputy Chairman becomes vacant, the Council shall choose another member to be Deputy Chairman thereof.

Vacation and resignation of and removal from office of Chairman and Deputy Chairman

VIII. A member holding office as Deputy Chairman of the Council of State—

(a) shall vacate the office if he ceases to be a member of the Council;

(b) may at any time by writing under his hand addressed to the Chairman resign his office; and

(c) may be removed from his office by a resolution of the Council passed by a majority of all the then members of the Council:

Provided that no resolution for the purpose of clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution.

Power of the Deputy Governor to act in the absence or sickness of the Governor or in the vacancy of the office of Governor

10. And be it further enacted, in case any vacancy should arise in the office of Governor, by reason of the death, resignation or removal of the Governor, or in case of the absence of the Governor from the Province, or his inability to discharge the duties of his office, then and in every such case, the powers, authorities and duties by this Act vested in the Governor, shall and may be exercised by the Deputy Governor for the time being, or if there be no Deputy Governor, then by the President of the Council for the time being, or if there be no President of the Council, then by such person as shall be appointed by the Governor for the time being, by and with the advice of the Council of Nova Scotia, or the President may summon for the purpose.

Power of the Governor to remove the Deputy Governor

11. And be it further enacted, that it shall and may be lawful for the Governor, from time to time, by and with the advice of the Council of Nova Scotia, to remove the Deputy Governor, or any person who may be appointed to act as Deputy Governor, and upon every such removal, or upon the death, resignation or absence of the Deputy Governor, the Governor may appoint another person to act as Deputy Governor, during such time as he shall see fit.

The Governor with the Deputy Governor and Council may make rules for the removal of the President from his office, and for appointing another

12. And be it further enacted, that it shall and may be lawful for the Governor, by and with the advice of the Council of Nova Scotia, from time to time, to make such rules and regulations for the removal of the President from his office, and for appointing another person to act as President, as to the Governor and Council shall seem meet, and the Governor of Nova Scotia, by and with the advice of the Council of Nova Scotia, may from time to time, revoke, alter and annul such rules and regulations, and make others in their stead; Provided always, that no such rules or regulations shall be made, revoked or altered, unless a majority of the Council of Nova Scotia shall be present at the meeting at which the same shall be made, revoked or altered, and that no such rules or regulations shall be revoked or altered, unless at a meeting at which a majority of the Council of Nova Scotia shall be present; and that no such rules or regulations shall be revoked or altered, unless at a meeting held at least seven days before the meeting at which the same shall be revoked or altered, notice of the intention to revoke or alter the same shall be given to each member of the Council of Nova Scotia, by the Deputy Governor, or person acting as Deputy Governor, for the time being.

The Speaker and Deputy Speaker of the House of Assembly

13. And be it further enacted, that as soon as may be after the meeting of the House of Assembly, Speaker and Deputy Speaker shall be chosen by the House of Assembly, and in case of the absence of Speaker or Deputy Speaker from any cause, the House shall choose another member to be Speaker or Deputy Speaker, as the case may be.

Speaker may vote in case of an equality of votes, and may give casting vote

14. And be it further enacted, that the Speaker or Deputy Speaker of the House of Assembly—

may vote with the other members of the House of Assembly

[illegible] of such member of the Senate, if the Deputy Speaker, and of such member the Deputy Speaker, if the Speaker, resign the office, and

by any be removed from the office by a resolution of the House of the Whole passed by a majority of all the then members of the House.

Provided that no resolution for the purpose of removing the said member or Deputy Speaker shall within the term of 14 calendar days after the resolution.

Provided further that whenever the House of the Whole is dissolved the Speaker shall not vacate his office until immediately before the first meeting of the House of the Whole after the dissolution.

Time of the Deputy Speaker to vacate office on the election of a new Speaker.

11. (1) When the office of Speaker is vacant, the duties of the office shall be performed by the Deputy Speaker or if the office of Deputy Speaker is also vacant, by such member of the House of the Whole as the Minister may appoint for the purpose.

(2) During the absence of the Speaker from any sitting of the House of the Whole the Deputy Speaker or if he is also absent such person as may be determined by the rules of procedure of the House or if no such person is present such other person as may be determined by the House, shall act as Speaker.

The Speaker or Deputy Speaker not to preside while a resolution for his removal from office is under consideration.

12. (1) At any sitting of the House of the Whole at which any resolution for the removal of the Speaker from his office is under consideration the Speaker or other person presiding at the sitting at which any resolution for the removal of the Deputy Speaker from his office is under consideration the Deputy Speaker shall not, although he is present, preside and the provisions of clause (2) of article 10 shall apply to a resolution for any such sitting as they apply to a resolution at a sitting from which the Speaker or in the case may be the Deputy Speaker is absent.

(2) The Speaker shall have the right to speak in, and otherwise to take part in the proceedings of, the House of the Whole while any resolution for his removal from office is under consideration in the House

and shall, notwithstanding anything in which the Act entitled An Act for the better regulation of the Privy Council by the Queen's Majesty, or any other Act, may be necessary, be sworn in the form of an oath as follows:

Power and authority of the Governor and Privy Council and the Governor and Privy Council.

VI. That there shall be and the Governor and the Privy Council of the Council of State, and to the Speaker and the Privy Council of the House of the State, such powers and authorities as may be necessary, shall be exercised by the said Governor and Privy Council in their behalf as a body, such powers and authorities as are specified in the Great Charter.

Members of Parliament

VII. That Each House of Parliament shall have a separate constitutional oath.

Provided that nothing in the above shall be construed to prevent any member of both houses to be a Member of Parliament.

A Parliament may by the regular the constitution, and the constitution of powers appointed to the constitutional oath of the House of Parliament.

A Bill passed in each of Parliament may, after consultation with the Speaker of the House of the State or the Chairman of the Council of State, in the case may be, make rules regulating the constitution and the constitution of powers appointed to the constitutional oath of the House of the State or the Council of Parliament may make a rule which have effect subject to the provisions of any law which under the said clause.

Conduct of Business

Rule of business during the session

VIII. Every member of either House of Parliament shall before taking his seat, and subject before the President or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

Bills in either House of Parliament to be read three times before passed

IX. (1) Save as otherwise provided in this Constitution all questions in any sitting of either House or joint sitting of the House shall be determined by a majority of votes of the members present and

voting who does the Speaker or person acting as Speaker of the House of Commons or Speaker of a House acting as such shall not vote in the first instance, but shall have and exercise a casting vote in the case of an equality of votes.

(3) Either House of Parliament shall have power to act notwithstanding any vacancy in the membership thereof, and any proceedings in Parliament shall be valid notwithstanding that it is discovered subsequently that some person who was not entitled so to sit or vote or otherwise took part in the proceedings.

(4) Until Parliament by law otherwise provides the quorum of members of a meeting of either House of Parliament shall be one hundred of the total number of members of the House.

(5) If at any time during a meeting of a House there is no quorum present, it shall be the duty of the Speaker or Speaker or person acting as such, either to suspend the House or to suspend the meeting until there is a quorum.

Disqualifications of members

Number of each

31 (1) No person shall be a member of both Houses of Parliament and provision shall be made by Parliament by the law for the members by a person who is elected a member of both Houses of the said to sit in House or the other.

(2) If person who is a member both of Parliament and of a House of the Legislature of a State specified in Part I of the Fifth Schedule, and of a person who is also a member both of Parliament and a House of the Legislature of such a State, at the expiration of such period as may be specified in rule made by the President, that person and Parliament shall thereupon vacated his seat in the Legislature of the State.

(3) If a member of either House of Parliament—

(a) becomes subject to any of the disqualifications mentioned in clause (1) of article 102, or

[illegible] the said by reading words the Royal assent
to the Provisions in the Bonds, in the case regard,
the said shall thereupon become vacant

VII. For a period of sixty days a member of either House
of Parliament is without permission of the House absent from all
meetings thereof, the House may declare his seat vacant

Provided that in computing the said period of sixty days no
account shall be taken of any period during which the House is
prorogued or is adjourned for more than five consecutive days

Disqualification for membership

VIII. No person shall be disqualified for being chosen as and
for being a member of either House of Parliament

(a) by the holder, may office of profit under the Government
of India or the Government of any State other
than an office declared by Parliament by law
not to disqualify its holder;

(b) if he is of unsound mind and stands so declared
by a competent court;

(c) if he is an undischarged insolvent;

(d) if he is not a citizen of India or has voluntarily
acquired the citizenship of a foreign State or is
under any acknowledgment of allegiance or adherence
to a foreign State;

(e) if he is so disqualified by or under any law made
by Parliament

Explanation For the purpose of this article a person shall not be
deemed to hold an office of profit under the Government of
India or the Government of any State by reason only that he
is a Minister either for the Union or for such State

Penalty for sitting or voting by disqualified persons

IX. If any question arises as to the validity of a member of either
House of Parliament his duties subject to any of the disqualifications
mentioned in clause (1) of article VIII the question shall be referred
for the decision of the President and his decision shall be final

Before giving any decision on any such question the
President shall obtain the opinion of the Election Commission and

shall not sit/vote/act in such place.

Penalty for sitting/voting/acting when not qualified or disqualified

54. If a person not to vote as a member of either House of Parliament before he has complied with the requirements of section 51, or when he knows that he is not qualified or that he is disqualified for membership thereof, or that he is prohibited from so doing by the provisions of any law made by Parliament, he shall for every vote, sitting or act in which he is not so entitled be liable to a penalty of five hundred rupees to be recovered as a debt due to the State.

Powers, Privileges and Immunities of Parliament and its Members

Power to make laws as to the powers, privileges and immunities of either House of Parliament and of the members and committees thereof

55. Subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament there shall be freedom of speech in Parliament.

No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament of any report, paper, vote or proceedings.

In other respects, the powers, privileges and immunities of each House of Parliament and of the members and the committees of each House, shall be such as may from time to time be defined by Parliament by law and until so defined, shall be those of the House of Commons of the Parliament of the United Kingdom, and of its members and committees, at the commencement of the Constitution.

The provisions of subsections (1), and (2) shall apply to persons who by virtue of the Constitution have the right to speak in, and otherwise to take part in the proceedings of, a House of Parliament or any committee thereof as they apply to members of Parliament.

Privileges and immunities of members

56. Members of the House of Parliament shall be entitled

A money, and all orders and elections so long from time to time determined by Parliament by the said Act, provision be thereupon made in such, otherwise as such rules and upon such conditions as were immediately before the commencement of this Constitution applicable to the case of members of the Constituent Assembly of the Dominion of India.

Legislative Procedure

Position as to money bills and bills affecting taxation

37. (1) Subject to the provisions of sections 38 and 39 of this Act a Money Bill and the financial Bills in Bill may originate in either House of Parliament.

(2) Subject to the provisions of sections 38 and 39 a Bill shall not be deemed to have been passed by the House of Parliament unless it has been agreed to by both Houses, either without amendment or with such amendments only as may be agreed to by both Houses.

(3) A Bill shall be deemed to be passed by the House of Parliament which has been agreed to by the Houses of the Parliament.

(4) A Bill pending in the Council of State which has not been passed by the House of the People shall not lapse on a dissolution of the House of the People.

(5) A Bill which is pending in the House of the People, or which having been passed by the House of the People is pending in the Council of State, shall subject to the provisions of section 38, lapse on a dissolution of the House of the People.

Joint sitting of both Houses in certain cases

38. (1) If after a Bill has been passed by one House and transmitted to the other House—

(a) the Bill is rejected by the other House; or

(b) the Houses have finally disagreed as to the amendments to be made in the Bill; or

(c) more than six months elapse from the date of the reception of the Bill by the other House without the Bill having been passed by it,

the President may, unless the Bill has lapsed by reason of a

shall be a Member of the House of the People, qualified to be chosen by himself, if he is elected by the State he represents, or if he is not elected, he shall be a resident of the State he represents.

Resolved that no Member of the House shall vote on any question in which he is personally interested, or which may result in his pecuniary benefit.

Resolved that the House of Representatives shall have the sole power of impeachment.

Resolved that the Senate of the United States shall have power to try all impeachments. When sitting for that purpose, they shall be on oath or affirmation. And no person shall be convicted without the concurrence of two thirds of the Members present.

Resolved that the Senate of the United States shall be composed of two Members from each State, chosen by the people thereof, for six years; and each Member shall have one vote.

Resolved that in case the right of suffrage in any State shall be restricted, or in any manner abridged, except for participation in rebellion, or other crime, the basis of representation in such State shall be reduced in the same proportion which the number of male citizens twenty-one years of age in such State shall bear to the whole number of such male citizens in such State.

Resolved that no person holding any office of profit or trust under the United States shall, without the consent of the Legislature, accept of any present, emolument, office or title of any kind whatever from any King, Prince or foreign State.

Resolved that the Members of the House of Representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the Treasury of the United States; but no increase of the compensation shall take effect during the session at which such increase shall be made.

Resolved that no bill for raising revenue shall originate in the Senate, but that all other bills may originate in either House, and be amended, altered or rejected by the Senate.

Resolved that every bill which shall have passed the House of Representatives and the Senate shall, before it become a law, be presented to the President of the United States for his revision; if, upon such revision, he approve thereof, he shall signify his approval by signing the same. But if, upon such revision, it shall appear to him improper for any provisions therein contained to become a law, he shall return the bill, together with his objections thereto, to the House in which it shall have originated, who shall enter the objections sent down by the President at large on their Journal, and proceed to reconsider the bill. But if after such reconsideration two thirds of the House shall, notwithstanding the objections of the President, agree to pass the bill, it shall be sent, with the objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a law. But in such cases the votes of both Houses shall be determined by yeas and nays, and the names of the persons voting for and against the bill shall be entered on the Journal of each House respectively. If any bill shall not be returned by the President within ten days (Sundays excepted) after it shall have been presented to him, the same shall be a law, unless the Legislature by their adjournment prevent its return, in which case it shall not be a law.

Resolved that the Executive Power shall be vested in a single person. His style shall be "The President of the United States of America," and his title shall be "His Excellency." He shall be elected by ballot by the Legislature. His term of service shall be seven years; he shall be ineligible forever after.

Resolved that, in the first instance, the Legislature shall proceed to elect a President. Seven Electors shall be appointed by joint ballot of the Senate and House of Representatives, out of the seven districts of the States, as formed for the choice of Members of the House of Representatives, and the Electors shall meet at such time and place as shall be assigned by the Legislature, and vote by ballot for a President. They shall not vote for any person belonging to the State in which they shall be chosen. The seven persons highest in the number of votes shall be the Electors. But if two or more shall have had an equal number of votes, and not a majority of the whole number of Electors appointed, the Senate shall choose one or more of them by ballot. The Electors shall then proceed to vote for a President, out of the persons voted for as aforesaid, and make return of their votes to the Senate, who shall count the votes in the presence of the Legislature. The person who shall have the greatest number of votes, if it be a majority of the whole number of Electors appointed, shall be President. But if no person have a majority, then from the five highest on the list the Senate shall choose by ballot a President. But in choosing a President, the votes shall be taken by States, the representation from each State having one vote. A quorum for this purpose shall consist of a member or members from two thirds of the States, and a majority of all the States shall be necessary to a choice. In every case, after the choice of the President, the person having the greatest number of votes of the Electors shall be Vice-President. But if there should remain two or more who have equal votes, the Senate shall choose from them by ballot the Vice-President.

Resolved that a privy council be established, to consist of fifteen persons, to be appointed by the Senate out of the first citizens of the United States, to hold their offices during good behaviour, to assist the President in the execution of his office, and to act as he shall direct. The Secretary of State, the Secretary of the Treasury, the Secretary of War, the Secretary of Marine, the Attorney General, and the Postmaster General, shall be ex officio members of the privy council, with the rank of Assistants to the President, and shall have a right to attend and vote in all cases. The Assistants shall be removable by the President, and shall be allowed such compensation for their services as shall be established by law.

Resolved that the Executive Power of each State shall be vested in a Governor, to be elected by the people thereof, every seven years, at the time and place of choosing Members of the House of Representatives. He shall be ineligible forever after. He shall be chosen by ballot, by the Electors of the State, who shall be the Members of the House of Representatives, and the Members of the Council of Revision, hereinafter mentioned, and shall meet for that purpose at the time and place of the meeting of the Legislature. The person having the greatest number of votes shall be Governor. But if two or more shall be equal in votes, the Legislature shall choose one or more of them by ballot. But if no person have a majority, then from the five highest on the list the Legislature shall choose by ballot a Governor. But in choosing a Governor, the votes shall be taken by States, the representation from each State having one vote. A quorum for this purpose shall consist of a member or members from two thirds of the States, and a majority of all the States shall be necessary to a choice. In every case, after the choice of the Governor, the person having the greatest number of votes of the Electors shall be Lieutenant Governor. But if there should remain two or more who have equal votes, the Legislature shall choose from them by ballot a Lieutenant Governor.

Resolved that a Council of Revision be established, to consist of the Governor, Lieutenant Governor, and three Judges of the Supreme Court, to be appointed by the Legislature, to hold their offices during good behaviour, to assist the Governor in the execution of his office, and to act as he shall direct. The Secretary of State, the Secretary of the Treasury, the Secretary of War, the Secretary of Marine, the Attorney General, and the Postmaster General, shall be ex officio members of the Council of Revision, with the rank of Assistants to the Governor, and shall have a right to attend and vote in all cases. The Assistants shall be removable by the Governor, and shall be allowed such compensation for their services as shall be established by law.

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Resolved that a Council of Revision be established, to consist of the Governor, Lieutenant Governor, and three Judges of the Supreme Court, to be appointed by the Legislature, to hold their offices during good behaviour, to assist the Governor in the execution of his office, and to act as he shall direct. The Secretary of State, the Secretary of the Treasury, the Secretary of War, the Secretary of Marine, the Attorney General, and the Postmaster General, shall be ex officio members of the Council of Revision, with the rank of Assistants to the Governor, and shall have a right to attend and vote in all cases. The Assistants shall be removable by the Governor, and shall be allowed such compensation for their services as shall be established by law.

House does not agree
and the reasons of the former differing to be communicated
which was accordingly done but none delivered.

[illegible] That [illegible] may be held with the other
[illegible] Bill passed thereof, notwithstanding that a resolution of
the House of the Peers has intervened since the Session
adjourned the [illegible] to summon the Members to meet there.

Money Bill not to be introduced in the Council of State

No Money Bill shall not be introduced in the Council of State.

After a Money Bill has been passed by the House of the People it shall be transmitted to the Council of State for its consideration and the Council of State shall within a period of fifteen days from the date of its receipt of the Bill return the Bill to the House of the People with its recommendations and the House of the People may therefore either accept or reject all or any of the recommendations of the Council of State.

If the House of the People accepts any of the recommendations of the Council of State, the Money Bill shall be deemed to have been passed by both Houses with the amendments recommended by the Council of State and accepted by the House of the People.

If the House of the People does not accept any of the recommendations of the Council of State the Money Bill shall be deemed to have been passed by both Houses in the form in which it was passed by the House of the People without any of the amendments recommended by the Council of State.

If a Money Bill passed by the House of the People and transmitted to the Council of State for its recommendations is not returned to the House of the People within the said period of fifteen days it shall be deemed to have been passed by both Houses at the expiration of the said period in the form in which it was passed by the House

Restriction on Money Bills

No Clause for the purpose of this Charter a Bill shall not be deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters namely—

(a) the imposition abolition remission alteration or regulation of any tax;

(b) the regulation of the borrowing of money or the giving of any guarantee by the Government of India or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of India;

(c) the custody of the Consolidated Fund or the Contingency Fund of India the payment of moneys into or the withdrawal of moneys from any such Fund;

(d) the appropriation of moneys out of the Consolidated Fund of India;

(e) the declaring of any expenditure to be expenditure charged on the Consolidated Fund of India or the increasing of the amount of any such expenditure;

(f) the receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money or the audit of the account of the State or of a Port; or

(g) any matter incidental to any of the matters specified in sub-clauses (a) to (f).

(3) A Bill shall not be deemed to be a Money Bill by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licences or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax

by any local authority or body for local purposes.

(2) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the House of the Peers thereon shall be final.

(3) There shall be endorsed on every Money Bill when it is transmitted to the Council of Peers under section [illegible] and when it is presented to the President for assent under section [illegible], the certificate of the Speaker of the House of the Peers signed by him that it is a Money Bill.

Assent to Bills

[illegible] Bill, a Bill has been passed by the House of Peers and it shall be presented to the President, and the President shall declare either that he assents to the Bill, or that he withholds assent therefrom:

Provided that the President may, at any time within twelve months after the presentation to him of a Bill for assent, return the Bill if it is not a Money Bill to the House with a message requesting that they will reconsider the Bill or any specified provisions thereof, and in that case, the House shall reconsider the Bill accordingly, and if the Bill is then again passed by the House with or without amendment and presented to the President for assent, the President shall not withhold assent therefrom.

Procedure on financial matters.

Annual financial statement

[illegible] The President shall in respect of every financial year cause to be laid before both the Houses of Parliament a statement of the estimated receipt and expenditure of the Government of India for that year, in this Part referred to as the "annual financial statement".

(2) The estimates of expenditure embodied in the annual financial statement shall show separately—

(a) the sums required to meet expenditure described by

the Constables as aforesaid when the Constables' Court of Scot. and in the case required to and the aforesaid Court of Scot. and shall distinguish separately the moneys received for the aforesaid

The following expenditure shall be aforesaid charged on the Constables' Court of Scot.—

(1) the emoluments and allowances of the Warden and the constables acting in his office.

(2) the salaries and allowances of the Warden as the Deputy Warden of the Council of Scot. and the Warden and the Deputy Warden of the Mines of the Scot.

(3) all charges for which the Commissioners of Scot. or Scot. statutory salaries, working fund charges and redemption charges and other expenditure relating to the raising of loans and the issues and redemption of debt.

(4) the salaries allowances and pensions payable to or in respect of judges of the Supreme Court.

(5) the pensions payable to or in respect of judges of the National Court.

(6) the pensions payable to or in respect of judges of any High Court which exercises jurisdiction in relation to any matter connected with the Constitution of Scot. or which may have before the commencement of this Constitution exercised jurisdiction in relation to any matter included in a Reserved matter by or in Part II of the Fifth Schedule.

(7) the salary allowances and pensions payable to or

... a subject of the Crown and Parliament of Scotland

... to any more expensive to satisfy any judgment given in respect of any such act or default aforesaid,

... of any other expenditure authorised by this Constitution or by Parliament by law to be so charged.

Powers of Parliament with respect to Constitution.

13. A record of the schemes in which the expenditure charged upon the Consolidated Fund of Scotland shall not be included by the said of Parliament, but nothing in this section shall be construed as abridging the discretion of the Houses of Parliament of any of their schemes.

14. A record of the said schemes in which the expenditure shall be included, in the form of abstracts the ground to the Houses of the Parliament, and the Houses of the Parliament shall have power to amend, as the case to amend, to any amount, or to amend to any amount required, to a committee of the several principal Houses.

15. All amounts for a ground shall be made accounts to the accountables of the Minister.

Appropriation Act

16. As soon as may be after the ground under which it have been made by the Houses of the Parliament, there shall be introduced in Parliament for the appropriation out of the Consolidated Fund of Scotland of such moneys required to meet—

(a) the ground so made by the Houses of the Parliament, and

(b) the expenditure charged on the Consolidated Fund of Scotland but not exceeding in any case the amount shown in the abstract thereof last laid before Parliament.

17. No amendment shall be proposed to any such Bill in the House of Parliament which will have the effect of varying the amount or altering the destination of any grant so made or of varying the amount of any expenditure charged

to the Consolidated Fund or Bank, and the interest of the sums standing to its credit or invested in such stocks, funds or securities as may from time to time be directed by the Treasury.

(2.) Subject to the provisions of section 17 and 18 of this Act, all moneys which by this Act are directed to be paid into the Consolidated Fund of Ireland shall be paid into the Bank of Ireland to the account of the Commissioners of Public Works in Ireland, and shall be carried to the Consolidated Fund of Ireland in such manner as the Treasury may from time to time direct.

Appropriation of surplus grant.

(3.) If in any financial year after the year ending the thirty-first day of March one thousand eight hundred and seventy-nine the amount of the moneys paid into the Consolidated Fund of Ireland in pursuance of this Act exceeds the amount required in that year for the purposes of this Act, the Treasury may direct the excess to be applied in or towards payment of the interest on any sum borrowed by the Commissioners of Public Works in Ireland under the Acts relating to the Irish Church Temporalities Fund, and may direct accordingly that the moneys payable out of the Consolidated Fund of Ireland in that year in pursuance of the Irish Church Act, 1869, shall be reduced by the amount of the excess so applied.

(4.) If in any financial year after the year ending the thirty-first day of March one thousand eight hundred and seventy-nine the amount of the moneys paid into the Consolidated Fund of Ireland in pursuance of this Act is insufficient for the purposes of this Act in that year, the Treasury may direct that the deficiency shall be made good out of the Consolidated Fund of Ireland, and may direct accordingly that the moneys payable out of the Consolidated Fund of Ireland in that year in pursuance of the Irish Church Act, 1869, shall be increased by the amount of the deficiency so made good.

(5.) The Treasury shall lay before both Houses of Parliament annually, during the continuance of this Act, a statement of the moneys paid into the Consolidated Fund of Ireland in pursuance of this Act, and of the application of any surplus or deficiency of those moneys.

(6.) The provisions of sections 16, 17, and 18 of this Act shall have effect as if the Bank of Ireland were mentioned in those sections instead of the Bank of England, and as if the Treasury were substituted for the Commissioners of Her Majesty's Treasury.

(7.) The provisions of section 19 of this Act shall have effect as if the Bank of Ireland were mentioned in that section instead of the Bank of England, and as if the Treasury were substituted for the Commissioners of Her Majesty's Treasury.

Power to appoint Trustees of Friendly Societies

Be it Enacted by the authority aforesaid That from and after the passing of this Act it shall and may be lawful for any Friendly Society duly established according to the provisions of this Act to appoint Trustees for the purposes of this Act in the manner directed by the Rules of such Society and that the Trustees so appointed shall be entitled to have the Funds of such Society vested in them for the purposes of this Act and shall be capable of suing and being sued in all Courts of Law and Equity in the name of their Office and shall be entitled to have a Seal for the purposes of this Act and that the Trustees for the time being of any such Society shall be capable of taking and holding any Lands Tenements or Hereditaments which may be given sold or conveyed to them upon Trust for the purposes of this Act and shall be capable of taking and holding any Personal Estate

matter or of any Bill for the appropriation of any part of the Consolidated Fund of India, and, if not in the employment of any law or with a commission with any such rank from Him of Parliament under whose or of which he is a subject, any rank or standing under having effect as matter of Parliament under which he of that subject, such persons shall present

Language to be used in Parliament

XXIII. Notwithstanding anything in This Act contained the provisions of which the manner in Parliament shall be transacted in Hindi or in English

Provided that in Committee of the Council of State or House of the House of the People or joint sitting no such a Member may be any person may exercise who cannot adequately express himself in Hindi or in English to address the House in his mother tongue

Note Parliament by law otherwise provide this article shall after the expiration of a period of fifteen years from the commencement of the Constitution have effect as if the words "or in English" were omitted therefrom

Restriction on discussion in Parliament

XXIV. No discussion shall take place in Parliament with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties except upon a motion for presented for address to the President praying for the removal of the Judge as hereinafter provided

Power to regulate procedure of Parliament

XXV. The validity of any proceedings in Parliament shall not be called in question on the ground of any alleged irregularity of procedure

Power of Parliament to make provisions as to certain matters

XXVI. In this section of Parliament to make provision not made by or under the Constitution for regulating procedure or the conduct of business or the maintaining order in Parliament shall be subject to the jurisdiction of any court in respect of the exercise by him of those powers

Chapter II. Legislative Power of the President

Power to President to promulgate Ordinances during recess of Parliament

XXVII. If at any time except when both Houses of Parliament are in session the President is satisfied that circumstances exist

made of receiving the sum of this recognizance within the time aforesaid such Recognizance or the recognizance taken in his behalf

[illegible] And Whereas doubts have arisen whether such Persons as are [illegible] by virtue of and Ordinances

[illegible] shall cease to exercise all the respective powers and authorities which they respectively had and exercised before the publication of this present ordinance and Whereas upon the passing of the several Ordinances aforesaid it may be inconvenient to any [illegible] Be it therefore ordained by the Lords and Commons assembled in this present Parliament and by the authority of the same that all and every the powers and authorities which any [illegible] shall cease and determine and be void and of none effect to all intents and purposes whatsoever any thing in the said Ordinances or any of them contained to the contrary thereof in any wise notwithstanding

And be it further ordained by the authority aforesaid that this present Ordinance shall continue in force for the space of [illegible] months and no longer

Chapter IX. The Queens Jointure

Commissioners appointed to execute this Act

The Queen shall be a Supreme Court of Justice consisting of a Chief Justice of Scotland and such Assistant Judges as shall not exceed the number of [illegible] Judges

Every Judge of the Supreme Court shall be appointed by the Parliament by nomination under the hand and seal of the Chancellor and of the Judges of the Supreme Court and of the Chief Justice of the Court of Session to the Parliament may from time to time for the purpose and shall hold office until he attain the age of seventy five years

Provided that in the case of appointment of Judges after the Chief Justice the Chief Justice of Scotland shall always be nominated

Provided also that

no Judge may by virtue under the Great aforesaid

the President assigns the office.

A judge may be removed from his office on the address described in clause (4).

(3) A person shall not be qualified for appointment as a judge of the Supreme Court unless he is a citizen of India and—

he has been for at least five years a judge of a High Court or of two or more such Courts in succession; or

he has been for at least ten years an advocate of a High Court or of two or more such Courts in succession; or

he is, in the opinion of the President, a distinguished jurist.

Explanation I.—In this clause "High Court" means a High Court which exercises, or which at any time before the commencement of the Constitution exercised, jurisdiction in any part of the territory of India.

Explanation II.—In computing for the purpose of this clause the period during which a person has been an advocate, any period during which a person has held judicial office not inferior to that of a district judge after he became an advocate shall be included.

(4) A judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting, has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity.

(5) Parliament may by law regulate the procedure for the presentation of an address and for the investigation and proof of the misbehaviour or incapacity of a judge under clause (4).

(6) Every person appointed to be a judge of the Supreme Court shall, before he enters upon his office, make and subscribe before the President or some person appointed in that behalf by him an oath or affirmation according to the form set out for the purpose in the Third Schedule.

(7) A person who has held office as a judge of the Supreme

Court shall please to send to any court or before any authority within the territory of India

Salaries, &c. of Judges

124. There shall be paid to the Judges of the Supreme Court such salaries as are specified in the Second Schedule.

Every Judge shall be entitled to such furlough and allowances, and to such rights in respect of leave of absence and pensions, as any persons now or hereafter appointed by His Majesty to hold offices similar to the office of such Judge would be entitled to, if such furlough, allowances and rights were specified in the Second Schedule.

Provided that neither the furlough nor the allowances of a Judge nor his right or claim to any furlough or allowance shall be varied to his disadvantage after his appointment.

Appointment of Acting Chief Justice

126. When the office of Chief Justice of India is vacant or when the Chief Justice is by reason of absence or otherwise unable to perform the duties of his office, the duties of the office shall be performed by such one of the other Judges of the Court as the President may appoint for the purpose.

Appointment of ad hoc Judge

127. If at any time there should not be a quorum of the Judges of the Supreme Court available to hold or continue any sitting of the Court, the Chief Justice of India may, with the previous consent of the President and the consent of the Chief Justice of the High Court concerned, request in writing the attendance at the sittings of the Court, as an ad hoc Judge, for such period as may be necessary, of a Judge of a High Court duly qualified for appointment as a Judge of the Supreme Court to be designated by the Chief Justice of India

It shall be the duty of the Judge who has been so designated, in priority to the other duties of his office, to attend the sittings of the Supreme Court at the time and for the period for which his attendance is required, and while so attending he shall have all the jurisdiction, powers and privileges, and shall discharge the duties, of a Judge of the Supreme Court

Restriction on practice after retirement of Judges of Supreme Court

128. Notwithstanding anything in this Chapter, no Person who has held office as a Judge of the Supreme Court shall plead or act in any court or before any authority within the territory of India, except the Supreme Court and any other court to which, at the time of his ceasing to hold such office, he was entitled to practise as of right.

after the commencement of the Constitution and has not been continued in operation after such commencement.

(2) In relation to which any Party is a body of the nature set out in section 4 of a treaty, agreement, covenant, engagement, grant or other instrument which formally binds that corporation shall not extend to such a dispute.

Jurisdiction of Supreme Court to entertain appeals from High Court in certain cases

131. An appeal shall lie to the Supreme Court from any judgment, decree or final order of a High Court in the territory of India, whether in a civil, criminal or other proceeding of the High Court, subject that the case involves a substantial question of law as to the interpretation of the Constitution.

(2) Where the High Court has refused to give such a certificate the Supreme Court may, if it is satisfied that the case involves a substantial question of law as to the interpretation of the Constitution, grant special leave to appeal from such judgment, decree or final order.

(3) Where such a certificate is given, or such leave is granted, any party to the case may appeal to the Supreme Court on the ground that any such question as aforesaid has been wrongly decided, and with the leave of the Supreme Court on any other ground.

Explanation: For the purpose of this article, the expression "final order" includes an order whereby an issue is finally decided, or which, if allowed to stand, would finally dispose of the matter in controversy.

Jurisdiction of the Supreme Court in appeals from High Courts in regard to civil cases

132. An appeal shall lie to the Supreme Court from any judgment, decree or final order in a civil proceeding of a High Court in the territory of India, if the High Court certifies—

(a) that the amount or value of the subject matter of the dispute in the court of first instance and still in dispute on appeal was and is not less than twenty thousand rupees or such other amount as may be specified in that behalf by Parliament by law; or

to that the judgment above or final order sought
or ordered was also or another according to
of the law amount in value or
to that the case is of a kind to be appeal to the Supreme
Court

and when the judgment above or final order appealed from
the decision of the court consequently does in any case other than
a case referred to in sub-clause (c) of the High Court shall certify
that the appeal involves some substantial question of law

(c) Notwithstanding anything in article 132 any party aggrieved
by the Supreme Court under clause (1) may appeal to one of the
grounds in such appeal that a substantial question of law as to
interpretation of the Constitution has been wrongly decided

(2) Notwithstanding anything in this article, no appeal shall
under Parliament by law otherwise provides lie to the Supreme Court
from the judgment decree or final order of one Judge of a High Court

Appeals to Supreme Court from decrees of Judges of High Courts in certain cases

134. An appeal shall lie to the Supreme Court from any
judgment, final order or sentence in a criminal proceeding of a High
Court in the hearing of Judge of the High Court

(a) has on appeal reversed an order of acquittal of an
accused person and sentenced him to death or

(b) has withdrawn for trial before itself any case from
any court subordinate to it and has in
such trial convicted the accused person and
sentenced him to death or

(c) certifies that the case is a fit one for appeal to the
Supreme Court

Provided that an appeal under sub-clause (c) shall be subject
to such provisions as may be made in that behalf under clause (1) of
article 145 and to such conditions as the High Court may determine
as regards

(2) Parliament may by law confer on the Supreme Court
any further powers to entertain and hear appeals from any judgment
final order or sentence in a criminal proceeding of a High Court in the

binding of State subject to such conditions and limitations as may be prescribed in such law.

Jurisdiction and powers of the Federal Court with respect to controversies between a State and citizens of another State.

[illegible] Parliament by law otherwise provide the Supreme Court shall not have jurisdiction and powers with respect to any matter to which the provisions of section [illegible] or section [illegible] do not apply if jurisdiction and powers are vested in the Federal Court exclusively by the Federal Court concurrently with the Supreme Court and the Constitution such law shall so provide.

Appeal lies to Queen in Council from Supreme Court

[illegible] Nothing in this Act shall affect any prerogative right of Her Majesty to grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter [illegible] by any court in Australia to Her Majesty in Council.

Power of Parliament to confer jurisdiction on Supreme Court

[illegible] Subject to the provisions of any law made by Parliament or any rule made under section [illegible] the Supreme Court shall have jurisdiction to hear any prerogative [illegible] or any matter [illegible].

Jurisdiction of Supreme Court in matters of Constitution

[illegible] The Supreme Court shall have such jurisdiction and powers with respect to any of the matters in the Commonwealth Parliament may by law confer.

The Supreme Court shall have such further jurisdiction and powers with respect to any matter in the Commonwealth and the Parliament of any State may by identical agreement thereto of Parliament by law provide for the exercise of such jurisdiction and powers by the Supreme Court.

Parliament may by law confer jurisdiction on Supreme Court in matters not under writ

[illegible] Parliament may by law confer on the Supreme Court power to issue [illegible] writs in civil matters and in the cases of [illegible] injunctions [illegible] any [illegible] and [illegible] in any of these [illegible] may [illegible] other than those mentioned in clause [illegible] of section [illegible].

Nothing in this section to prejudice Queen's prerogative

[illegible] Parliament may by law confer [illegible] for enforcing upon the Supreme Court such [illegible] powers not inconsistent with any of the provisions of the Constitution as may [illegible] it necessary or desirable for the purpose of enabling the Court more effectively to exercise

the jurisdiction conferred upon it by or under the Constitution.

The Judges of the Supreme Court to be sworn and to cease on attaining the age of sixty-five years.

141. No Judge of the Supreme Court shall be sworn in or act or continue within the Territory of Ashanti.

Superannuation of Judges of the Supreme Court and compensation to them on their ceasing to hold office.

142. The Supreme Court or the Governor of Ashanti may from time to time with the consent of the Secretary of State by order or rules of Court provide for the granting to Judges of the Supreme Court who have been compulsorily retired for inability to discharge the functions of their offices or who have retired after fifteen years service or after having attained the age of sixty-five years, such annual pensions as may be specified in the order or rules not exceeding in the case of any Judge the annual pension for which he would be eligible if he had served for the full period of his actual service as a Judge of the Supreme Court.

Power of Governor to remove Judges of Supreme Court.

143. If any Judge of the Supreme Court is guilty of misbehaviour or is incapable from infirmity of mind or body or any other cause of properly discharging the duties of his office the Governor may, after such inquiry as he may think fit, remove him from office.

144. The Governor may, notwithstanding anything in section 141 of this Ordinance, refer a question as to the validity of any law made by the Governor in Council for the peace order and good government of Ashanti to the Supreme Court for consideration and the Court may, after such hearing as it thinks fit, report to the Governor its opinion thereon.

Jurisdiction of Supreme Court in matters relating to Ashanti.

145. All authority, civil and judicial, in the Territory of Ashanti shall be exercised in the name of the Supreme Court.

Rules of Court.

146. Subject to the provisions of any law made by Parliament the Supreme Court may from time to time, with the approval of the Governor, make rules for regulating generally the practice and procedure of the Court including—

(a) rules as to the manner of bringing before the Court the cases in which the jurisdiction of the Court may be exercised;

(b) rules as to the persons by whom any proceedings in the Court may be taken;

matter which appears to the Court not to be material;

(c) make an order for discovery by the Court of the enforcement of any of the rights conferred by Part II;

(d) make an order for the endorsement of relevant events on any of documents of title (s. 194);

(e) make an order for the variation, subject to such postponement provisions as may be made by the Court, any restrictions and the duration for such restrictions imposed by the law relating to which application to the Court for such variation may be entitled;

(f) make such the cost of and incidental to any proceedings in the Court must or to the fee to be charged in respect of proceedings thereon;

(g) make such the granting of leave;

(h) make as to stay of proceedings;

(i) make directing for the necessary determination of any question which appears to the Court to be a question or question to be tried for the purpose of trial;

(j) make as to the provision for expenses referred to in clause (b) of article 10;

(k) subject to the provisions of clause (3) with regard under the article may fix the maximum amounts of fees which may be taxed for any purpose, and may provide for the payment of such fees into Pension Fund.

(3) The maximum amounts of fees who may be set for the purpose of clause (2) may vary according to different grades of fees to be solicitors of the Court below or for the proceedings in reference under which it shall be fixed.

Provided that, where the Court hears an appeal under any of the provisions of the Table other than article 11, consist of less than five judges and in the event of the hearing of the appeal the Court is satisfied that the appeal involves a substantial question of law as to the interpretation of the Constitution, the determination of which is necessary for the disposal of the appeal, such Court shall refer the

granting the application of a Court constituted as required by the rules for the purpose of electing any case involving such a question and shall in respect of the chosen subject of the reference comply with such choice.

(2) ... A judgment shall be delivered by the Supreme Court over to other Court and no appeal shall lie against such judgment in accordance with the choice duly delivered to other Court.

(3) ... A judgment and no such choice shall be delivered by the Supreme Court save with the concurrence of a majority of the judges present at the hearing of the case, but nothing in this clause shall be deemed to prevent a judge who does not concur from delivering a dissenting judgment or opinion.

Officers and servants of the Supreme Court

(4) ... Appointments of officers and servants of the Supreme Court shall be made by the Chief Justice or such other judge or officer of the Court as he may direct:

Provided that the President may by rule require that in such cases as may be specified in the rule, no person not already attached to the Court shall be appointed to any office connected with the Court save after consultation with the Public Service Commission.

(5) ... Subject to the provisions of any law made by Parliament the conditions of service of officers and servants of the Supreme Court shall be such as may be prescribed by rules made by the Chief Justice of India or by some other judge or officer of the Court authorised by the Chief Justice of India to make rules for the purpose:

Provided that the rules made under this clause shall in so far as they relate to salaries, allowances, leave or pensions, require the approval of the President.

(6) The administrative expenses of the Supreme Court, including all salaries, allowances and pensions payable to or in respect of the officers and servants of the Court, shall be charged upon the Consolidated Fund of India, and any fees or other moneys taken by the Court shall form part of that Fund.

Authentication

(7) ... In the Schedule and in Articles 7 of Part II, reference to any authoritative question of law or to the authoritative of the

Provided that in relation to any right of any individual member of the subscribers of the Government of India Act, 1935 including any enactment amending or supplementing that Act) existing under or saved as to such Provinces, or of the Indian Independence Act 1947, or of any rule made thereunder.

Chapter V. Comptroller and Auditor General of India

Comptroller and Auditor General of India

148. (1) There shall be a Comptroller and Auditor General of India who shall be appointed by the President by warrant under his hand and seal and shall only be removed from office in like manner and on the like grounds as a Judge of the Supreme Court.

(2) Every person appointed to be Comptroller and Auditor General of India shall before he enters upon his office make and subscribe before the President or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

(3) The salary and other conditions of service of the Comptroller and Auditor General shall be such as may be determined by Parliament by law and until they are so determined, shall be as specified in the Second Schedule:

Provided that neither the salary of a Comptroller and Auditor General nor his rights in respect of leave of absence, pension or age of retirement shall be varied to his disadvantage after his appointment.

(4) The Comptroller and Auditor General shall not be eligible for further office under the Government of India or under the Government of any State after he has ceased to hold his office.

(5) Subject to the provisions of this Constitution and of any law made by Parliament, the conditions of service of persons serving in the Indian Audit and Accounts Department and the administrative powers of the Comptroller and Auditor General shall be such as may be prescribed by rules made by the President after consultation with the Comptroller and Auditor General.

(6) The salaries, allowances, pensions of the officers of the Comptroller

and Audit Fund, including all salaries, allowances and pensions payable to or in respect of persons serving in that office, shall be charged upon the Consolidated Fund of India.

Duties and powers of the Comptroller and Auditor-General

19(1) The Comptroller and Auditor-General shall perform such duties and exercise such powers in relation to the accounts of the Union and of the State and of any other authority or body as may be prescribed by or under any law made by Parliament, and until provision in that behalf is so made, shall perform such duties and exercise such powers in relation to the accounts of the Union and of the State as were conferred on or exercisable by the Auditor-General of India immediately before the commencement of this Constitution in relation to the accounts of the Dominion of India and of Provinces respectively.

Form of accounts of the Union and of States

(2) The accounts of the Union and of the State shall be kept in such form as the Comptroller and Auditor-General of India may, with the approval of the President, prescribe.

Audit reports

(3) The reports of the Comptroller and Auditor-General of India relating to the accounts of the Union shall be submitted to the President, who shall cause them to be laid before each House of Parliament.

(4) The reports of the Comptroller and Auditor-General of India relating to the accounts of a State shall be submitted to the Governor or Rajpramukh of the State, who shall cause them to be laid before the Legislature of the State.

Part V

The Rules in Part A of the First Schedule

Chapter I: General

Definitions

152. In this Part unless the context otherwise requires, the expression "Rule" means a Rule specified in Part A of the First Schedule.

Chapter II: The Tribunal

The Tribunal

Number of the Tribunals and mode of their constitution

153. There shall be a Tribunal for each Rule.

(2) The members of the Tribunal shall be nominated by the Governor and shall be appointed by him, either directly or through a person authorized by him in accordance with the Constitution.

(3) Nothing in the preceding sub-rule shall be deemed to preclude the Governor from appointing any member of the Tribunal to be the President of the Tribunal or from conferring by that Constitution or any authority authorized by the Governor

Appointment of Registrar

153. The Governor of a Rule shall be represented by the Tribunal by a registrar, who shall not be

Place of Sitting of Tribunal

(2) The Tribunal shall hold its sittings during the recess of the Tribunal

(3) The Governor may by order direct that a Tribunal shall

the President resigns the office

(2) Subject to the foregoing provisions of this section a Governor shall hold office for a term of five years from the date on which he enters upon the office

Provided that a Governor shall notwithstanding the expiration of the term continue to hold office until his successor enters upon the office

Qualifications for appointment as Governor

153. A person shall be eligible for appointment as Governor unless he is a subject of Sudan and has completed the age of thirty five years

Conditions of Governor's office

154. (1) The Governor shall not be a member of either House of Parliament or of a House of the Legislature of any State nor shall he hold any office of profit under the Federal Government or of a State or a member of either House of Parliament or of a House of the Legislature of any such State or administer Government and if a member of either House of Parliament or of a House of the Legislature of any such State or administer Government, he shall be deemed to have vacated his seat in that House on the date on which he enters upon the office as Governor

(2) The Governor shall not hold any other office of profit

(3) The Governor shall be entitled without payment of rent to the use of the official residence and shall be entitled to such emoluments allowances and privileges as may be determined by Parliament by law and until provision in that behalf is so made such emoluments allowances and privileges as are specified in the Second Schedule

(4) The emoluments and allowances of the Governor shall not be diminished during the term of office

Oath or affirmation of the Governor

155 Every Governor and every person discharging the functions of the Governor shall before entering upon the office make and subscribe in the presence of the Chief Justice of the High Court exercising jurisdiction in relation to the State or in his absence, the senior most Judge of that Court available an oath or affirmation in the following form that is to say—

I A B do ——— swear in the name of God ——— solemnly affirm that I will faithfully execute the office of Governor (or discharge the functions of the Governor) of ——— (name of the State) and will to the best of my ability preserve protect and defend the Constitution and the law and that I will devote myself to the service and

and Seal of the Bank of ———— [illegible]

[illegible]

Making of the standard of the Treasury Notes and Coin

XIII. The President may make and promulgate such Rules for the making of the standard of the Treasury Notes and Coin as may contemplated and provided for in this Charter.

Power of Governor & general Assembly to call for copies of records & papers of the Bank &c.

XIV. The Governor of the Bank shall have the power to grant permission to persons entitled or necessary of proceedings to be inspected, copied or examined, the existence of any person connected of any officer appointed may have relation to a matter to which the executive powers of the Bank extend.

Extent of executive power of Bank

XV. Subject to the provisions of the Constitution, the executive powers of the Bank shall extend to all matters with respect to which the Legislature of the Bank has power to make laws.

Provided that in any matter with respect to which the Legislature of the Bank and Parliament have power to make laws, the executive powers of the Bank shall be subject to, and limited by, the executive powers respectively conferred by the Constitution or by any law made by Parliament upon the Crown or authorities thereof.

Council of Bank

Council of Bank to advise the Governor

XVI. There shall be a Council of the Bank consisting of the Chief Executive Officer of the Bank and such other persons as the Governor may appoint, which Council shall advise the Governor in the exercise of his powers, and shall meet at such times as the Governor may appoint.

(2) If any question arises whether any matter is or is not a matter in respect of which the Governor is by or under the Constitution required to act in his discretion, the decision of the Governor in his discretion shall be final, and the validity of anything done by the Governor shall not be called in question on the ground that he ought or ought not to have acted in his discretion.

(3) No question whether any kind of or what advice was tendered by Members of the Council shall not by reference to any record.

Who appointed to be Members

XVII. The Chief Executive shall be appointed by the Governor

and the other Member shall be appointed by the Governor on the advice of the Chief Member and the Member shall hold office during the pleasure of the Governor

Provided that on the Rule of Police Buildings Works and Stores there shall be a Member in charge of Medical matters who may be either the Surgeon of the Artificers Guild and Medical Officer or any other such

(2) The Council of Members shall be collectively responsible to the Legislative Assembly of the Fiji

(3) Before a Member enters upon his office the Governor shall administer to him the oath of office and of secrecy according to the form prescribed for the purpose in the Three Schedule

(4) If Members are for any period of not exceeding months absent from the Legislative Fiji Fiji shall with the consent of their Governor cause it to be Member

(5) The salaries and allowances of Members shall be such as the Legislature of the Fiji may from time to time by law determine and until the Legislature of the Fiji so determines shall be as specified in the Second Schedule

The Executive Council for the Fiji

Executive Council for the Fiji

23. (1) There shall be an Executive Council for the purposes of advising the Governor in the government of the Fiji

(2) It shall be the duty of the Executive Council to give advice to the Governor of the Fiji upon such matters and to such persons and in such manner as may from time to time be ordered or required by the Governor and to discharge the functions conferred on them by or under the Constitution or any other law for the time being in force

(3) The Executive Council shall keep secret all matters coming to the knowledge of the Governor and shall advise and communicate with the Governor only as

Conduct of Government Business

Conduct of business of the Executive Council of the Fiji

24. (1) All executive action of the Government of the Fiji shall be expressed to be taken in the name of the Governor

(2) Orders and other instruments made and executed in the name

of the Governor shall be authenticated by such seal as may be directed or made by the Governor and the validity of any order or instrument which is so authenticated shall not be called in question on the ground that it was not made or authenticated in any manner directed by the Governor.

(2) The Governor shall make rules for the more convenient transaction of the business of the Government of the State and for the allocation among Ministers of the said business so far as it is not assigned to Ministers by this Constitution, and subject thereto and to the Constitution regarding those matters in his discretion.

Duties of State Ministers in relation to advising the Governor

(3) It shall be the duty of the State Ministers from time to time—

(a) to recommend to the Governor for the State all measures for the consideration of the Council of Ministers relating to the administration of the affairs of the State and to preparation of legislation for the State Legislature;

(b) to furnish such information relating to the administration of the affairs of the State and proposals of legislation to the Governor as may be called for; and

(c) if the Governor so requires, to submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a Minister but which has not been considered by the Council.

Chapter II—The State Legislature

General

Composition of Legislature of a State

(1) For every State there shall be a Legislature which shall consist of the Governor and

(a) in the State of Bihar, Bombay, Madras, Punjab, the United Provinces and West Bengal, two Houses;

(b) in other States, one House.

(2) Where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House it shall be known as the Legislative Assembly.

Number of members of Legislative Council of a Unit

Provided that the Legislative Council of a Unit having such a Council or for the creation of such a Council in a Unit having no such Council, of the Legislative Assembly of the Unit, shall be satisfied by a majority of the Unit members of the Assembly and by a majority of not less than two thirds of the members of the Assembly present and voting.

Any law referred to in clause (1) shall, unless such law is for the amendment of this Constitution, be reserved for the consideration of the President, and shall not receive assent by the Governor on behalf of the President, unless such law contains such provision.

A bill shall not be introduced in the Council of States or the House of the People or in the Legislative Assembly of a Unit except on the recommendation of the President, if it makes provision for imposing or increasing any tax in which Unit are interested, or for regulating the borrowing by the Government of India or by any Unit, or for imposing, increasing or regulating any duty of customs or any other duty of the same kind as a duty of excise.

Composition of the Legislative Assemblies

Subject to the provisions of article 333, the Legislative Assembly of each Unit shall be composed of members chosen by direct election.

For the purpose of each territorial constituency for the Legislative Assembly of a Unit, there shall be allotted on the basis of the population of that constituency as ascertained at the last preceding census of which the relevant figures have been published, such number of seats as the Governor, after consulting the Election Commission and having regard to the provisions of this Constitution and the principle of securing by the representation in the Legislative Assembly of the Unit adequate representation of the interests of the Scheduled Castes and the Scheduled Tribes in the Unit, may by order specify.

Provided that the total number of members in the Legislative Assembly of a Unit shall be not more than five hundred or less than sixty.

For the purpose of this clause, the expression "territorial constituency" means a Unit and the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published, so far as relates to the census throughout the Unit.

Upon the completion of each census, the representation of the several territorial constituencies in the Legislative Assembly of each

that shall be conducted by such authority in such manner and with effect from such date as Parliament may by law determine

Provided that such registered shall not affect representation in the Legislative Assembly until the dissolution of the then existing Assembly

Membership of the Legislative Council

7 The total number of members of the Legislative Council of the Isle shall not exceed one fourth of the total number of members of the Legislative Assembly of that Isle

Provided that the total number of members of the Legislative Council of the Isle shall in no case be less than forty

Until Parliament by law otherwise provides the composition of the Legislative Council of the Isle shall be as provided in clause 8

8 Of the total number of members of the Legislative Council of the Isle

(a) as nearly as may be one third shall be elected by the elected members of the House of Keys sitting together, and each such elected member may give one vote only

(b) as nearly as may be one third shall be elected by the persons entitled to vote at the election of members of the House of Keys who have been for at least three years registered as owners in the Register of Freeholders or have been for at least three years in succession registered as owners in the Register of Freeholders provided that no person may vote in pursuance of this paragraph in respect of any qualification in respect of which he has already voted in pursuance of the last preceding paragraph

(c) as nearly as may be one third shall be elected by the persons who have been for at least three years registered as electors in the Register of Parliamentary Electors and have their names entered on the Roll of Burgesses and who are not entitled to vote in pursuance of paragraph (b) of this clause each elector may give one vote only

(d) as nearly as may be one third shall be elected by the

member of the Legislative Assembly of the West from
municipal districts who are not members of the Assembly
as the remainder shall be nominated by the Governor in
accordance with the provisions of clause 11.

11. The members of the Council under sub-clauses (a) (b) and (c)
of clause 10 shall be chosen in such territorial constituencies as may be
determined by an order in Council to be made by Parliament and the electors
under the said sub-clauses shall vote and elect in all the constituencies
shall be held in accordance with the system of the alternative vote
by means of the single transferable vote

12. The members to be nominated by the Governor under sub-
clause (c) of clause 10 shall consist of persons who have lived for
a hundred consecutive days at least of such member in the following
manner:—

Number of first Legislative Council

[illegible] seven and six of whom were elected at the first election
[illegible] 13. In every Legislative Assembly of every State which may be
established, shall continue for four years from the date appointed for the
first meeting and no longer and the expiration of the said period
of four years shall operate as a dissolution of the Assembly

Provided that the said period may whilst a Proclamation of
Emergency is in operation be extended by Parliament by law for a
period not exceeding one year at a time and not extending in any
case beyond a period of six months after the Proclamation has ceased
to operate.

14. The Legislative Council of a State shall not be subject
to dissolution, but as nearly as possible one third of the members thereof
shall retire at once in order to be the expiration of every second
year in accordance with the provisions made in that behalf by
Parliament of the

Qualifications for membership of the first Legislative Council

15. A person shall not be qualified to be chosen & [illegible] a seat
in the Legislative of a State unless he—

(a) is a subject of the Queen

(b) is in the case of a seat in the Legislative Assembly
and has been [illegible] for years of age and in the

one of a seat in the Legislative Council, and the other Half years of age and

to possess such other qualifications as may be prescribed by or under any Law made by Parliament

Persons to be disqualified for sitting as Members of both Houses

79 — The House or Houses of the Legislature of the State shall be competent to sit and act in the case of a Vacancy notwithstanding that some Member or Members thereof may not have taken his or their Seat or Seats in such House or Houses, and any Member of either House may resign his Seat by Writing under his hand addressed to the Governor

Power of Governor to convene Joint Sitting of both Houses in certain cases

80 — The Governor may convene the Legislative Assembly in the case of a Bill having originated in the Legislative Council, either House of the Legislature of the State, in both Houses assembled together, and may by such Message require the attendance of members

— The Governor may send messages to the House or Houses of the Legislature of the State, whether with regard to a Bill then pending in the Legislature or otherwise, and a House to which any message is so sent shall with all convenient despatch consider any matter required by the message to be taken into consideration

Power relating to the summoning of the Legislature

81 — At the commencement of every session, the Governor shall address the Legislative Assembly in the case of a Bill having originated in the Legislative Council, both Houses assembled together, and inform the Legislature of the causes of his summons

— Provision shall be made by the rules regulating the procedure of the House or other House for the allotment of time for discussion of the matters referred to in such address, and for the procedure of such discussion over the business of the House

Right of Speaker of Legislative Council to preside at Joint Sittings

82 — Every Minister and the Advocate General for a State shall have the right to speak in, and otherwise to take part in

the proceedings of the Legislative Assembly of the Club or on the vote of a Club during a Legislative Council, the Member would abstain or, upon reference of their hand to the proceedings of any committee of the Legislature of which he may be member, a member that shall not, by reason of the matter, be entitled to vote.

Officers of the Club Legislature

The Speaker and Deputy Speaker of the Legislative Assembly

VII. Every Legislative Assembly of a Club shall, as soon as may be, elect two members of the Assembly to be respectively Speaker and Deputy Speaker thereof, and as often as the office of Speaker or Deputy Speaker becomes vacant the Assembly shall elect another member to be Speaker or Deputy Speaker in the same way.

Speaker may vacate his office of Speaker or Deputy Speaker

VIII. A member holding office as Speaker or Deputy Speaker of an Assembly—

(a) shall vacate his office if he ceases to be a member of the Assembly;

(b) may at any time by writing under his hand address and deliver to the Speaker (if he is Deputy Speaker) and to such member as the Deputy Speaker (if he is Speaker) resign his office; and

(c) may be removed from his office by a resolution of the Assembly passed by a majority of all the then members of the Assembly.

Speaker shall not vote except in the case of equality of votes

Provided that no resolution for the purpose of paragraph (c) of this section shall be of any effect unless it has been passed on two separate days, and unless fourteen days' notice of the intention to move the resolution

Provided further that whenever the Assembly is dissolved the Speaker shall not vacate his office until immediately before the first meeting of the Assembly after the dissolution.

Place of the Deputy Speaker in the absence of the Speaker from any sitting of the Assembly, and power of Deputy Speaker when acting as Speaker

IX. If both the offices of Speaker are vacant, the duties of the office shall be performed by the Deputy Speaker or, if the office of Deputy Speaker is also vacant, by such member of the Assembly as the Governor may appoint for the purpose.

In case of the absence of the Speaker from any sitting of the

Assembly the Deputy Speaker or if he is also absent, such person as may be determined by the rules of procedure of the Assembly or if no such person is present, such other person as may be determined by the Assembly shall act as Speaker.

The Speaker and the Deputy Speaker not to preside while a resolution for his removal from office is under consideration

71. (1) At any sitting of the Legislative Assembly, while any resolution for the removal of the Speaker from his office is under consideration, the Speaker, or while any resolution for the removal of the Deputy Speaker from his office is under consideration, the Deputy Speaker, shall not, though he is a member, preside, and the provisions of clause (2) of article 180 shall apply in relation to every such sitting as they apply in relation to a sitting from which the Speaker or as the case may be, the Deputy Speaker is absent.

(2) The Speaker shall have the right to speak in and otherwise to take part in the proceedings of the Legislative Assembly while any resolution for his removal from office is under consideration in the Assembly and shall, notwithstanding anything in article 189 be entitled to vote only on the first occasion on such resolution or on any other matter during such proceedings but not on the case of an equality of votes.

The Governor may dissolve the Legislative Council

72. The Legislative Council of every State having such Council shall not be subject to be dissolved, but as nearly as may be one-third of the members thereof shall retire as soon as the expiration of every second year in accordance with the provisions made in that behalf by Parliament by law.

Qualifications and disqualifications for membership of the Legislature

73. A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(2) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(3) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(4) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(5) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

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(10) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(11) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(12) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(13) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(14) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(15) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(16) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(17) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

(18) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

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(20) A person holding office as Governor or Rajpramukh of a State specified in Part B of the First Schedule shall not be qualified to be chosen to fill a seat in the Legislature of any State specified in that Part, and if a member of the Legislature of any such State is chosen Governor or Rajpramukh of any such State, his seat in the Legislature shall become vacant on the day on which he enters upon his office as Governor or Rajpramukh.

Council passed by a majority of not less than two-thirds of the whole number of the Council.

Provided that no resolution for the purpose of removing from the Council any Chief Executive Adviser shall be moved unless two days notice has been given of the resolution to move the resolution.

Office of the Deputy Chairman to be vacated on the death, etc., of the Chairman, etc.

10. (1) On the office of Chairman becoming vacant, the office shall be performed by the Deputy Chairman, or if the office of Deputy Chairman is also vacant, by such member of the Council as the Governor may appoint for the purpose.

(2) During the absence of the Chairman from any sitting of the Council the Deputy Chairman or if he is also absent such person as may be determined by the rules of procedure of the Council, or if no such person is present, such other person as may be determined by the Council, shall act as Chairman.

Chairman or the Deputy Chairman not to be a member of the Executive Council or the Legislative Assembly after 1st January, 1964.

11. (1) Any ruling of the Legislative Council, which may invalidate the election of the Chairman from the office or vacate consideration, the Chairman, or which may invalidate the election of the Deputy Chairman from the office or vacate consideration, the Deputy Chairman, shall not, except as is provided in sub-section (2) of section 30 of this Act, be a member of the Executive Council or of the Legislative Assembly or entitled to vote in the election of a member from which the Chairman or as the case may be the Deputy Chairman is elected.

(2) The Chairman shall have the right to speak in, and otherwise to take part in the proceedings of, the Legislative Council any resolution for the removal from office or vacate consideration of the Council and shall, notwithstanding anything in sub-section (1) of this section, only vote on the first occasion on such resolution or on any other matter arising upon proceedings that are in the case of an equality of votes.

Powers and duties of Chairman and Deputy Chairman and Chairman and Deputy Chairman.

12. There shall be vested in the Speaker over the Deputy Speaker of the Legislative Assembly, and in the Chairman over the Deputy Chairman of the Legislative Council, such powers and authorities as may be respectively given by the Legislature of the State by law and, until provision in that behalf is so made, such powers and authorities

or any provided in the Seven Articles

Speaker of the House of Representatives

15th. The House of each House of the Legislature of a State shall have a chosen presiding officer

Provided that nothing in this clause shall in the case of the Legislature of a State having a Legislative Council be construed as preventing the creation of joint sessions of the House of such Legislature

16th. The Legislature of a State may by law regulate the mode of such joint sessions of persons appointed to the presiding office of the House or House of the Legislature of the State

17th. Such decision as may be given by the Legislature of the State with respect to the Electors may after consultation with the Speaker of the Legislative Assembly or the Chairman of the Legislative Council as the case may be make such provision for the withdrawal of the presiding officer of the House of the Legislature of the State

Conduct of Business

Quorum of members to transact business

18th. Every member of the Legislative Assembly or the Legislative Council of a State shall before taking his seat make and subscribe before the Governor or some person appointed in that behalf by him an oath or affirmation according to the form set out for the purpose in the Seven Articles

Voting in Houses, power of Legislature to make laws regulating procedure and conduct of business

19th. Save as otherwise provided in the Constitution all questions at any sitting of a House of the Legislature of a State shall be determined by a majority of votes of the members present and voting other than the Speaker or Chairman or person acting as such

The Speaker or Chairman or person acting as such, shall not vote in the first instance but shall have and exercise a casting vote in the case of an equality of votes

20th. A House of the Legislature of a State shall have power to act notwithstanding any vacancy in the membership thereof and

any proceedings in the Legislature of a State shall be void unless attended by that of a determined and apparently final vote thereon, the vote shall be null & void unless taken by yeas & nays on the journal.

11. Until the Legislature of the State shall by law otherwise provide the governor is entitled to a meeting of a House of the Legislature of a State shall be the members in one month of the total number of members of the House, inclusive of proxies.

12. If at any time during a meeting of the Legislature during or the Legislative Council of a State there is no quorum, it shall be the duty of the Speaker or Chairman or person acting as such, either to adjourn the House or to suspend the meeting until there is a quorum.

Disqualification of Members

Members of State

13. No person shall be a member of both Houses of the Legislature of a State and persons shall be made by the Legislature of the State by law for the members of a person who is elected a member of both Houses of be void in one House or the other.

14. No person shall be a member of the Legislature of two or more States simultaneously in the Naval District and if a person is elected a member of the Legislature of two or more such States then at the expiration of such period as may be prescribed in rules made by the President that person must in the Legislature of all such States shall become vacant, unless he has previously resigned his seat in the Legislature of all but one of the States.

15. If a member of a House of the Legislature of a State

is absent without leave any of the stipulated sessions

in clause 9 of article 10 or

he resigns his seat by writing under his hand addressed to the Speaker of the Chairman or the case may be

his seat shall thereupon become vacant

16. If for a period of sixty days a member of a House of the Legislature of a State is without the permission of the House absent from all meetings thereof the House may declare his seat vacant

Provided that in computing the said period of sixty days no account shall be taken of any period during which the House is prorogued or is adjourned for more than four consecutive days.

Disqualification for membership

78. (1) A person shall be disqualified for being chosen as and for being a member of the Legislative Assembly or Legislative Council of a Unit -

(a) if he holds any office of profit under the Government of India or the Government of any Unit specified in the First Schedule, other than an office declared by the Legislature of the Unit by law not to disqualify its holder;

(b) if he is of unsound mind and stands so declared by a competent court;

(c) if he is an undischarged insolvent;

(d) if he is not a citizen of India, or has voluntarily acquired the citizenship of a foreign State or is under any acknowledgment of allegiance or adherence to a foreign State;

(e) if he is so disqualified by or under any law made by Parliament.

(2) Notwithstanding anything in sub-section (1) of this section, a person shall not be deemed to hold any office of profit under the Government of India or the Government of any Unit specified in the First Schedule by reason only that he is a Minister either for the Union or for such Unit.

Decision on questions as to disqualifications of members

79. (1) If any question arises as to whether a member of a House of the Legislature of a Unit has become subject to any of the disqualifications mentioned in sub-section (1) of section 78, the question shall be referred for the decision of the Governor and his decision shall be final:

Provided that before giving any decision on any such question the Governor shall obtain the opinion of the Election Commission and shall act according to such opinion.

Penalty for sitting or voting before making oath or affirmation under section 75 or when not entitled or when disqualified

80. If any person sits or votes as a member of the Legislative Assembly or the Legislative Council of a Unit before he has complied with the requirements of section 75, or when he knows that he is not qualified or

shall be a disqualification for membership thereof, but the qualification for membership of the Assembly of any person elected to the Legislature of the State, and the disability imposed by this section, shall be removed in case he shall cease to be a Member of the Assembly before the commencement of the next Session of the Legislature.

Powers, Privileges and Immunities of the Legislature and their Members

Power to punish for contempt, and expulsion, and privileges and immunities declared

14. The Legislature of the State shall have power to punish by fine not exceeding one hundred dollars, or imprisonment not exceeding ten days, any person not a member, who shall be guilty of disrespect to the Legislature, by any disorderly or contemptuous behavior in its presence, obstructing any of its proceedings, threatening, assaulting, or abusing any of its members for anything said or done in the House, or by bribing a member, or attempting to bribe him to do or omit to do any act in violation of his duty as a member; and may punish in like manner any officer of the Legislature for misbehavior in his official capacity, or for wilful neglect of duty; and may punish any person for a breach of its privileges, not specifically enumerated in this Constitution, by such fine and imprisonment as may be proper, not exceeding the fine and imprisonment before mentioned; but no imprisonment for the above causes shall extend beyond the period of the next adjournment of the Legislature. Each House may also punish, by imprisonment during its session, any of its members who may be guilty of disorderly or contemptuous conduct in the House, or who shall threaten, assault, or abuse any member for anything said or done in the House, or who shall be guilty of any other breach of its privileges, not specifically enumerated in this Constitution, but such imprisonment shall not extend beyond the session, and no member shall be punished twice for the same offence; but nothing herein contained shall be construed to prevent the Legislature from punishing as for contempt the publication of a correct report of its proceedings.

15. The Legislature of the State shall have power to declare by law what persons, in addition to the Governor, Lieutenant Governor, Secretary of State, Attorney General, Judges of the Supreme Court, Members of the Legislature, Clerks of the Houses of the Legislature, Sheriffs, Coroners, Notaries Public, Justices of the Peace, Constables, Commissioners of Deeds, Commissioners of Emigration, Commissioners of Public Charities and Correction, Commissioners of the Police, Commissioners of Pilots, Commissioners of Health, Commissioners of Fire, Commissioners of Quarantine, Commissioners of Jurors, Commissioners of Excise, Commissioners of Prisons, Commissioners of Parks, Commissioners of Charities, Commissioners of Docks, Commissioners of Streets, Commissioners of Sewers, Commissioners of Bridges, Commissioners of Ferries, Commissioners of Markets, Commissioners of Buildings, Commissioners of Wharves, Commissioners of Piers, Commissioners of Slips, Commissioners of Boundaries, Commissioners of Roads, Commissioners of Highways, Commissioners of Deeds, Commissioners of Appeals, Commissioners of Assessors, Commissioners of Canals, Commissioners of Land Tax, Commissioners of Loans, Commissioners of Quarantine, Commissioners of Jurors, Commissioners of Excise, Commissioners of Prisons, Commissioners of Parks, Commissioners of Charities, Commissioners of Docks, Commissioners of Streets, Commissioners of Sewers, Commissioners of Bridges, Commissioners of Ferries, Commissioners of Markets, Commissioners of Buildings, Commissioners of Wharves, Commissioners of Piers, Commissioners of Slips, Commissioners of Boundaries, Commissioners of Roads, Commissioners of Highways, Commissioners of Deeds, Commissioners of Appeals, Commissioners of Assessors, Commissioners of Canals, Commissioners of Land Tax, Commissioners of Loans,

Members and officers not to be interested

the accompanying Resolution

Legislative Procedure

Provision as to introduction of Bills

(1) In regard to the provisions of sub-sections (2) and (3) of this section a Money Bill shall be deemed to be a Bill containing only provisions dealing with all or any of the following subjects, namely, the imposition, repeal, remission, alteration or regulation of taxation; the imposition for the payment of debt or other financial purposes of charges on public money or the variation or repeal of any such charges; supply; the appropriation, receipt, custody, issue or audit of public money; the raising or guarantee of any loan or the repayment thereof; matters subordinate and incidental to those subjects or any of them. In this subsection the expressions "taxation", "public money" and "loan" respectively do not include any taxation, money or loan raised by local authorities or bodies for local purposes.

(2) A Bill (including an Act Legislative Council of a Bill) shall not be introduced in the Legislative Council of a Bill which has not been passed by the Legislative Assembly and sent to the Legislative Council.

(3) A Bill shall not be passed by the Legislative Council of a Bill which has not been passed by the Legislative Assembly and sent to the Governor for assent.

(4) A Bill which is pending in the Legislative Council of a Bill which has been passed by the Legislative Assembly and sent to the Legislative Council shall lapse on a dissolution of the Assembly.

Mediation in cases of disagreement between the two Houses touching Bills

(5) If after a Bill has been passed by the Legislative Assembly of a Bill having a Legislative Council and transmitted to the Legislative Council—

(a) the Bill is rejected by the Council; or

(b) more than three months elapse from the date on which the Bill is laid before the Council and the Bill has not been passed by it; or

(c) the Bill is passed by the Council with amendments to which the Legislative Assembly will not agree,

the Legislative Assembly may, notwithstanding the non-concurrence of the Council, at any subsequent session with or without any amendments which may have been made or suggested by the Council and agreed to by the Legislative Council, recommend the Bill as passed by the Legislative Council.

(6) If a Bill has been so passed for the second time

by the Legislative Assembly and transmitted to the Legislative Council.

... the Bill is agreed to by the Council, ...

... or more than one month elapses from the date on which the Bill is laid before the Council without the Bill being passed by it, ...

... the Bill is passed by the Council with amendments to which the Legislative Assembly does not agree, ...

the Bill shall be deemed to have been passed by the Houses of the Legislature of the Bill in the form in which it was passed by the Legislative Assembly, but the second time with such amendments (if any) as have been made or suggested by the Legislative Council and agreed to by the Legislative Assembly.

... Money ... the said Bill ... Money Bill.

Money Bills not to be initiated in Legislative Council

... Bill ... Money Bill ... have been passed by the Legislative Assembly of a Bill having a Legislative Council ... and transmitted to the Legislative Council for its recommendations, and the Legislative Council shall within a period of twelve days from the date of its receipt of the Bill return the Bill to the Legislative Assembly with its recommendations, and the Legislative Assembly may thereupon either accept or reject all or any of the recommendations of the Legislative Council.

... the Legislative Assembly accepts any of the recommendations of the Legislative Council, the Money Bill shall be deemed to have been passed by both Houses with the amendments recommended by the Legislative Council and accepted by the Legislative Assembly.

... the Legislative Assembly does not accept any of the recommendations of the Legislative Council, the Money Bill shall be deemed to have been passed by both Houses in the form in which it was passed by the Legislative Assembly without any of the amendments recommended by the Legislative Council.

... a Money Bill passed by the Legislative Assembly and transmitted to the Legislative Council shall not recommend to ...

and indemnity of the Syndicate, Executive, within the said period of twelve days, it shall be deemed to have been passed by the Board, and the remuneration shall accordingly be paid to him as directed by the Syndicate, Executive.

Appointment of Secretary, Bank.

10. The Secretary of the Bank, or Bank shall be deemed to be a Money Bank of a nature only pecuniary dealing with all or any of the following matters, namely:—

(a) the registration, whether transfer, subscription or registration of any kind;

(b) the registration of the borrowing of money or the giving of any guarantee by the Bank or the commencement of the due and regular doing pecuniary obligations undertaken or to be undertaken by the Bank;

(c) the custody of the Consolidated Fund or the Contingency Fund of the Bank, the investment of money and or the withdrawal of money from any such Fund;

(d) the keeping of the books of account of the Consolidated Fund of the Bank;

(e) the checking of any expenditure to be undertaken charged on the Consolidated Fund of the Bank or the examining of the accounts of any such expenditure;

(f) the receipt of money on account of the Consolidated Fund of the Bank or the public account of the Bank or the custody or issue of such money; or

(g) any matter connected with any of the matters specified in sub-clauses (a) to (f).

11. The Bank shall be deemed to be a Money Bank by reason only that it transacts the whole or any part of its pecuniary business or the business is incidental of the functions or the transactions or by reason that it transacts the registration, subscription, transfer, allotment or registration of any loan by any local authority or body of local trustees.

12. If any question arises whether a Bank is deemed to be the Bank of the Bank which has a Syndicate Executive or a Money Bank or not the decision of the Board of the Syndicate, Executive of such Bank

Houses shall be final

No Money shall be appropriated to any Money Bill which shall not have been recommended by the Speaker to the House and agreed to by the House, or to any Amendment to any Money Bill, unless such Amendment shall have been recommended by the Speaker of the House, or agreed to by the House, previously to the passing of such Money Bill

Money Bills

All Money Bills shall originate in the House of Representatives, and shall be subject to Amendments by the Senate, as other Bills

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law

Bills presented to the President

Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by three fifths of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill

Orders, Resolutions, and Votes

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

Power to lay Taxes

To borrow Money on the credit of the United States;

To borrow Money

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To regulate Commerce

To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To establish Naturalization and Bankruptcy

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To coin Money

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To punish counterfeiting

To establish Post Offices and post Roads;

To establish Post Offices

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To promote Science and Arts

To constitute Tribunals inferior to the supreme Court;

To constitute Tribunals

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

To punish Piracies

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To declare War

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

To raise Armies

To provide and maintain a Navy;

To provide a Navy

To make Rules for the Government and Regulation of the land and naval Forces;

To make Rules for Government of Army and Navy

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To call forth the Militia

To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To organize the Militia

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

To exercise Legislation in certain Cases

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof

To make all Laws necessary for carrying into Execution the foregoing Powers

The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person

Migration of certain Persons not to be prohibited

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it

Habeas Corpus

No Bill of Attainder or ex post facto Law shall be passed

No Bill of Attainder or ex post facto Law

No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration hereinbefore directed to be taken

No Capitation Tax

No Tax or Duty shall be laid on Articles exported from any State

No Tax on Exports

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear or pay Duties in another

No Preference to Ports

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time

Money drawn from Treasury

No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State

No Title of Nobility

No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility

No State to enter into Treaty, coin Money, emit Bills of Credit, make any Thing but gold and silver Coin a Tender in Payment of Debts, pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility

No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing its inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Controul of the Congress

No State to lay Imposts or Duties on Imports or Exports, except for inspection Laws, net Produce thereof to be for the Use of the Treasury, and such Laws subject to Revision and Controul of the Congress

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay

No State to lay Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay

That it is relevant that Notice in Writing shall accordingly within a period of six months from the date of receipt of such warrant of the appointment by the Minister or Ministers with or without amendment of which is intended upon it the Provincial Act to be made law

Number and Remuneration Matters

Annual Estimates Statement

Be it The Governor shall in regard of every Financial year cause to be laid before the House or Houses of the Legislature of the State a statement of the estimated receipt and expenditure of the State for that year in the Bill referred to in the annual Financial Statement.

2. The estimate of expenditure contained in the annual Financial Statement shall show separately -

a. the sum required to meet expenditure charged by the Constitution as expenditure charged upon the Consolidated Fund of the State and

b. the sum required to meet other expenditure proposed to be made from the Consolidated Fund of the State

and such distinguish expenditure to remain unaltered from other expenditure.

3. The following expenditure shall be expenditure charged on the Consolidated Fund of said State -

a. the emoluments and allowances of the Governor and other expenditure relating to his office;

b. the salaries and allowances of the Judges and Deputy Judges of the Supreme Court and the sum of a Bill having a Legislative Council, also of the Chairman and the Deputy Chairmen of the Legislative Council;

c. all charges for which the State is liable in respect of interest, sinking fund charges and redemption charges, and other expenditure relating to the raising of loans and the service and redemption of debt;

d. expenditure in respect of the salaries and allowances of Judges of any High Court;

to any case required to which any preferred decree must of any court is entitled to have

to any other remedies to have of the Constitution or by the Guidance of the Court of law to be in force

Power to Chancery Court to make rules of court

XXVI. And each of the several to which the jurisdiction respect given the Chancellor's Court of the Peel shall not be exercised by the said of the Speaker Assembly but nothing in this Act shall restrict or prevent by the decrees in the Guidance of any of those courts

2. And each of the said courts to which the said jurisdiction shall be exercised as the Lord of Council by general the Speaker Assembly and the Speaker Assembly shall have power of court to of rules of court to any demand in the said to any demand respect of a violation of the several practice thereto

3. Provided for a general shall be made except in the recommendation of the Governor

Chancery Fees

XXVII. And as to any fee of the general costs solicitors fees thereof made by the Assembly there shall be authorized a Table of fees to the superintendence and of the Chancellor's Court of the Peel of all courts respect of and

to the general or court of the Assembly and

to the chancellor respect in the Chancellor's Court of the Peel the said Assembly in any case the several duties to the aforesaid pleasure by law before the Act in force

2. All emoluments shall be payment of any such Peel in the Hon. or other Hon. of the Guidance of the Peel which said law the effect of varying the amount or altering the distribution of any grant or court or of varying the amount of any respect in the Chancellor's Court of the Peel and the duties of the fees pleasure or of whether an emolument is customarily made the same shall be fixed

3. Subject to the provisions of sections XXV and XXVI as to any shall be authorized from the Chancellor's Court of the Peel except such superintendence made by that power in accordance with the

provisions of this article.

Supplementary assessments to be made

(3) In The Governor shall —

(a) of the several sums collected by way rate rent or otherwise with the provisions of article [illegible] to be applicable to a particular service for the several financial years ending on the anniversary of that year or otherwise and the surplus during the several financial years for supplementary or additional expenditure when any such surplus not contemplated in the several financial statements for those years or

(b) of any money has been placed to any reserve during a financial year in excess of the several provisions for that service and for that purpose

cause to be laid before the House or the House of the Legislature of the Port another statement showing the estimated amount of that surplus or excess as the case may be and the Legislative Assembly of the Port a statement for each service in the same way as

(c) The provisions of articles [illegible] and [illegible] shall have effect in relation to any such statement and supplementary or statement and also to any law of the Port authorising the appropriation of moneys out of the Consolidated Fund of the Port as they have effect in relation to the annual financial statement and the supplementary statement thereon or a statement for a financial year but as though the supplementary appropriation provisions of the Consolidated Fund of the Port or any such supplementary or grant

Bills to amend the Constitution to be reserved

(4) It shall be lawful for the Governor [illegible] Legislative Assembly of the Port and have been —

and made any grant in relation to any service of the estimates supplementary for a head of any financial year showing the application of the immediate preceding or which for the making of such grant and the passing of the law as in relation with the provisions of article [illegible] to which supplementary

[illegible] shall make a grant for working on a particular channel when the reserve of the Fish class on account of the respective or the undivided shares of the owners in channel cannot be dealt with the district working [illegible] grant on an annual financial statement.

And shall make an exceptional grant which from a term of the several owners of any [illegible] grant

and the Legislature of the Fish shall have power to enforce by law the collection of moneys from the Consolidated Fund of the Fish for the purposes for which the said grant are made.

(2) The provisions of article VII and VIII shall have effect in relation to the working of any grant under clause (1) and to any bonds made under those clauses as they have effect in relation to the working of a grant made under any exploration enactment or the annual financial statement and the law for the time being in force relating to moneys out of the Consolidated Fund of the Fish if more and expenditure.

Miscellaneous provisions relating to Fish

XIV.—(1) Fish or exceptional working license by way of the earlier provided in and shall be (1) of clause (1) of article VII shall not be authorized or varied except on the recommendation of the Executive and a Fish working and licensee shall not be entitled as a right to the grant.

Provided that no recommendation shall be required under the above for the varying of any exceptional working provisions for the satisfaction or addition of any kind.

(2) Fish or exceptional shall not be granted or made pursuant to any of the earlier referred to unless only that it provides for the reduction of time or other pecuniary benefits or for the grant is required of for the licensee or for the person mentioned only more than it provides for the exploration, activities, measures, whatever regulations of any kind whatsoever or duty for the kind to be done.

(3) Fish which, if provided and brought into operation, would involve expenditure from the Consolidated Fund of Fish shall not be passed by a House of the Legislature of the Fish unless

the Governor has recommended to that House the consideration of the Bill

Provision Necessity

Bill of Attainder

[illegible] A House of the Legislature of a State may not make rule for regulating, subject to the provisions of the Constitution, Elections and the conduct of its business.

Each rule so made under clause (1) shall be of provisional and shall cease to have effect immediately after the commencement of the Constitution with respect to the Legislature to the corresponding House shall have effect in relation to the Legislature of the State subject to such modifications and adaptations as may be made therein by the Speaker of the Legislative Assembly or the Chairman of the Legislative Council, as the case may be.

(3) Save as aforesaid, during a Session of the Council, the Secretary of the Legislative Council and the Speaker of the Legislative Assembly and the Chairman of the Legislative Council, may each make rules as to the procedure with respect to communication between the two Houses.

Regulation by law of procedure in the Legislature of the State in relation to certain matters

(1) The Legislature of a State may, for the purpose of the due discharge of its functions, regulate by law the procedure of, and the conduct of business in, the House or Houses of the Legislature of the State in relation to any provision made in any Bill for the amendment of any law of the Constituent Council of the State and of and in any discussion of any law so made in consultation with any rule made by the House or either House of the Legislature of the State under clause (1) of article 208 as well any rule or standing order having effect in relation to the Legislature of the State under clause (1) of that article and however shall proceed.

Language to be used in the Legislature

[illegible] Notwithstanding anything in Part XVII, but subject to the provisions of article 348, business in the Legislature of a State shall be transacted in the official language or languages of the State or in Hindi or in English

Provided that the Speaker of the Legislative Assembly or Chairman of the Legislative Council, as the case may be, or person acting as such, may allow any

may do any thing which may conduce to the more orderly and effectual discharge of his duty, and the maintenance of the dignity of the Council.

And be it further enacted by the authority aforesaid, That the Speaker of the Legislative Council of this Province, who shall be elected in pursuance of this Act, shall hold his office during the continuance of the Council to which he shall be elected, unless he shall sooner resign his office of Speaker, or his seat in the Council, or be removed from his office of Speaker by the Governor, with the advice of the Council, or unless the Council shall sooner be dissolved by the Governor.

Speaker may vote as a member of the Council

II. And be it enacted by the authority aforesaid, That the Speaker of the Legislative Council of this Province, shall have a vote in the Council as a member thereof, and shall be entitled to the same rights and privileges as any other member of the Council.

Speaker not to vote in case of an equality of votes

III. And be it enacted by the authority aforesaid, That the Speaker of the Legislative Council of this Province shall not have a casting vote in case of an equality of votes.

Speaker may appoint a deputy

IV. And be it enacted by the authority aforesaid, That it shall be lawful for the Speaker of the Legislative Council of this Province, from time to time, by writing under his hand, to appoint a Deputy to perform the duties of his office during his absence, with such restrictions, limitations and conditions as he may think fit, and by the same or any other writing under his hand at his pleasure to revoke such appointment.

Deputy Speaker may vote as a member of the Council

V. And be it enacted by the authority aforesaid, That the Deputy Speaker of the Legislative Council of this Province, shall have a vote in the Council as a member thereof, and shall be entitled to the same rights and privileges as any other member of the Council.

Deputy Speaker not to vote in case of an equality of votes

VI. And be it enacted by the authority aforesaid, That the Deputy Speaker of the Legislative Council of this Province shall not have a casting vote in case of an equality of votes.

Chapter V. Speaker Pro Tem of the Council

Speaker pro tem may be appointed when the Speaker is absent

I. And be it enacted by the authority aforesaid, That whenever the Speaker of the Legislative Council of this Province, and the Deputy Speaker thereof, shall both be absent from the Council, it shall be lawful for the Governor to appoint a member of the Council to perform the duties of Speaker during the absence of the Speaker and Deputy Speaker, and such member shall have a vote in the Council as a member thereof, and shall be entitled to the same rights and privileges as any other member of the Council.

Speaker pro tem may vote as a member of the Council

II. And be it enacted by the authority aforesaid, That the Speaker pro tem of the Legislative Council of this Province, shall not have a casting vote in case of an equality of votes.

Speaker pro tem not to vote in case of an equality of votes

to an Act of the Legislature of the State conferring the same powers with the Constitution have been enacted under having been assented to by the consideration of the Province of Canada & had received the assent of the Province

to the Governor in council under the seals shall have the same force and effect as an Act of the Legislature of the State enacted & by the Governor & Council and Parliament

to which has taken the Legislative Assembly of the State or when there is Legislative Council in the State before both the Houses and shall cause a record of the reservation of an order from the community of the Legislature or of before the reservation of that record a resolution shall thereupon also passed by the Legislative Assembly and agreed to by the Legislative Council of any after the passing of the resolution or in the case may be in the resolution being agreed to by the Council and

to any the withdrawal of any time by the Governor

Explanation When the House of the Legislature of a State having a Legislative Council are summoned & assembled on different days the period of an order shall be reckoned from the date of those days for the purpose of this clause

in If and so far as an Ordinance under this article made any provision which would be void if enacted in an Act of the Legislature of the State enacted & by the Governor & said Council

Provided that for the purpose of the provisions of the Constitution relating to the effect of an Act of the Legislature of a State which is reserved for an Act of Parliament or an ordinance has such effect if a notice enacted in the Governor's Act or Ordinance when published under the order is repugnant of such time from the Province shall be deemed to be an Act of the Legislature of the State which has been reserved for the consideration of the Province and enacted & by him

Chapter V – The High Court of the State

High Court to be established

17. There shall be a High Court for each State.

In the exercise of the Constitution the High Court may prohibit any person or authority from doing any thing which, when done, would be in excess of the Constitution and shall be issued to the High Court of the corresponding State.

The provisions of the Constitution shall apply to every High Court referred to in the article.

High Court to be a court of record

18. Every High Court shall be a court of record and shall have all the powers of such a court including the power to punish for contempt of itself.

Number of the High Court

19. Every High Court shall consist of a Chief Justice and such other Judges as the Standard may from time to time determine necessary to appoint.

Provided that the Judges so appointed shall not be less in number than seven unless in the Standard may from time to time by order fix a smaller number of Court.

Appointment and qualification of the Judges of the High Court

20. Every Judge of the High Court shall be appointed by the Standard by warrant under the hand and seal of the Standard with the Chief Justice of India, the Governor of the State and in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and shall hold office until he attains the age of sixty years.

Provided that –

(a) a Judge may by writing under his hand and seal of the Standard resign his office;

(b) a Judge may be removed from his office by the Standard on the recommendation or address to the Standard by the majority of the Supreme Court;

(c) the office of a Judge shall be vacated by his being appointed by the Standard to be a Judge of the Supreme Court or by his being transferred by the Standard to any other High Court within the territory of India.

(a) A person shall not be qualified for appointment as a Judge of a High Court unless he is a citizen of India and—

(a) has for at least ten years held a judicial office in the territory of India; or

(b) has for at least ten years been an advocate of a High Court or of two or more such Courts in succession.

Explanation: For the purpose of this clause—

(a) in computing the period during which a person has been an advocate of a High Court, there shall be included any period during which the person has held judicial office after he became an advocate;

(b) in computing the period during which a person has held judicial office in the territory of India or has been an advocate of a High Court, there shall be included any period before the commencement of the Constitution during which he has held judicial office or any court which exercised before the aforesaid day the jurisdiction of a Judge of a High Court or any court subordinate to such a Court.

Authority for appointment of Judges of High Court

(2) Every person appointed a Judge of a High Court shall, before he enters upon his office, make and subscribe before the Governor of the State, or some person appointed in that behalf by him, or on his behalf, an oath according to the form set out for the purpose in the Third Schedule.

Term of office of Judges of High Court

(3) A person who holds office as a Judge of a High Court shall hold office until he attains the age of sixty years.

Provision as to the acting Judges

(4) A person who has held office as a Judge of a High Court after the commencement of the Constitution shall not plead or act in any court or before any authority within the territory of India.

Removal of Judges

220. There shall be a Court for the Judges of each High Court and others as are specified in the Second Schedule.

2. Every Judge shall be entitled to such allowances and to such rights or rights of leave of absence and pension as may from time to time be determined by or under law made by Parliament and until so determined, to such allowances and rights as are specified in the Second Schedule.

Provided that neither the allowances of a Judge nor his rights or rights of leave of absence or pension shall be varied to his disadvantage after his appointment.

Transfer of Judge from one High Court to another

221. The President may after consultation with the Chief Justice of India transfer a Judge from any High Court to any other High Court other than the Court of which he is for the time being a Judge.

2. Where a Judge is so transferred he shall during the period he serves as a Judge of the other Court be entitled to receive in addition to his salary such compensatory allowance as might be determined by Parliament by law and until so determined such compensatory allowance as the President may by order fix.

Temporary appointment of Judge of High Court

222. When the office of Chief Justice of a High Court is vacant or when any such Chief Justice is by reason of absence or otherwise unable to perform the duties of his office the duties of the office shall be performed by such one of the other Judges of the Court as the President may appoint for the purpose.

Appointment of retired Judges of High Court

223. Notwithstanding anything in the Chapter, the Chief Justice of a High Court for any State may at any time with the previous consent of the President request any person who has held the office of a Judge of that Court or of any other High Court to sit and act as a Judge of the High Court for that State, and every such person so requested shall while so sitting and acting be entitled to such allowances as the President may by order determine and have all the jurisdiction, powers and privileges of, but shall not otherwise be deemed to be a Judge of that High Court.

Provided that nothing in this article shall be deemed to require any such person as aforesaid to sit or act as a Judge of that High

Court under the seal of the Court.

Jurisdiction of Courts

213. Subject to the provisions of the Constitution and to the powers of any law of the appropriate Legislature made by virtue of powers conferred in that behalf by the Constitution, the jurisdiction given to the Courts of any state by the High Court and the respective powers of the judges thereof in relation to the administration of justice in the Courts including any power to make rules of Court and to regulate the sittings of the Court and of members thereof sitting alone or in Divisional Courts, shall be the same as immediately before the commencement of the Constitution.

Provided that any such rules, in so far as they confer original jurisdiction on any of the High Courts with respect to any matter concerning the revenue or concerning any act ordered or done in the collection thereof, or in part immediately before the commencement of the Constitution shall no longer apply to the exercise of such jurisdiction.

Power of other Courts to issue writs etc.

214. Notwithstanding anything in section 32 any High Court shall have power throughout the territories in relation to which it exercises jurisdiction to issue any writs or authority, including any appropriate writs any Government within those territories directing, ordering and in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari or any of them, for the enforcement of any of the rights conferred by Part III and for any other purpose.

2. The power conferred on a High Court by clause (1) shall not be in derogation of the power conferred on the Supreme Court by clause (2) of article 32.

Power of supervision over Courts by High Court

215. Every High Court shall have superintendence over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction.

216. Without prejudice to the generality of the foregoing provision, the High Court may

(a) call for returns from such courts;

(b) make and issue general rules and prescribe forms for regulating the practice and proceedings of such courts; and

(c) prescribe forms in which books, entries and accounts shall be

shall by the Officer of any such court.

(3) The High Court may make rules of practice to be observed by the Sheriff and all clerks and officers of such courts and generally with respect to any matter relating thereto.

Provided that any rules made by or under the authority of this section shall not be inconsistent with the provisions of any law for the time being in force and shall require the previous approval of the Governor.

(4) Nothing in this section shall be deemed to confer on a High Court power of superintendence over any court or tribunal established by or under any law relating to the Armed Forces.

Power to transfer cases to High Court

(5) If the High Court is satisfied that a case pending in a court subordinate to it involves a substantial question of law as to the interpretation of the Constitution the determination of which is necessary for the disposal of the case it shall withdraw the case and may—

(a) either dispose of the case itself; or

(b) determine the said question of law and return the case to the court from which the case has been so withdrawn together with a copy of its judgement on such question and the said court shall on receipt thereof proceed to dispose of the case in conformity with such judgement.

Appointment of officers of the Court

(6) The appointment of officers and servants of a High Court shall be made by the Chief Justice of the Court or such other Judge or officer of the Court as he may direct:

Provided that the Governor of the State in which the High Court has its principal seat may by rule require that no such person as may be specified in the rule or person not already subject to the Court shall be appointed to any office connected with the Court save after consultation with the Public Service Commission.

(7) Subject to the provisions of any law made by the Legislature of the State, the conditions of service of officers and servants of a High Court shall be such as may be prescribed by rule made by the Chief Justice of the Court or by some other Judge or officer of the Court authorised

by the Chief Justice of each such Division.

Provided that the said rules shall not be in any respect inconsistent with any Act of Parliament or Statutory Instrument which extends to England and Wales.

3. The administrative expenses of the High Court including such salaries allowances and pensions payable to or in respect of the officers and servants of the Court shall be charged upon the Consolidated Fund of the State and any fees or other moneys taken by the Court shall form part of that Fund.

Subject to the provisions of this Act and of any Act passed after the passing of this Act

IV. Subject as may be otherwise provided by this Act or by any Act passed after the passing of this Act or by rules of the High Court to be made in pursuance of this Act the jurisdiction of the High Court and the jurisdiction of the Court of Appeal in respect of any matter pending in the High Court or in appeal therefrom shall be exercised as nearly as may be in accordance with the rules following

Rules as to the Courts in which matters are to be disposed of and as to the mode in which they are to be dealt with as regards pleading evidence and practice

(1) Save as in this Act otherwise expressly provided nothing in this Act shall take away or abridge any jurisdiction heretofore exercised by the High Court or any judge thereof or any person acting as a judge of the High Court whether sitting in Court or in Chambers or elsewhere or alter the mode in which such jurisdiction is to be exercised

(2) Any cause or matter may be commenced in the High Court

(3) Any cause or matter pending in the High Court or in appeal therefrom may be dealt with by the Court of Appeal

(4) Any cause or matter may be heard partly in one Court and partly in the other

(5) Any cause or matter may be heard and determined notwithstanding that the relief sought may include relief which before the passing of this Act could only be obtained in the Court of Chancery or in the Court of Probate or in the Court of Admiralty or in the Court for Divorce and Matrimonial Causes or in the Court of Bankruptcy or in the Court of Common Pleas at Lancaster or in the Court of Pleas at Durham

(6) Any cause or matter may be heard and determined notwithstanding that it is not brought in the County Court or in the Court of Chancery of the County Palatine of Lancaster or in the Court of Pleas at Durham

(7) Any cause or matter may be heard and determined notwithstanding that it is not brought in the Court of Bankruptcy

Subject to rules

V. Where a High Court has jurisdiction in relation to any matter any Writ required in the Court Whether at or in relation to a Cause and any order not being part of the Writ

in reference to the Practice & the Time or in relation to the Judge of a High Court shall be considered as

reference to the Trustees of the Port to whom the Board have succeeded; and

(b) the reference to the appointed day for the Trustees of each former body to be substituted; and shall be construed as a reference to the appointed day for the Trustees of the Port to whom the substituted body or officer or any of its officers or any person having power in relation to that Port succeeded by the Port Trustees of the Trustees; and

(c) reference to the Constitution Trust of the Port shall be construed as reference to the Constitution Trust of the Port to which the Trust has succeeded.

Chapter V—Subordinate Powers

Appointment of Advisory Committee

233.—(1) The Secretary of State shall, and the Scottish Ministers may, by Order made by statutory instrument, direct the Trustees of the Port to establish and maintain a committee (in this Act referred to as "the Advisory Committee") to advise the Trustees on such matters relating to the harbour, docks and navigation of the Port as may be specified in the Order.

(2) The Advisory Committee shall consist of such persons as may be appointed by the Secretary of State or, as the case may be, the Scottish Ministers, after consultation with the Trustees.

(3) The Trustees shall pay to the members of the Advisory Committee such remuneration and such travelling and other allowances as the Secretary of State or, as the case may be, the Scottish Ministers may determine.

(4) The Trustees shall provide the Advisory Committee with such officers and such accommodation, facilities and services as the Committee may reasonably require for the performance of its functions.

(5) The Trustees shall consult the Advisory Committee before making any alteration in the constitution of the Committee.

(6) The Trustees shall consult the Advisory Committee before making any alteration in the constitution of the Committee.

(7) The Trustees shall consult the Advisory Committee before making any alteration in the constitution of the Committee.

power any right of action which he may have under the law regulating the creation of the estate or in enforcing the Right Trust to which the estate does in accordance with the condition of the estate has created such his

Interpretation

138. In the Chapter—

(a) the expression "defined people" includes people of the city and county, established defined people, general defined people, unattached defined people, local people, the small town municipal boundary magistrate, additional chief promissory magistrate, county people, additional borough people and unattached borough people;

(b) the expression "judicial review" means a review exercised by the performance of functions conferred by Part 3 of the Act of defined people and other civil persons by the exercise of the Act of defined people.

Interpretation power of the Minister to make regulations

139. The Governor may by Order in Council direct that the foregoing provisions of this Chapter and any rule and thereunder shall with effect from such date as may be fixed by him in that behalf apply in relation to any class or classes of magistrate on the Roll as they apply in relation to persons appointed to the particular courses with Roll subject to such exceptions and modifications as may be specified in the said Order.

Part VII

The Rules in Part V of the First Schedule

Modifications of the Rules in Part V of the First Schedule in their application to Part VII of that Schedule

13. The provisions of Part V shall apply in relation to the Rules specified in Part VII of the First Schedule as they apply in relation to the Rules specified in Part V of that Schedule, subject to the following modifications, namely—

(a) for the word "General" wherever it occurs in the said Part V, except where it occurs for the second time in sub-rule (2) of rule 1, the word "Supreme" shall be substituted;

(b) in rule 10, for the word and letter "Part V" the word and letter "Part VII" shall be substituted;

(c) rules 13, 14 and 15 shall be omitted;

(d) in rule 16—

(i) in clause (a) for the word "Secretary" the word "Council" shall be substituted;

(ii) for clause (c), the following clause shall be substituted, namely—

"(c) the Supreme Court may order the fees to be taxed by the Taxing Officer of the Court in accordance with the Scale of Fees set out in the Fifth Schedule and shall be entitled to such allowances and charges as the Taxing Officer may, in general or special cases, allow";

(iii) in clause (d), the word "Lieutenant" shall be omitted;

(1) In article 112 after the word "Secretary" of State" insert the word "to" and after the word "Secretary" insert the words "of State" and in the same article after the word "Secretary" insert the words "of State"

(2) In article 113 for the words "shall be" substitute the following words "shall be established, namely:—

"Provided that in the Court of Session there shall be a Register of Deeds, Writs and other documents in charge of the Keeper of the Records of Court and Archives shall in any other case"

(3) In article 114, for the words "the following words shall be substituted, namely:—

"(a) The party first above shall be a Solicitor who is not a member of the Diplomatic and

(b) in the Court of Appeal in Malta

(c) in other Courts any Person"

(4) In article 115, for the words "as are provided in the Second Schedule" the words "to the Diplomatic may, whichever shall be substituted"

(5) In article 116, for the words "as soon immediately before the commencement of the Constitution applicable to the case of members of the Legislative Assembly of the corresponding Person" the words "to the Diplomatic may, whichever shall be substituted"

(6) In clause (1) of article 120 —

(a) for sub-clause (a), the following sub-clause shall be substituted, namely —

"(a) the allowances of the Diplomatic and the administrative authority of the office or allowances by the President by agreement or special order;"

(b) for sub-clause (f), the following sub-clause shall be substituted, namely —

"(f) in the case of the Court of Summary Tenders a sum of fifty one lakhs of rupees required to be met annually if the Parliament shall under the eventual authority

and before the commencement of the Examination by the Clerks of the Senate Clerks of Commons and Clerks for the Examiners of the United States of Commons and Clerks

or any other expenditure ordered by the Examiners or by the Legislature of the State by law to be incurred

10. And be it [illegible] that in lieu of the following clauses shall be substituted namely—

"In Case such new and certain clause 11 the rule of Practice and Standing Order or Rule consecutively before the commencement of the Examination with respect to the Legislature for the State or when a House of the Legislature for the State another the rule of practice and standing order or Rule consecutively before such commencement with respect to the Legislature Assembly of such Province as may be applied in that behalf by the Representatives of the State shall have effect in relation to the Legislature of the State subject to such modifications and variations as may be made thereto by the Speaker of the Legislative Assembly or the Chairman of the Legislative Council as the case may be"

11. In clause 11 of said Act for the word "Governor" the word "Lieutenant Governor" shall be substituted

12. And be it [illegible] the following subsidy shall be substituted namely—

Payment of Judges

"There shall be paid to the Judges of such Superior Courts as may be established by the Province of the constitution with the Representative

Every Judge shall be entitled to such allowances and to such rights in respect of leave of absence and pension as may from time to time be determined by or under law made by Parliament and until so determined to such allowances and rights as

Part VIII

The Duke in Part V of the Third Schedule

Amendment of Duke in Part V of the Third Schedule

(1) In Legislative Assembly Election Order 1984 (in this Part referred to as "the Principal Order"), in the Third Schedule (which relates to the Duke of Kent Electoral Division), in Part V (Electoral Divisions in Dukedom of Gwynne), for the words from "Dukedom of Gwynne" to the end of the Part there shall be substituted the words "Dukedom of Gwynne—

(a) the Electoral Division of Duke of Kent Central;

(b) the Electoral Division of Duke of Kent East; and

(c) the Electoral Division of Duke of Kent West."

Transitional provisions relating to Duke of Kent Central, Duke of Kent East and Duke of Kent West

(2) Notwithstanding anything in the Principal Order, but subject to paragraph (3), the Electoral Division of Duke of Kent Central, the Electoral Division of Duke of Kent East and the Electoral Division of Duke of Kent West shall, for the purposes of the election of members of the Legislative Assembly to be held on the 15th day of October 1984, be treated as if they were—

(a) the Electoral Division of Duke of Kent Central, the Electoral Division of Duke of Kent East and the Electoral Division of Duke of Kent West, respectively, as constituted by the Principal Order as amended by paragraph (1); and

(b) the Electoral Division of Duke of Kent Central, the Electoral Division of Duke of Kent East and the Electoral Division of Duke of Kent West, respectively, as constituted by the Principal Order as amended by paragraph (1) and by the Legislative Assembly Election (Amendment) Order 1984.

(3) Where, by virtue of paragraph (2), a person is entitled to vote in the Electoral Division of Duke of Kent Central, the Electoral Division of Duke of Kent East or the Electoral Division of Duke of Kent West at the election of members of the Legislative Assembly to be held on the 15th day of October 1984, he shall not be entitled to vote in any other Electoral Division at that election.

(2) Any rule that is referred to in section 1 shall not be deemed to be an amendment of the Constitution for the purposes of section 10 notwithstanding that it contains any provision which amends or has the effect of amending the Constitution.

High Court to be Court of Record and Seal thereof

10.(1) There shall be established a High Court of Justice, which shall be called the High Court of the Turks and Caicos Islands and in this Constitution and any other law is referred to as the High Court and shall be a superior court of record.

(2) The provisions of Chapter VI of Part II shall apply in relation to the High Court referred to in subsection (1) as they apply in relation to a High Court referred to in section 104 subject to such modifications or exceptions as Parliament may by law provide.

(3) Subject to the provisions of this Constitution and to the provisions of any law of the appropriate Legislature made by virtue of powers conferred on that Legislature by or under this Constitution, every High Court existing immediately before the commencement of this Constitution shall continue as the High Court of the Turks and Caicos Islands as respects which provision shall continue to exercise such jurisdiction as is vested in that Court at such commencement.

(4) Nothing in this section shall prejudice the power of Parliament to establish by law the jurisdiction of a High Court to any part of the Turks and Caicos Islands in addition to or from any part of the Turks and Caicos Islands to which that jurisdiction extends immediately before the commencement of this Constitution.

Privy Council

11.(1) Subject to the provisions of this section, the constitution, powers and procedure of the Privy Council shall be the same as they were immediately before the commencement of this Constitution.

(2) The management of and control of revenue vested in Her Majesty in right of Her Government of the Turks and Caicos Islands shall be exercised and administered by the Minister of Finance.

Writ to
the Treasurer or Chief of the
Exchequer and the Barons
and others of that Exchequer

Remembrance of Fealty and Homage done to the King at Westminster in the Octave of Saint Hilary

We by the Grace of God Treasurer or Chief of the Exchequer and the Barons of the Exchequer of Our Lord the King Edward and Remembrancer of the Treasurer and of the Exchequer of the said Lord the King Edward Son of King Henry Greeting Know ye that

We Treasurer and Barons and others of the Exchequer aforesaid have received the Fealty and Homage of Master Richard de Burgh Clerk Parson of the Church of Saint Mary of Athlone in the County of Roscommon in the Diocese of Elphin

In Witness whereof We have caused these Our Letters to be made Patent Witness Ourself at Westminster the Octave of Saint Hilary in the Year of the Reign of the said Lord King Edward the Twenty-fifth

By Writ of Privy Seal

Part XI

Relations between the Courts and the Police

Chapter 1 Jurisdiction, Prohibition and Mandamus of Inferior Courts

Inferior Courts and the Supreme Court

Writs of Prohibition and Mandamus

111. (1) Subject to the provisions of the Constitution, Parliament may make laws for the issue of a writ from the Supreme Court, and the Supreme Court may issue writs for the purposes of this Part.

(2) No law made by Parliament shall be deemed to be invalid on the ground that it would have made a different provision.

Effect of the issue of writs of Prohibition or Mandamus

112. Notwithstanding anything in clause (1) of article 111, Parliament may not make laws with respect to any of the matters enumerated in List I in the Seventh Schedule to the Constitution, except to the extent specified in the Concurrent List.

(2) Notwithstanding anything in clause (1), Parliament may, subject to clause (3), by law confer on the Supreme Court such powers as Parliament may think fit with respect to any of the matters enumerated in List II in the Seventh Schedule to the Constitution, except to the Concurrent List.

(3) Subject to clauses (1) and (2), the Supreme Court may exercise all the powers conferred on it by Part XII of the Constitution in relation to any matter specified in any list thereof with respect to any of the matters enumerated in List II in the Seventh Schedule to the Constitution, except to the Union List.

(4) Parliament may, by law, make provision with respect to any

made for any part of the County of Suffolk not included in Division One of the West Suffolk Parliamentary Division and which is or would be connected to the Port [illegible]

Power of Parliament to provide for appointment of persons to collect and receive rents

IV. And be it further enacted that it shall be lawful for the Commissioners of Her Majesty's Treasury for the time being by any Warrant or Warrants under their Hands to appoint such Persons as they shall think fit to collect and receive all Rents and Profits which shall become payable to Her Majesty in respect of the Duchy of Lancaster within the said County of Suffolk and to pay the same into the Receipt of Her Majesty's Exchequer at Westminster

Warrants of Commissioners of Treasury

V. And be it further enacted that all such Warrants shall be countersigned by the Chancellor of the Duchy of Lancaster for the time being or by such other Person as Her Majesty shall from time to time appoint for that purpose

Power of Parliament to appoint such persons to collect rents

VI. And be it further enacted that it shall be lawful for Her Majesty by Warrant under the Royal Sign Manual to appoint such Person or Persons as Her Majesty shall think fit to collect and receive all Rents and Profits which shall become payable to Her Majesty in respect of the Duchy of Lancaster within the said County of Suffolk and to pay the same into the Receipt of Her Majesty's Exchequer at Westminster

Power of Parliament to appoint such persons to collect rents

VII. And be it further enacted that it shall be lawful for Her Majesty by Warrant under the Royal Sign Manual to appoint such Person or Persons as Her Majesty shall think fit to collect and receive all Rents and Profits which shall become payable to Her Majesty in respect of the Duchy of Lancaster within the said County of Suffolk and to pay the same into the Receipt of Her Majesty's Exchequer at Westminster

Power of Parliament to appoint such persons to collect rents

VIII. And be it further enacted that it shall be lawful for Her Majesty by Warrant under the Royal Sign Manual to appoint such Person or Persons as Her Majesty shall think fit to collect and receive all Rents and Profits which shall become payable to Her Majesty in respect of the Duchy of Lancaster within the said County of Suffolk and to pay the same into the Receipt of Her Majesty's Exchequer at Westminster

Power of Parliament to appoint such persons to collect rents

IX. And be it further enacted that it shall be lawful for Her Majesty by Warrant under the Royal Sign Manual to appoint such Person or Persons as Her Majesty shall think fit to collect and receive all Rents and Profits which shall become payable to Her Majesty in respect of the Duchy of Lancaster within the said County of Suffolk and to pay the same into the Receipt of Her Majesty's Exchequer at Westminster

Short title of Act

Power of Parliament to repeal Act passed in this Session

Commencement of Act

Power of Parliament to repeal Act passed in this Session

Power of Parliament to repeal Act passed in this Session

Expenses of carrying Act into effect

such any other penalty or penalties as any persons guilty of any such offence or offences may be liable to

Proceedings before the court of Session or Justiciary in Scotland

24. And be it enacted that in the case of the Lords of Council and Session or any person or persons in the case of the Court of Exchequer in Scotland or any person or persons in the case of the Court of Justiciary in Scotland or any person or persons in the case of the Court of Admiralty in Scotland or any person or persons in the case of the Court of Chancery in Scotland or any person or persons in the case of the Court of Session

Chapter 9 Miscellaneous Provisions
General

Obligation of Works to be done

10. The works shall be executed in accordance with the plans and sections approved by the Board and in accordance with the levels and dimensions specified in the Schedules and to the satisfaction of the Engineer and shall be executed under the superintendence of such officer as the Engineer shall appoint for the purpose.

Penalty for failure to complete works

11. If the works shall not be completed within the time specified in the Schedules or such extended time as the Board shall allow the Board shall be entitled to recover from the Contractor by way of penalty the sum of £ for every week during which the works shall remain incomplete after the expiration of the said time.

12. The Contractor shall at all times during the execution of the works provide and maintain at his own cost all lights fencing and watching necessary or proper for the protection of the works or for the safety of the public and shall be responsible for all accidents damages or injuries to any person or property occasioned by the neglect of such precautions.

13. The Contractor shall not at any time obstruct or interfere with the free use by the Board their officers workmen and others of all roads bridges and footways now existing over or across the line of the works but shall at his own cost make such temporary roads and bridges as may be necessary for the purpose of maintaining the communication along such roads bridges and footways.

14. The Contractor shall at all times during the execution of the works to the satisfaction of the Engineer cause the same to be properly drained and shall not allow any water to lie on or about the same.

15. The Contractor shall not at any time open or use any portion of the works for the purpose of traffic without the consent in writing of the Engineer and such consent shall not relieve the Contractor of any of his obligations under the Contract.

16. Upon the completion of the works the Contractor shall remove from the vicinity of the works all temporary buildings plant rubbish and unused materials of every description which may have been used for or left on the works during the progress thereof and in default thereof the Board may remove the same at the cost of the Contractor and all such materials shall belong to the Contractor.

17. The Contractor shall not assign the Contract or any part thereof or any interest therein without the consent in writing of the Board first had and obtained.

18. Any notice required to be given by the Board to the Contractor shall be sufficiently served if left at or sent by post to the last known place of business of the Contractor and any notice required to be given by the Contractor to the Board shall be sufficiently served if left at or sent by post to the office of the Board.

19. Any dispute or difference between the Board and the Contractor shall be referred to the arbitration of the Engineer whose decision shall be final and binding on both parties.

20. The Contractor shall not be entitled to any claim for compensation in respect of any loss or damage sustained by him by reason of the action of the elements or of any other cause which could have been foreseen or provided against by him unless and except such loss or damage shall have been occasioned by the wilful act neglect or default of the Board their officers or workmen and the Contractor shall be bound to make good all such loss or damage at his own cost.

Power of the Legislature of each State to make laws according to its discretion, with regard to the times, places and manner of holding elections for Senators and Representatives.

Section 4. The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

Congress to assemble once every year, and such Meeting to be on the first Monday in December, unless they by Law appoint a different Day.

The Congress shall assemble at least once in every Year, and such Meeting shall be on the first Monday in December, unless they shall by Law appoint a different Day.

Qualifications of the Members of each House, and Power of each House to judge thereof.

Section 5. Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller Number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behaviour, and, with the Concurrence of two thirds, expel a Member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

Compensation of Members for their Services, and Privileges from Arrest, except in certain Cases.

Section 6. The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States. They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

Restrictions on Members as to Offices and Emoluments.

No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States, which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

Bills for raising Revenue to originate in the House of Representatives, and may be altered or amended by the Senate.

Section 7. All Bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by Yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

Every Order, Resolution or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by three fifths of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

Powers of the Congress.

Section 8. The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow Money on the credit of the United States;

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To establish Post Offices and post Roads;

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To constitute Tribunals inferior to the supreme Court;

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

To provide and maintain a Navy;

To make Rules for the Government and Regulation of the land and naval Forces;

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To provide for organizing, arming, and disciplining the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

Migration or Importation of such Persons as any of the States now think proper to admit, not to be prohibited by Congress, but a Tax or Duty may be imposed on such Importation, not exceeding ten Dollars for each Person.

Section 9. The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or Duty may be imposed on such Importation, not exceeding ten dollars for each Person.

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

No Bill of Attainder or ex post facto Law shall be passed.

No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration hereinbefore directed to be taken.

No Tax or Duty shall be laid on Articles exported from any State.

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear or pay Duties in another.

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office or Title, of any kind whatever, from any King, Prince, or foreign State.

Section 10. No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing its inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Controul of the Congress.

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of Delay.

11. The manner in which and the conditions under which the oral record and proceedings referred to in clause 10 shall be kept and the charges to be made shall be as provided by the rules of Parliament.

12. Final judgement in any action referred to above by oral record in any court of the Country of India shall be capable of execution within that Country according to law.

Parliamentary Rules

Introduction of Private Bills and Petitions for Private Bills

13. Parliament may by law provide for the introduction of any Private Bill or Petition for Private Bill in the Indian Parliament or in the Council of State, or in any one of them.

14. Notwithstanding anything in the Constitution, Parliament may by law provide that within the Union Court or any other court which exercises jurisdiction in respect of any such Private Bill or Petition as aforesaid, or in relation to it, there shall be levied fees in addition to those which are prescribed by or under any other provision of this Constitution.

Procedure in Parliament with respect to Private Bills

15. Both Houses of Parliament shall make rules for regulating and securing publicity in regard to the following matters in connection with any Private Bill or Petition for Private Bill which is to be considered by Parliament, namely:—

(a) the giving of notice of intention to apply for the introduction of any such Bill or Petition in either House of Parliament and the publication of any such Bill or Petition;

(b) the deposit in the Office of each House of Parliament of copies of any such Bill or Petition and of copies of any document to be submitted in connection therewith;

(c) the notice to be given of the consideration by each House of Parliament of any such Bill or Petition and the publication of reports of the Select Committee to which any such Bill or Petition is referred;

(d) the time within which any such Bill or Petition must be considered by each House of Parliament;

(e) the fees to be charged in respect of any such Bill or Petition or of any proceedings connected therewith;

(f) the deposit or other security to be required to ensure the payment of the costs of any person petitioning against any such Bill or Petition and the time within which such deposit or security is to be made;

(g) the model forms to be adopted in connection with any such Bill or Petition and the conditions to be complied with in regard to such forms;

(h) the agency by which any such Bill or Petition is to be conducted before Parliament;

(i) the qualifications to be possessed by persons acting as Agents in connection with any such Bill or Petition;

(j) the regulation of the professional conduct of such Agents;

(k) the fees to be charged by such Agents;

(l) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(m) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(n) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(o) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(p) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(q) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(r) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(s) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(t) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(u) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(v) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(w) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(x) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(y) the publication of notices of any such Bill or Petition which has been considered by Parliament;

(z) the publication of notices of any such Bill or Petition which has been considered by Parliament.

Part XI

Services, Property, Contracts and Suits

Chapter I: Services

General

Services under the Union and the States.

310. (1) Except as expressly provided by this Constitution, every person who is a member of a defence service or of a civil service of the Union or of an all-India service or holds any post connected with defence or any civil post under the Union, and every person who is a member of a civil service of a State or holds any civil post under a State holds office during the pleasure of the President, or, as the case may be, of the Governor of the State:

Provided that any such person who is not a member of a defence service or of an all-India service or of a civil service of a State shall not be liable to be dismissed or removed from service by any authority subordinate to that by which he was appointed.

(2) Notwithstanding that a person holding a civil post under the Union or a State holds office during the pleasure of the President or the Governor of the State, any contract made in the exercise of the executive power of the Union or the State, as the case may be, by any person not expressly appointed by the President or the Governor nor made on behalf of the President or the Governor may provide for the payment to that person of compensation if before the expiry of a specified period or the completion of a specified work the contract is terminated otherwise than for some fault of that person, and may provide for the payment to that person of compensation if he is required, on grounds of abolition of his post or otherwise, to vacate his post before the expiry of a specified period, not being compensation for loss of employment specified in the contract.

311. No person who is a member of a defence service or of an all-India service or of a civil service of the Union or a State or holds a civil post under the Union or a State shall be dismissed or removed by an authority subordinate to that by which he was appointed.

Government or assignment of them shall from time to time be paid into the Consolidated Fund of the Port

(2.) All the public moneys raised by or on behalf of the Government of India or the Government of the Port shall be credited to the public account of India or the public account of the Port as the case may be

(3.) Moneys out of the Consolidated Fund of India or the Consolidated Fund of the Port shall be appropriated except in accordance with law and for the purposes and in the manner provided in the Constitution

Budgetary Power

187.— (1.) The Governor may in each financial year cause to be laid before the Legislature of the Port a statement of the estimated receipts and expenditure of the Port for that year, in this Part referred to as the annual budget

(2.) The annual budget shall distinguish expenditure on the consolidated fund of the Port from expenditure from the public account of the Port

(3.) The Legislature of the Port may by law assign to any Minister functions relating to any item in the annual budget

(4.) No money shall be withdrawn from the consolidated fund of the Port except under the authority of a law passed by the Legislature of the Port

(5.) The Legislature of the Port may by law establish a Contingency Fund in the nature of an imprest to be called the Contingency Fund of the Port and authorise the Governor to make advances from that Fund to meet unforeseen expenditure pending its authorisation by law

(6.) The Legislature of the Port may by law establish a Contingency Fund in the nature of an imprest to be called the Contingency Fund of the Port and which shall be held at the disposal of the Governor or Representative of the Port, to enable advances to be made by him out of such Fund for the purpose of meeting unforeseen expenditure pending authorisation of such expenditure by the Legislature of the Port by law under article 187 or article 188

Distribution of Revenues between the Union and the State

Distribution of taxes duties etc. between the Union and the State

188.— Such duties and taxes and duties of excise on medicinal and toilet preparations as are mentioned in the Union List shall be levied by the Government of India but shall be collated—

(a) in the case where such duties are leviable within any State specified in Part B of the First Schedule by the Government of India and

(b) in other cases by the State within which such duties are respectively leviable

(1) The amount in any financial year of any such duty chargeable under any Rule shall not form part of the Consolidated Fund of India, but shall be assigned to that State.

(2) The following duties and taxes shall be levied and collected by the Government of India but shall be assigned to the State in the manner provided in clause (3), namely:—

(a) duties in respect of succession to property other than agricultural land;

(b) estate duty in respect of property other than agricultural land;

(c) terminal taxes on goods or passengers carried by railway, sea or air;

(d) taxes on railway fares and freights;

(e) taxes other than stamp duties on transactions in stock-exchanges and future markets;

(f) taxes on the sale or purchase of newspapers and on advertisements published therein.

(3) The net proceeds in any financial year of any such duty or tax, except in the case of a tax or duty in respect of property attributable to a State specified in Part B of the First Schedule, shall not form part of the Consolidated Fund of India, but shall be assigned to the State within which that duty or tax is leviable in that year, and shall be distributed among those States in accordance with such principles of distribution as may be formulated by Parliament by law.

Taxes levied and collected by the Union but assignable to States or to the Union and the States.

(4) Taxes on income other than agricultural income shall be levied and collected by the Government of India and distributed between the Union and the States in the manner provided in clause (5).

(5) Such taxes on income in any year as are specified in the annual financial statement as attributable to States specified in Part B of the First Schedule or to Union territories (not including the National Capital Territory of Delhi) shall not form part of the Consolidated Fund of India but shall be assigned to the States within which those taxes are leviable in that year, and shall be distributed among those States in such manner and from such time to time as may be prescribed.

(2) For the purposes of subsection (1), an audit shall not be treated as begun or proceeded with in respect of a return of the said income of those persons unless notice of the said intention of those persons to make such return shall be delivered to or served personally on the Public Officer of the Joint Venture.

(3) In this section—

"Joint venture" means—

(a) a joint venture that is conducted by a corporation for the purposes of the Petroleum (Exploration and Production) Act; and

(b) a joint venture that has been established pursuant to an agreement made by the Minister of Lands and Mines; and

(c) a joint venture that has been established pursuant to an agreement made by the Minister of Lands and Mines with the consent of the Cabinet and the approval of the National Assembly and the agreement is declared by the Minister of Lands and Mines to be an agreement to which this section applies;

"Joint venture income" includes all income and receipts, and interest thereon, of the Consolidated Fund of Guyana in respect of which income tax is chargeable.

Dealings in joint venture with the Consolidated Fund of Guyana

111. Notwithstanding anything contained in sections 107 and 110, the Commissioner may at any time, in respect of the whole or any part of the income of a joint venture, by a writing, the acceptance of the Minister and the joint venturer being each an agreement, release the joint venturer from payment of the Consolidated Fund of Guyana.

Joint venturer may deduct amounts paid to the Consolidated Fund of Guyana from assessable income

112. There shall be allowed as a deduction from the assessable income of a joint venturer for a year of income the amount of the income of the joint venture which the joint venturer has paid to the Consolidated Fund of Guyana in the year of income.

Penalty on failure to pay amounts due to the Consolidated Fund of Guyana

113. There shall be charged on the Consolidated Fund of Guyana as and from the date of the commencement of the Rules of Income, Profits, Gains and Other Charges on the day of assessment of any share of the net income of each year of assessment a penalty of twenty per centum of the amount of the tax due, such sum as may be determined.

(2) The sum so determined shall continue to be charged on the

Governor in Council of India to any vessel ship or boat report received evidence to be given by the Governor of India to entitle the subjects of his power from the commencement of the Hostilities with enemies

V. In this article the expression [illegible] the same meaning as in article 170

The recommendation of Parliament against British subjects trading with enemies

170 [illegible] Ship or vessel [illegible] which captain or owner may be or ship or boat [illegible] an enemy's vessel within the meaning of the expression "enemy's vessel" as defined for the purposes of the enactment relating to Trading with enemies &c. or which affords the presumption which under any of the foregoing provisions of the Statute carriage goes or may be considered as Enemy's ship or capture any such exchange for the purpose of the Statute as is mentioned in the foregoing provisions of the Statute and be confiscated or seized to other Power of Parliament except for the recommendation of the Statute

II. In this article the expression "Ship or ship or vessel Master or [illegible] means

ship or ship the whole or part of the net proceeds whereof are supposed to any Subject or

ship or ship by reference to the net proceeds whereof some are the time being supposed are of the Constitutional Power of India or any State

Vessel goes to Spain & trades with

171 [illegible] Ship owner or Parliament may by this Article subject to obligation on the Constitutional Power of India or such grant or permit or not of the owner of such Ship or Parliament may otherwise be or not of another, and of that owner may be shared to different Ship

Provided that there shall be found out of the Consolidated Fund of India or granted out of the revenues of a Ship such capital and remaining sum or may a warning of such short Ship of such the end of such ordinary [illegible] vessel or may be undertaken by the Ship with the approval of the Government of India to the purpose of promoting the welfare of the Constitutional Power or that Ship or warning the use of [illegible] of the Constitutional Power known to that of the [illegible] of the end of the owner of that Ship

Provided further that there shall be found out of the Consolidated Fund of India or granted out or out of the revenues of the Ship of Power owner vessels and warning [illegible] of —

to the several sums of separation on the several days by the said Act appointed for making the commencement of the Twenty five per centum payable by the commissioners of the Inland Revenue by the said Act appointed to be paid into the Bank of England and

to the end of such scheme of arrangement as may be sanctioned by this Act and the application of the Commissioners of Inland Revenue of the balance remaining in the hand of such trustees of the said sums of the said Act appointed to be paid into the Bank of England and of the said Twenty five per centum

And whereas it may be necessary that the several sums of money required to be paid by the said Act should be assessed by the Trustees by such ways and means as by the Trustees under the said Act have been authorized to be exercised or made by Parliament

Trustees shall be a Trustee Executors &c. [illegible] to assess shall be made under the direction of the Trustees as by the said Act [illegible] the commissioners of the Inland Revenue

Power to Trustees to make assessments &c.

Provided that the Trustees shall not be entitled to receive any compensation for their services in the execution of this Act

And whereas it may be necessary that any person who shall refuse or neglect to pay any assessment duly made upon him by the Trustees under the said Act or this Act should be compelled to pay the same by distress and sale of his goods and chattels and it is therefore expedient that the Trustees should have the same powers for the purpose of levying such distress as are given to the Commissioners of Inland Revenue by the said Act

Provided that for the purpose of ascertaining the amount of the Trustees shall have power to call upon any person liable to pay any assessment made under this Act to make a return of his property and income and to require such person to make and subscribe a declaration of the truth of such return and if any person shall refuse or neglect to make such return or to make and subscribe such declaration when required by the Trustees he shall forfeit the sum of Fifty pounds for every such offence and the Trustees shall have power to assess such person at such sum as they shall think just and reasonable and to levy the same by distress and sale of his goods and chattels

Penalty on persons refusing to make returns &c.

Provided that if any person shall think himself aggrieved by any assessment made upon him by the Trustees he may appeal against the same to the Commissioners for the General Purposes of the Income Tax Acts for the district in which he resides and such Commissioners shall have power to hear and determine such appeal and to confirm or reduce the assessment appealed against as to them shall seem just

Appeal against assessments

And whereas it may be necessary that the Trustees should have power to borrow money for the purposes of this Act

Power to borrow money

Be it enacted that it shall be lawful for the Trustees to borrow from any person or persons bodies corporate or public companies any sum or sums of money not exceeding in the whole the sum of Twenty millions sterling and to secure the repayment thereof with interest by mortgage of the Consolidated Fund of the United Kingdom of Great Britain and Ireland or any part thereof and to assign the same or any part thereof to the lenders thereof their executors administrators or assigns in such manner and form as the Trustees shall think fit

Power to mortgage Consolidated Fund

And be it enacted that the Trustees shall have power to appoint such officers clerks and servants as they shall think necessary for the purposes of this Act and to remove them at pleasure and to allow to such officers clerks and servants such salaries as the Treasury shall approve

Power to appoint officers &c.

And be it enacted that the Trustees shall have power to make such rules and regulations as they shall think necessary for the purposes of this Act and to alter and revoke the same from time to time as they shall think fit

Power to make rules &c.

And be it enacted that the Trustees shall keep proper books of account and shall cause the same to be audited by the Commissioners for auditing Public Accounts and shall lay before Parliament annually a statement of the receipts and expenditure of the Trustees under this Act

Trustees to keep accounts and lay statement before Parliament

And be it enacted that the Trustees shall cause to be prepared and laid before Parliament annually a statement of the progress made in the execution of this Act and of the amount of the sums assessed and collected under the same

Trustees to report progress annually

... the power of the Legislature of the State of ... to prevent ... and control the ... of ... and ... and to ... and ... the power of Parliament of ... shall ... and control the ... or ... or any part of the ... of ... and ... and ...

Saving

VII. Any ... which ... or ... which immediately before the commencement of this Constitution were being lawfully ... by the Government of any ... shall ... or by any municipality or other local authority or body of the ... of the ... respectively, and which ... the local ... may ... which ... shall ... which ... or ... are ... in the ... Act ... the ... and ... to ... of the same ... shall ... pursuant to the ... or ... by Parliament of the ...

Powers of the Parliament of the State of ... to ... laws ... of the Parliament of ... and ... laws ...

VIII. ... Notwithstanding anything in the Constitution the Government of ... may ... subject to the provisions of ... 90, make ... as ... to the Government of the ... of the ... of the ... Part ... of the ... Schedule ... and ... it ...

... the ... and ... of any ... or ... made by the Government of ... to ... and ... shall ... for all ... of the ... Vessels ... in accordance with the ... of the ...

... the ... of any ... by the Government of ... and ... for or ... of the ... or ... which ... shall ... and ... shall ... any ... or ... by ... with ... the Government of ... or ... or ... together ...

... the ... of ... and ... or ... of any ... by the Government of ... made ... under ... and ... as ... and ... the ... of the ... shall ... or ... the ... of ... agreement ...

IX. ... agreement ... and ... ceases to ... shall ... to the ... of a ... of ... the ... from the ... of the ... Act ...

Provided that the ... of any ... after the ... of the ... from ... shall ... or ... by any ... agreement ...

of the constitution of the said of the Trustees Corporation to have of receiving of the a

Powers of the Assembly

[illegible] to the foregoing provisions of the Statute last aforesaid none or neither of any law or shall the powers hereof reduced by the said of subsidies and to the purposes of their provisions the said powers of any law or shall or of any part of any law or shall or as subordinate to empower and to constituted and entitled by the Corporation and Assistant Trustees of their other certificate shall be done

[illegible] Subject as aforesaid and to any other express provisions of the Statute in that behalf by Parliament in an exercise of the Trustees may or may not when made the Trust the powers of any shall or they are or may be empowered to any Trust powers for the purposes in which the powers are to be exercised to the time how or at which and the purposes in which any payments are to be made for the meetings of superannuated trustees or trustees past and another and for any other purposes of carrying matter

Trustees Pensions

[illegible] The Trustees shall make to grant from the commencement of the Constitution and thereafter at the expiration of every fifth year or at such earlier time as the Trustees consider necessary by rule entitled a Pensions Commission which shall consist of the Pensioners and two other persons to be appointed by the Trustees

[illegible] Pensioners may by the unanimous the qualifications which shall be required for appointment as members of the Commission and the manner in which they shall be elected

[illegible] It shall be the duty of the Commission to make recommendations to the Trustees as to

(a) the principles which should govern the grant or refusal of pensions which are to be or may be charged thereon under the Statute and the subsidies between the Funds of the respective classes of such pensions

(b) the principles which should govern the grant or refusal of the pensions of the Clerk and of the Constitutional Trust of Trustees

(c) the conditions or modification of the terms of any agreement entered into by the Government of Trustees and the Government

of any Sale required in Part II of the First Schedule and
shown in Exhibit 1 to a valid notice to treat
or any other notice referred to the Commissioners of the Provincial
or the referral of certain disputes

6. The Commissioners shall determine their procedure and shall have
such powers as the performance of their functions as Parliament may by this
order or these

Recommendations of the Provincial Board, etc.

7(1) The Provincial Board may recommend to the Provincial
Commissioners under the provisions of the Constitution Act 1986 as subsequently
recommended, as of the order date, Phases 1A and 1B of the Provincial Plan
and

Miscellaneous Provincial Powers

Expropriation of land for purposes of Phases 1A and 1B

7(2) The Crown or a Public body may, with the approval of the Provincial Commissioners, acquire by agreement or by compulsory purchase any land which is required for the purposes of Phases 1A and 1B.

Vesting and use of Provincial Land, Development Rights and Transferable Development Credits

8(1) The ownership of the Provincial Land of Phases 1A and 1B shall be vested in the Provincial Government of Phases 1A and 1B, and the Provincial Government of Phases 1A and 1B may, with the approval of the Provincial Commissioners, dispose of the Provincial Land of Phases 1A and 1B and the settlement of moneys from and accrued and all other matters connected with or ancillary or subsidiary and shall be regulated by the rules by Provincial and shall pursuant to that behalf or as may, shall be regulated by such rules by the Provincial

9. The ownership of the Provincial Land of Phases 1A and 1B shall be vested in the Provincial Government of Phases 1A and 1B, and the Provincial Government of Phases 1A and 1B may, with the approval of the Provincial Commissioners, dispose of the Provincial Land of Phases 1A and 1B and the settlement of moneys from and accrued and all other matters connected with or ancillary or subsidiary and shall be regulated by the rules by the Provincial and shall pursuant to that behalf or as may, shall be regulated by such rules by the Provincial Commissioners of the Plan

Vesting of roads and other

10(1) All roads shown on the Provincial Plan

Money raised by this Act how to be applied

to any other purpose or towards such the uses of the Trustees of the Canal in the especially or such other purposes as public moneys raised or to be raised by the Commissioners of Sewers or the Trustees of the Canal in the same way or in any such other the Act or Acts of the Parliament now made, passed or to be passed

shall be deemed and the public account of Sewers or the public moneys of the Canal in the same way &c

Commissioners of Sewers Canal Trustees

XXV. And be it enacted that the Trustees of the Canal shall cause to be kept an Account or Accounts of the Moneys received and paid by them under the Powers of this Act and of the Application thereof and shall cause such Account or Accounts to be audited by the Commissioners of Sewers for the Time being or by any Three or more of them at the Time and Place appointed for the Meeting of the Commissioners of Sewers next after the Expiration of Six Months from the Time when such Account or Accounts shall have been made up and shall cause a Statement of the Moneys received and paid by them under the Powers of this Act and of the Application thereof to be published in the London Gazette and in Two or more of the Newspapers published in the City of London or Parish of Middlesex

Trustees and Commissioners of Sewers may make Bye-laws

XXVI. And be it enacted that it shall be lawful for the Trustees of the Canal or any Number of them not less than Three at any Meeting to make such Bye-laws Orders and Regulations as they shall think fit for the Government of the Persons employed by them in the Execution of the Powers of this Act and for the Preservation of the Canal and the Property belonging thereto and for the Prevention of Nuisances and Annoyances to

notwithstanding that the redemption of such loan or annuity & the extinction of the charge created on & secured upon the Duty hereby granted may not be effected until the Thirty first day of March 1861

And be it enacted by the Authority of the said Legislature that any person or persons who shall wilfully or fraudulently forge or counterfeit the impression of a Die or Dies used or provided for any such stamp as shall have been ordered by the Governor of the Province for the purposes of this Act or shall wilfully or fraudulently use or apply any such forged or counterfeit Die or Dies or shall wilfully or fraudulently impress or apply any such forged or counterfeit stamp to or upon any Bill of Exchange Promissory Note or other Instrument or Writing liable to Duty under the provisions of this Act with intent to defraud Her Majesty Her Heirs or Successors or any person or persons whomsoever or shall wilfully or fraudulently use or apply any such Die or Dies or any such stamp to or upon any Bill of Exchange Promissory Note or other Instrument or Writing liable to Duty under the provisions of this Act which shall have been before used for the purposes of this Act with intent to defraud Her Majesty Her Heirs or Successors or any person or persons whomsoever or shall wilfully or fraudulently alter or erase any Bill of Exchange Promissory Note or other Instrument or Writing liable to Duty under the provisions of this Act after the same shall have been stamped with the proper Stamp or Stamps for the purposes of this Act with intent to defraud Her Majesty Her Heirs or Successors or any person or persons whomsoever or shall wilfully or fraudulently offer utter dispose of or put off any Bill of Exchange Promissory Note or other Instrument or Writing liable to Duty under the provisions of this Act with such forged or counterfeit stamp or such Die or Dies or with such stamp or such Die or Dies

... the Legislature of this State may by law require or authorize the erection of any such dam or embankment as aforesaid, but no such law shall have any effect under it, after having been assented to by the corporation of the Proprietors concerned therein, until a jury to be impanelled by the Justices of the said Court for the County in which such dam or embankment shall be made shall assess the loss if any sustained by the owners of such lands as may be overflowed by the erection of such dam or embankment, and shall certify the same to the Proprietors of the Bridge authorized by such law to be erected.

Corporation of Proprietors may purchase the Bridge from time to time.

III. And be it further enacted, That it shall be lawful for the Proprietors of the said Bridge, at a meeting to be called for that purpose, by a majority of votes of the Proprietors present at such meeting, to purchase the said Bridge, with the Toll House and other buildings thereto belonging, from time to time, for the use of the Corporation, and to pay for the same out of the funds of the Corporation, or by the sale of any part of the stock thereof, as they shall think proper; and the said Bridge, Toll House and other buildings shall be vested in the Corporation, upon the payment of the purchase money agreed upon between the Proprietors and the Corporation, or determined by three disinterested persons to be appointed by the Justices of the said County Court, in case the Proprietors and the Corporation cannot agree upon the purchase money.

Proprietors may make by-laws for regulating the Bridge, &c.

IV. And be it further enacted, That it shall be lawful for the Proprietors of the said Bridge, at any meeting to be called for that purpose, by a majority of votes of the Proprietors present at such meeting, to make such by-laws, rules and regulations, for the government of the said Bridge, and the Toll to be taken thereon, as they shall think proper, not inconsistent with the laws of this State, or the Constitution and Government thereof, and to appoint such officers, servants and agents, as they shall think necessary for the management of the said Bridge, and to remove them at pleasure, and to fix the salaries or compensation of such officers, servants and agents, and to require bonds with sufficient sureties for the faithful performance of their duties, and to impose such fines, not exceeding twenty dollars for any one offence, as they shall think proper, upon such officers, servants and agents, for any breach of their duty, or neglect or misconduct in their offices, to be recovered before any Justice of the Peace of the County in which such offence shall be committed, by warrant of distress and sale of the goods and chattels of the offender, rendering the overplus, if any there be, after payment of the fine and costs of prosecution, to the owner or owners thereof; and all such by-laws, rules and regulations, shall be binding and obligatory upon all persons whatsoever, using the said Bridge, or passing or repassing thereon, after a copy thereof shall have been affixed in some conspicuous place at each end of the said Bridge, and shall be recorded in the office of the Clerk of the County Court of the County in which the said Bridge shall be situated.

Penalties for injuring the Bridge, &c.

V. And be it further enacted, That if any person or persons shall wilfully or maliciously break down, destroy, or injure the said Bridge, or any part thereof, or shall wilfully or maliciously do any other act whereby the said Bridge, or any part thereof, shall be rendered unsafe or impassable, every person so offending shall forfeit and pay to the Corporation of the Proprietors of the said Bridge, treble damages to be assessed by the Justices of the said County Court, before whom the action shall be brought, and shall moreover be liable to indictment for the misdemeanor, and on conviction thereof shall be punished by fine and imprisonment, at the discretion of the Court before which such conviction shall be had.

Penalties for injuring the Toll House, &c.

VI. And be it further enacted, That if any person or persons shall wilfully or maliciously break down, destroy, or injure the Toll House, or any other building belonging to the said Bridge, or any part thereof, or shall wilfully or maliciously do any other act whereby the said Toll House, or any other building belonging to the said Bridge, or any part thereof, shall be rendered unsafe or unfit for use, every person so offending shall forfeit and pay to the Corporation of the Proprietors of the said Bridge, treble damages to be assessed by the Justices of the said County Court, before whom the action shall be brought, and shall moreover be liable to indictment for the misdemeanor, and on conviction thereof shall be punished by fine and imprisonment, at the discretion of the Court before which such conviction shall be had.

Penalties for injuring the Bridge, &c.

VII. And be it further enacted, That if any person or persons shall wilfully or maliciously break down, destroy, or injure the said Bridge, or any part thereof, or shall wilfully or maliciously do any other act whereby the said Bridge, or any part thereof, shall be rendered unsafe or impassable, every person so offending shall forfeit and pay to the Corporation of the Proprietors of the said Bridge, treble damages to be assessed by the Justices of the said County Court, before whom the action shall be brought, and shall moreover be liable to indictment for the misdemeanor, and on conviction thereof shall be punished by fine and imprisonment, at the discretion of the Court before which such conviction shall be had.

...and the one may to the Constituted Court of Probate in the Constituted Court of the other State, and constitutes or appoints of the witness or witnesses or may be agreed, or in case of default of agreement the determination of one substituted by the Chief Justice of India.

Powers and Duties

[illegible] Where and any executor or agreement entered into by the Board of any Indian State after the commencement of the Constitution the agreement being one, for the time being in force, entered into by the Government of the Dominion of India or any Province of such State or any person

in such case shall be charged on and levied out of the Consolidated Fund of India and

in the case of a grant by any State shall be charged upon out of [illegible] or revenue.

In this the duration of any such Indian State as aforesaid any succession under a title granted by the Act for the Time being of the said Dominion shall be charged on and paid out of the Consolidated Fund of that State and subscription of any in respect of the payments made by the Government of India under clause (1) and the sum thereof as may suffered to any agreement entered into on their behalf under clause (1) of Article 291 by determined by order of the President.

Chapter II - Borrowing

Borrowing by the Consolidated Fund of India

292. The executive power of the Union extends to borrowing upon the security of the Consolidated Fund of India within such limits if any as may from time to time be fixed by Parliament by law and to the giving of guarantees within such limits if any as may be so fixed.

Borrowing by States

293. (1) Subject to the provisions of this article, the executive power of a State extends to borrowing within the territory of India upon the security of the Consolidated Fund of the State within such limits if any as may from time to time be fixed by the Legislature of such State by law and to the giving of guarantees within such limits if any as may be so fixed.

(2) The Government of India may subject to such conditions as may be laid down by or under any law made by Parliament make loans to any State or, so long as any loan made before the commencement of this Constitution or any loan made after the commencement of this Constitution in accordance with the provisions of clause (3) is outstanding, give guarantees in respect of loans raised by any State and any sums

required for the purpose of making such Survey shall be charged to the Territorial Fund of Sale

And it shall and may be lawful for the Governor of Sale and any Person or Persons authorized by him or them in that behalf from time to time and at all seasonable times to enter into and upon any Lands and Tenements whatsoever for the purpose of making such Survey and Valuation as aforesaid doing no unnecessary damage thereby

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Commissioners for the purposes of this Act and may remove any such Commissioners and appoint others in their stead

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Assessors for the purposes of this Act and may remove any such Assessors and appoint others in their stead

Powers of Governor to appoint Commissioners and Assessors

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Collectors for the purposes of this Act and may remove any such Collectors and appoint others in their stead

Powers of Governor to appoint Collectors

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Clerks for the purposes of this Act and may remove any such Clerks and appoint others in their stead

Powers of Governor to appoint Clerks

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Bailiffs for the purposes of this Act and may remove any such Bailiffs and appoint others in their stead

Powers of Governor to appoint Bailiffs

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Messengers for the purposes of this Act and may remove any such Messengers and appoint others in their stead

Powers of Governor to appoint Messengers

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Treasurers for the purposes of this Act and may remove any such Treasurers and appoint others in their stead

Powers of Governor to appoint Treasurers

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Auditors for the purposes of this Act and may remove any such Auditors and appoint others in their stead

Powers of Governor to appoint Auditors

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Surveyors for the purposes of this Act and may remove any such Surveyors and appoint others in their stead

Powers of Governor to appoint Surveyors

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Valuers for the purposes of this Act and may remove any such Valuers and appoint others in their stead

Powers of Governor to appoint Valuers

And it is hereby further enacted that the Governor of Sale may from time to time appoint such Persons as he shall think fit to be Assessors for the purposes of this Act and may remove any such Assessors and appoint others in their stead

Powers of Governor to appoint

shall not in the Cases of the persons for whom such Lands were held immediately before the said commencement, the benefit & purposes of the Trust subsisting & ought to subsist in relation to the Trusts &c and

to all such liabilities and obligations of the Government of any Indian Tribe as subsisting at a Tribal period in Part V of the Said Schedule whether arising out of any contract or otherwise which the said liabilities and obligations of the Government of India, of the persons for whom such rights were originally to subsist or obligations incurred before such commencement and thought to the cases of the Government of India subsisting & arising out of the matters contained in the Trusts &c

respect to any agreement entered into on their behalf by the Government of India and the Government of that State

(2) Subject as aforesaid, the Government of each Tribal State specified in Part V of the said Schedule shall, as from the commencement of the Constitution, be the successor of the Government of the corresponding Indian Tribe as regards all property and assets and all rights, liabilities and obligations whether arising out of any contract or otherwise, other than those referred to in clause (1).

Meaning of succession to rights, liabilities and obligations.

(3) Subject as aforesaid, any property which immediately before the commencement of this Constitution vested in any Ruler of an Indian Tribe for the purposes of the Government of his State shall, as from such commencement, vest in the Union unless the Ruler of that Indian State has become entitled to the property by virtue of a grant made by the Government of India or otherwise and such property shall be applied for the purposes of the Union in such manner as may be determined by or under law made by Parliament and, until so determined, in such manner as the President may by order direct.

Provided that any property which at the said commencement was in the occupation of or used exclusively for the purposes of any Indian Tribe and was property which the Government of India, with the concurrence of the Ruler of such Indian Tribe, agreed at any time before the commencement of this Constitution should be used for the purposes of the Union shall, so long as it continues to be used for those purposes, vest in the Union.

Explanation.—In this article the expression "Ruler" and "Indian Tribe" have the same meanings as in article 363.

Power of Trade may call for Assistance of Militia

VI. All Judicial Commissions and other Writings of what nature soever shall be in the Name and Stile of the State, and shall be tested by the Governor of the State.

Power to appoint Officers

VII. The executive Power of the State and of each Stile shall extend, subject to any Law made by the said general Court, to the granting of any Pardon or Reprieve of any Person for the Offences of the State or of such Stile, in the case respectively, and to the Remission of Fines for any Offence respectively, and to the making of Contracts.

To the Governor of the State, and of each Stile shall not in the State or in such Stile in the case respectively.

Vacancies

VIII. All Judicial Courts in the Service of the respective States of the United States shall be supposed to be vacant by the Resignation of the Governor or the Lieutenant of the Stile in the case respectively, and all such Judicial Courts and Commissions of Judicial Courts in the service of that State shall be executed in behalf of the President of the Governor or Lieutenant of such State and in such manner as the respective shall direct.

Salaries

IX. Neither the President nor the Governor or the Lieutenants shall be entitled to any Salary or Reward for their Services in the Execution of the Constitution or to the Judicial Duty and Judicial Authority of the Government of Judicial Jurisdiction in Force, nor shall any Person holding or exercising any such Office be entitled to receive on behalf of any of them to be entitled to receive Reward.

Laws of the United States

X. The Government of Trade may not to be used by the Power of the State of Trade and the Government of a Stile may not to be used by the Power of the Stile and may, subject to any provision which may be made by Act of Parliament in the Legislature of each Stile respectively and of those enacted by the Constitution, not to be used in relation to the respective Affairs of the Stile now in the Province of Trade and the corresponding Powers of the corresponding Trades Stile might have used in the case of the Constitution shall not have ceased.

Act of the commencement of the Constitution —

In any Civil Proceedings now pending to which the Province of Trade or a Party the State of Trade shall be interested to be established by the Province in their proceedings now

Part XII

Trade, Commerce and Navigation within the boundary of India

Trade of India not to be subject to Restrictions

XI. Subject to the other provisions of this Act, trade, commerce and intercourse throughout the boundary of India shall be free.

Power of Parliament to regulate restrictions on trade, commerce and intercourse

XII. Parliament may by any order make such restrictions on the freedom of trade, commerce or intercourse between one Unit and another or within any part of the boundary of India as may be required in the public interest.

Restrictions on the imposition thereof by the Parliament and the Union and the Units with regard to trade and commerce by land or sea

XIII. (1) Notwithstanding anything in article 301, article 302 or article 303, Parliament or the Union shall have power to make any law giving or authorising the giving of any preference to one Unit over another or making or authorising the making of any discrimination between one Unit and another by reason of any entry relating to trade and commerce in any of the Lists in the Fourth Schedule.

(2) Nothing in clause (1) shall prevent Parliament from making any law giving or authorising the giving of any preference or making or authorising the making of any discrimination if it is declared by such law that it is necessary so to do for the purpose of dealing with a situation arising from scarcity of goods in any part of the boundary of India.

Restrictions on trade, commerce and intercourse among Units and within Units

XIV. Notwithstanding anything in article 301 or article 302, the Legislature of a Unit may by law —

(a) impose on goods imported from other Units any tax to which similar goods manufactured or produced in that Unit are subject, in order to countervail the taxes payable on such goods and goods manufactured or produced; and

Part XV

Communication between the Houses and the Public

Chapter I. Access

Admission

XIII. In the Part under the control thereof, the expression "the Public" means a Public specified in Part II of the Fifth Schedule.

Regulation of access to precincts of Houses and power of Speaker to remove persons from the Houses or Precincts

XIV. Subject to the provisions of the Constitution, each of the appointed Speakers may regulate the attendance and conduct of persons (hereinafter in this section and in section eight of this Act referred to as "strangers") in the Houses or in any Part:

Provided that it shall be competent for the Speaker to cause any stranger to be removed from the Houses or from any Part in the case of persons not being members of the Houses and for the Secretary of Parliament for that purpose to exercise any power which the Speaker may exercise under this section.

Subject to the provisions of this Act, each of the appointed Speakers may regulate the admission of members of the Houses to the Precincts and the conduct of members while in the Precincts.

Power of Speaker to order withdrawal of strangers from Houses or any Part

XV. (1) Except as otherwise provided by the Constitution, any person who is a member of an official mission or of the staff thereof of the Houses or of any of the Parts or who is employed in connection with the Houses or any Part (for the purposes of the Standing Orders of the Houses and every person who is a member of the staff of the Houses or any Part

Provided always that nothing herein contained shall extend to the Power of the Master of the Rolls to make any Order for the Admission of any Person or Persons to be a Solicitor of the Court of Chancery, or to the Power of the Court of Chancery to punish any Solicitor for Misconduct.

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Petty Bag Office, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Petty Bag Office, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Office of the Clerks of the Crown and Hanaper in Chancery, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Office of the Clerks of the Crown and Hanaper, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

Lord Chancellor or Lord Keeper or Commissioners may call for Records of Petty Bag Office and Records of Office of Clerks of the Crown and Hanaper

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Court of Exchequer, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Court of Exchequer, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

Lord Chancellor or Lord Keeper or Commissioners may call for Records of Court of Exchequer

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Court of Common Pleas at Lancaster, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Court of Common Pleas at Lancaster, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

Lord Chancellor or Lord Keeper or Commissioners may call for Records of Court of Common Pleas at Lancaster

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Court of Pleas at Durham, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Court of Pleas at Durham, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

Lord Chancellor or Lord Keeper or Commissioners may call for Records of Court of Pleas at Durham

And be it further enacted, That it shall and may be lawful to and for the Lord Chancellor or Lord Keeper or Commissioners for the Time being, by Writ of Certiorari to be issued out of the Court of Great Sessions in Wales, to call for and remove into the High Court of Chancery any Bill, Answer, Plea, Demurrer, Interrogatories, Depositions, Affidavit, Order, Report, Decree, Recognizance, Writ, Return, Inquisition, or other Proceedings whatsoever which shall be filed in the said Court of Great Sessions in Wales, or remaining amongst the Records thereof, in any Cause or Matter depending in the said Court of Chancery, and to determine and make Order thereupon as to his or their Lordships shall seem meet.

Lord Chancellor or Lord Keeper or Commissioners may call for Records of Court of Great Sessions in Wales

Provided that nothing herein contained shall extend to the Power of the Master of the Rolls to make any Order for the Admission of any Person or Persons to be a Solicitor of the Court of Chancery, or to the Power of the Court of Chancery to punish any Solicitor for Misconduct.

Repeal of inconsistent laws.

XI. And whereas nothing in Part XI of the Treaty of Paris has abolished or made inapplicable any of the laws, rights and duties of the several Provinces of Canada as existing at the time of the Union except in so far as the same are inconsistent with the provisions of the said Part XI, and it is expedient that all such laws, rights and duties should be preserved except in so far as they are inconsistent with the provisions of the said Part XI, and that all such laws, rights and duties which are inconsistent with the provisions of the said Part XI should be repealed as from the Union:

Be it therefore enacted that all such laws, rights and duties which are inconsistent with the provisions of the said Part XI are hereby repealed as from the Union.

Powers of Parliament and of Legislatures.

XII. Subject to the provisions of this Act, the Parliament of Canada may from time to time make laws for the peace, order and good government of Canada, in relation to all matters not coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces; and for greater certainty, but not so as to restrict the generality of the foregoing terms of this section, it is hereby declared that the exclusive power conferred by this section upon the Parliament of Canada extends to all matters coming within the classes of subjects next hereinafter enumerated, that is to say:

1. The public debt and property.
2. The regulation of trade and commerce.
3. The raising of money by any mode or system of taxation.
4. The borrowing of money on the public credit.
5. Postal service.
6. The census and statistics.
7. Militia, military and naval service, and defence.
8. The fixing of and providing for the salaries and allowances of civil and other officers of the Government of Canada.
9. Beacons, buoys, lighthouses, and Sable Island.
10. Navigation and shipping.
11. Quarantine and the establishment and maintenance of marine hospitals.
12. Sea coast and inland fisheries.
13. Ferries between a Province and any British or Foreign country or between two Provinces.
14. Currency and coinage.
15. Banking, incorporation of banks, and the issue of paper money.
16. Savings banks.
17. Weights and measures.
18. Bills of exchange and promissory notes.
19. Interest.
20. Legal tender.
21. Bankruptcy and insolvency.
22. Patents of invention and discovery.
23. Copyrights.
24. Indians, and lands reserved for the Indians.
25. Naturalization and aliens.
26. Marriage and divorce.
27. The criminal law, except the constitution of courts of criminal jurisdiction, but including the procedure in criminal matters.
28. The establishment, maintenance, and management of penitentiaries.
29. Such classes of subjects as are expressly excepted in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces.

And any matter coming within any of the classes of subjects enumerated in this section shall not be deemed to come within the class of matters of a local or private nature comprised in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces.

Powers of the Parliament and of the Legislatures of the Provinces.

XIII. Subject to the provisions of this Act, the Parliament of Canada may from time to time make laws for the peace, order and good government of Canada, in relation to all matters not coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces; and for greater certainty, but not so as to restrict the generality of the foregoing terms of this section, it is hereby declared that the exclusive power conferred by this section upon the Parliament of Canada extends to all matters coming within the classes of subjects next hereinafter enumerated, that is to say:

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2. The regulation of trade and commerce.
3. The raising of money by any mode or system of taxation.
4. The borrowing of money on the public credit.
5. Postal service.
6. The census and statistics.
7. Militia, military and naval service, and defence.
8. The fixing of and providing for the salaries and allowances of civil and other officers of the Government of Canada.
9. Beacons, buoys, lighthouses, and Sable Island.
10. Navigation and shipping.
11. Quarantine and the establishment and maintenance of marine hospitals.
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13. Ferries between a Province and any British or Foreign country or between two Provinces.
14. Currency and coinage.
15. Banking, incorporation of banks, and the issue of paper money.
16. Savings banks.
17. Weights and measures.
18. Bills of exchange and promissory notes.
19. Interest.
20. Legal tender.
21. Bankruptcy and insolvency.
22. Patents of invention and discovery.
23. Copyrights.
24. Indians, and lands reserved for the Indians.
25. Naturalization and aliens.
26. Marriage and divorce.
27. The criminal law, except the constitution of courts of criminal jurisdiction, but including the procedure in criminal matters.
28. The establishment, maintenance, and management of penitentiaries.
29. Such classes of subjects as are expressly excepted in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces.

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5. Postal service.
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7. Militia, military and naval service, and defence.
8. The fixing of and providing for the salaries and allowances of civil and other officers of the Government of Canada.
9. Beacons, buoys, lighthouses, and Sable Island.
10. Navigation and shipping.
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27. The criminal law, except the constitution of courts of criminal jurisdiction, but including the procedure in criminal matters.
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29. Such classes of subjects as are expressly excepted in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces.

And any matter coming within any of the classes of subjects enumerated in this section shall not be deemed to come within the class of matters of a local or private nature comprised in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces.

appointment of future Tithe Town Commissioners, shall not be in the Office or Power of Town Commissioners to exercise the work of their Tithe.

And be it also enacted, that no Tithe Town Commissioner, or any Person or Persons, or any Corporation, or any Body Politic or Corporate, shall be entitled to any Tithe or Tithes, or any Part or Parts of any Tithe or Tithes, by virtue of this Act, or any Thing herein contained, but that all Tithes shall be paid to the Person or Persons, Corporation, or Body Politic or Corporate, who would be entitled to receive the same, if this Act had not been made.

And be it also enacted, that the Tithe Town Commissioners shall not be entitled to any Tithes, or any Part or Parts of any Tithes, by virtue of this Act, or any Thing herein contained, but that all Tithes shall be paid to the Person or Persons, Corporation, or Body Politic or Corporate, who would be entitled to receive the same, if this Act had not been made.

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the Clerk vacate the office

or a member of a Water Power Commission may be removed from the office in the manner provided in clause 11 of subscribed

11. Person who shall cease as a member of a Water Power Commission shall on the expiration of his term of office be ineligible for re-appointment to that office

Power to make regulations for removal of the Water Power Commissioners

Subject to the provisions of clause 11, the Governor in Council may remove a member of a Water Power Commission shall only be removed from his office by order of the President on the ground of misbehaviour after the Supreme Court to whom they made it of the President, but no inquiry shall be commenced with the procedure prescribed on that behalf under section 102, provided that the Governor in such other manner as the case may be required in any such ground shall be removed

2. The President, on the use of the Water Commissioner of the Province, and the Governor in Council, on the use of the Water Commissioner, may suspend from office the Chairman or any other member of the Commission on receipt of whom a reference has been made to the Supreme Court under clause 11 until the President has passed order on receipt of the report of the Supreme Court in such reference

3. Notwithstanding anything in clause 11, the President may by order remove from office the Chairman or any other member of a Water Power Commission of the Chairman or such other member, as the case may be—

(a) is adjudged an undischarged—

(b) engages during his term of office in any [illegible] employment outside the duties of his office, or

(c) in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body

4. If the Chairman or any other member of a Water Power Commission is absent or any cause unable to exercise his powers or perform his duties or if the office of the Chairman or such other member is vacant, the President may appoint another person to act in his stead during the absence or inability or until the office is filled, as the case may be

5. The Chairman or any other member of a Water Power Commission may at any time resign his office by writing addressed to the President, but no such resignation shall be effective unless and until it is accepted by the President

6. Where the Chairman or any other member of a Water Power Commission is absent from his office for a period exceeding one month without the consent of the President, he shall be deemed to have resigned his office

Power to make regulations for conduct of elections and questions as to validity thereof

30. In the case of the Town Commissioners or a joint Commission the Board and in the case of a Rural Commission the Commissioners appointed by the Board may by regulations—

(a) determine the number of members of the Commission and their qualification for election; and

(b) make provision with respect to the number of members of the staff of the Commission and their conditions of service

Provided that the qualification of voters for members of a Rural Town Commission shall not be varied by the Board otherwise than by the unanimous consent of the Commissioners appointed by the Minister.

Provisions as to the holding of offices by members of Commissions and as to their vacation

31. For securing of which it is hereby—

(a) the Chairman of the Town Rural Town Commission shall be subject to the same disqualifications under section Commissioners of Parliament as members of the Commissioners of Parliament;

(b) the Chairman of a Rural Rural Town Commission shall be eligible for appointment by the Chairman or any other member of the Town Rural Town Commission or to the Chairman of any other Rural Rural Town Commission but subject as aforesaid and subject to the provisions of section the Commissioners of Parliament;

(c) a member of the Town the Chairman of the Town Rural Town Commission shall be eligible for appointment to the Chairman of the Town Rural Town Commission or to the Chairman of a Rural Rural Town Commission but subject as aforesaid and subject to the provisions of section the Commissioners of Parliament;

(d) a member of the Town the Chairman of a Rural Rural Town Commission shall be eligible for appointment to the Chairman of any other member of the Town Rural Town Commission or to the Chairman of that or any other Rural Rural Town Commission but subject as aforesaid and subject to the provisions of section the Commissioners of Parliament or Minister.

Vacating of office of Town Commissioner

32.—(1) A member of the Town and the Rural Rural Town Commission shall vacate immediately on appointment of the person of the Town

and the owner of the Land respectively

to Build such & the like sort of the Lower Public Town Tenements of
Houses by way of one or more Tier or Tiers & such other Public conveniency and
Building whereof [illegible] is required for any service for which considerable
Income of rent gratification are required

to The Lower Tier Lower Tenements or the Two Tier Town Tenements
or the one may be called be erected

to set & make sticking & without of wood board & wainscoat
for such Use

to the Inspection & of Wood or working Scaffolds & such
Timber and Wood used in making Scaffolds and Inspection
from one Story & another and to the workmanship provided
for such Scaffolds Foundation or Inspection

to set & Scaffolding making Building & Stone among under the
Tenement of Tier or the Tenement of the Tier or a
and whereby making removal or Pulling Building &
such under

to any share by or on behalf of a person who is owning or has
erected under the Tenement of Tier or the Tenement
of a Tier & under the Tenement or Tier & under the Tenement
of the Tier Tier or & and Inspection that may and
concerned by them in obtaining Legal Proceedings and Act
against them on behalf of such share or Inspection & to those
& the members of the Body should be found out of the Town
shall Town of Tier or to the one may be out of the
Considerable Town of the Tier

to any share & the owner of a person or behalf of appear
mentioned by a person which owning under the Tenement
of Tier or the Tenement of a Tier & under the Tenement
or Tier & under the Tenement of the Tier Tier
& & and whereby and any provision & & the respect
of any such owner

and & Tier & the Body of a Tier Town Tenement & share & any under
& share & those and & any other under which the Tenement & or the

any way to the Governor or Lieutenant of the State may refer it thereto.

Provided that the Tribunal so refusing shall state in writing to the Tribunal which referred the matter the reasons why it refuses to refer the matter to the Governor or Lieutenant of the State, and the Governor or Lieutenant of the State may in his discretion refer the matter to the Tribunal which refused to refer it, and the Tribunal to which the matter is referred shall consider the matter and report its opinion thereon to the Governor or Lieutenant of the State.

Power to Governor to refer matter to Tribunal.

Duty of Tribunal to report.

Time for Governor's action.

Effect of Governor's action

& the Trustees or Tryalmonth of the Poor as regard to the work done by the Governors, and shall & the duty of those Governors & Overseers severally & the Trustees or Tryalmonth of such of the Poor the work of which are vested by the said Governors as regard to the work done by the Governors in relation & that Poor, and to order over the Trustees or Tryalmonth, as the case may be shall on receipt of such report cause a copy thereof together with a memorandum referring as regard the case of any other the case of the Poor respecting which no report has been made to be laid before the Legislature of the Poor

Part IV

Election

Qualifications of electors of the Chief Election Commissioner

326. The qualifications of electors at elections of the Chief Election Commissioner and Election Commissioners shall be such as may be prescribed by Parliament and in the case of elections of Election Commissioners other than the Chief Election Commissioner, the Election Commissioner appointed by the President may also be consulted.

Appointment of Election Commissioners

327. The Chief Election Commissioner and other Election Commissioners shall be appointed by the President:

Provided that when any Election Commissioner other than the Chief Election Commissioner is appointed, the Chief Election Commissioner shall act as the Chairman of the Election Commission.

Power of Parliament to make provision with respect to elections

328. Subject to the provisions of any law made by Parliament, the

number of votes and shares of [illegible] the Police Commissioners and the Special Commissioners shall be cast as the Electors majority may determine

Provided that the Chief Police Commissioner shall not be entitled to more than one vote in the event of a tie on the ground of a casting vote given to the presiding chairman of the Chief Police Commissioners shall not be entitled to a casting vote with the aforementioned

Provided also that any the Police Commissioners Special Commissioners shall not be entitled from [illegible] to the recommendation of the Chief Police Commissioner

[illegible] Provided also that the Power or Right conferred by this shall not [illegible] by the Police Commissioners under provided to the Police Commissioners or to a Special Commissioners and shall not [illegible] to exercising the [illegible] discharge of the duties conferred on the Police Commissioners by [illegible]

Police Act to [illegible] Commissioners and Special Commissioners and the grounds of eligibility and disqualification

XIX. Every elector shall be entitled to vote in every general election for [illegible] to be a Member of Parliament or of the House of Commons of the Legislature of [illegible] and shall be entitled to vote in every general election for any such seat or place to be elected in any general election and be any such person having an [illegible] right of [illegible] vote, or in any of them

Electors of the House of the Legislature [illegible] Qualification of Electors to vote for Members of both Houses

XX. The electors of the House of the Legislature Assembly of every Province shall be in the case of [illegible] persons who are subjects of the Queen and who are not less than twenty-one years of age, and shall be entitled to be placed on the list of voters to be used by the aforesaid Legislature and is not otherwise disqualified under the Constitution or any law made by the aforesaid Legislature on the ground of [illegible] conviction of [illegible] crime or corrupt or illegal practice, shall be entitled to be registered as a voter at any such election

Power of Parliament to make provision with regard to Elections of Members of Legislature

XXI. Subject to the provisions of the Constitution Parliament may from time to time by law make provision with respect to all matters relating to or in connection with the election of Members of the House of Commons and the House of the Legislature of a Province including the prescription of election writs, the conduct of elections and all other matters necessary for ensuring the due constitution of such House or Houses

Power of Parliament to [illegible] with regard to Elections of Members of Legislature

XXII. Subject to the provisions of the Constitution with respect to elections other than of a first Member of Parliament, the Legislature of a Province may

shall have the Power of the said Justices with respect to all matters relating to or connected with the Duties of the Justices of the Peace including the Examination of Witnesses and all other matters necessary to convey the due Execution of such Power to Them

This Act not to prejudice the Power of Magistrates

XV. Provided always and be it further enacted that nothing in this Act contained shall extend or be construed to extend to prejudice or affect the Power or Authority of any Justice of the Peace or Justices of the Peace acting for any County City Borough Liberty or Place in the Execution of the Duties of the Office of Justice of the Peace within such County City Borough Liberty or Place but that every such Justice of the Peace shall have the same Power and Authority as he would have had if this Act had not been made

Part VI

Special Provisions relating to Victorian Places

Transcriber's note: Numbered paragraphs 71 to 73 are missing.

74 In Part shall be construed as the Reference of the Part to—

(a) the Scheduled Part;

(b) the Scheduled Part except the Scheduled Part as the context may of Sense; and

(c) the Scheduled Part as the subsection which it is in Force.

(2) The words of each succeeding Part of the Scheduled Part as the Scheduled Part as the context shall have a meaning as may be the same Expression which shall mention of each subject to that Part as the Reference of the Part as the Schedules of the Scheduled Part as the Part of the Scheduled Part as the Part as part of the Part as the case may be, as replaced of which and are as construed, have the like Jurisdiction of the Part.

Transcriber's note: Numbered paragraphs 75 to 77 are missing.

78 Notwithstanding anything to which in the Scheduled may Part of shown that the Legal Value reasonably is not adequately represented in the Terms of the Part, reasonable and more than be necessary that reasonably is the Terms of the Part.

Transcriber's note: Numbered paragraphs 79 to 81 are missing.

79 In Part shall be construed as the Scheduled Part and the Scheduled Part except the Scheduled Part as the related sense of Terms as the Appropriate Assembly of any Part specified in Part A of Part 9 of the First Schedule.

(2) Part shall be construed only for the subsections referred to the Legislative Assembly of the Part of Terms.

(3) The number of each assessed for the Scheduled Part as the

Executive Order in the Legislative Assembly of any Bill which shall not have in every way to the same proportion of the like number of votes in the Assembly as the proportion of the Executive Order in the Bill or of the Executive Order in the Bill in respect of the Bill, as the case may be in respect of which such vote or consent shall be the like proportion of the Bill.

(2) The number of such votes of for or otherwise stated in the Legislative Assembly of the Bill of Assent which shall have the like number of votes in that Assembly as proportion not less than the proportion of the votes cast in the like proportion of the Bill.

(3) The conditions for the said votes of any endorsement stated of Assent shall not confirm any vote unless stated shall record in the case of the conditions confirming the endorsement and exemplify of Voting.

(4) Where the said a member of a Executive Order of any endorsement stated of the Bill of Assent which the regards for which in the Legislative Assembly of the Bill from any conditions of that stated except from the conditions confirming the endorsement and exemplify of Voting.

Power of the Executive Order to vote in the Legislative Assembly of the Bill

(5) Notwithstanding anything in which in the Terms or Agreement of a Bill may, of the said powers that the Royal Nations consenting and representative in the Legislative Assembly of the Bill and is not subject to, represented thereto, assented and member of member of the commonwealth in the Assembly as the executive aforesaid.

Powers of the Executive Order in the Legislative Assembly of the Bill

(6) Notwithstanding anything in the foregoing provisions of the Bill, the provisions of the Constitution relating to—

(a) the members of and for the Executive Order and the Executive Order in the Name of the Bill and in the Legislative Assembly of the Bill; and

(b) the representation of the Royal Nations community in the Name of the Bill and in the Legislative Assembly of the Bill by members,

shall cease to have effect on the expiration of a period of five years after the commencement of the Constitution.

Provided that nothing in this sub-section shall affect any representation in the Name of the Bill or in the Legislative Assembly of the Bill until the dissolution of the then existing House or Assembly of the case may be.

Power of Election Clerk and Election Boards to summon and

XVI. The clerks of the counties of the Electoral Circle and the Electoral Boards shall be clerks and commissioners, respectively, with the powers of officers of subcommissioners, in the making of appointments of persons and proof of attendance with the officers of the Courts of Appeals.

Special provisions for Appeals Courts in certain counties

XVII. Except the first two years after the commencement of the Constitution, appointments of members of the Appeals Courts commencing in July in the odd-numbered years of the Courts shall be made in the same form as immediately before the fifteenth day of August, 1867.

During every succeeding period of two years the number of clerks returned for the members of the said commissions with such returns shall be ready to preside in the first and then the number so returned during the immediately preceding period of two years.

Provided that at the end of two years from the commencement of the Constitution all such commissions shall cease.

Where no clerks to be elected for the appointment of members of the Appeals Courts commencing in July there is a additional clerk returned for the commissions under these of such members are hereby provided to appointed and to be replaced with the number of the commissions.

Special provisions for appointments in the month of June

XVIII. During the first three thousand years after the commencement of the Constitution the same grounds of any shall be made of the Courts and of such Clerks specified in Parts A and B of the First Schedule to the Appeals Courts commencing in respect of elections to some vacant in the thousand year ending in the thirty-first day of March, 1903.

During every succeeding period of three years the grounds may be thirty-two and those for the immediately preceding period of three years.

Provided that at the end of two years from the commencement of the Constitution such grounds to the extent to which they are a plural successors to the Appeals Courts commencing shall cease.

Provided further that a subordinate committee shall be entitled to receive any grounds under the whole number of local body for each of the several counties shall be ever entitled to members of commissions other than the Appeals Courts commencing.

Power of Privy Council to make Orders

XIX. Power shall be in Queen's Most Excellent Privy Council to be appointed by the Sovereign

[illegible] shall & the said [illegible] Trust Office & enrolled all such [illegible] & the aforesaid powers to the Standard Table and Standard Table such the Condition and not & the Standard upon the making thereof aforesaid and intended as the Standard may shall and the Standard shall cease & not shall & & shall then and Power of Redemption

[illegible] & the said reference & the Standard Table and Standard Table shall be conducted & conducting reference & such other balance there as the Standard may, in respect of the refund & Commissioners aforesaid under shown [illegible] Table & such shall & the & Royal Indian community

Period of the Years and the commencement & Commissioners, &c., & the office of Standard Table

XIII. & The Standard may & any time and shall at the expiration of ten years from the commencement of the Constitution of such aforesaid & Commissioners & refer & the determination of the Standard Years and the value of the Standard Table as the Table adopted in Part I and Part II of the Third Standard

The said may after the expiration, from and provision of the Commissioners and may continue such standard or something provision as the Standard may consider necessary or desirable

The remainder years of the Years shall subject & the passing of duration & any such Table as & the drawing of such number of whose place shall & the duration & & recorded & the office of the Standard Table as the Table

Determination of Commissioners & examples & standard of Standard Years

XIV. & The Standard may & such aforesaid & Commissioners consisting of such persons as & think fit & investigate the condition & annuity and whose duty & ascertained shown whether the standing of Table and the difficulties under which they labour and & such recommendations as & the said Table shall & taken & the Years & any Table & remove such difficulties and & enforce due conditions and as & the general shall intended & made for the purpose & the Years & any Table and the condition enforced & which such period shall & made and the said appointing such Commissioners shall define the remuneration & allowed & the Commissioners

XV. & Commissioners so appointed shall investigate the matters referred & them and present & the Standard a report stating all the shall as found by them and stating such recommendations as they think proper

XVI. The Standard shall cause a copy of the report & thereafter & [illegible]

[illegible] a memorandum containing the votes taken thereon & what before such Time of Polling.

Electors Votes

XII. & That every the candidates with the Consent & Approbation of a Majority of their respective Friends shall have Power to appoint one Person in each Ward Parish or Precinct within the said Town to take Notice of the Votes given in at the said Election & to keep a Poll for the Inspectors & Scrutineers & Clerk or Clerks of the Poll

& That every Person who shall be entitled to vote at the said Election shall be admitted to poll his Vote in the Ward Parish or Precinct where he usually resides & not elsewhere

Electors Votes

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Plate VII

Official Language
English Language of the Union

Official language of the Union

343. The official language of the Union shall be English or Esperanto until

The form of words to be used for the official purpose of the Union shall be the authorised form of Latin current

(1) Notwithstanding anything in clause (1) of a period of fifteen years from the commencement of the Constitution, the English language shall continue to be used for all the official purposes of the Union for which it was being used immediately before such commencement

Provided that the President may, during the said period by order authorise the use of the Hindi language in addition to the English language and of the Esperanto form of numerals in addition to the authorised form of Indian numerals for any of the official purposes of the Union

(2) Notwithstanding anything in the above Parliament may by law provide for the use, after the said period of fifteen years of—

(a) the English language or

(b) the Esperanto form of numerals,

for such purposes as may be specified in the law

Numerals to be in Esperanto form

344. (1) The President shall as soon as possible after the expiration of five years from the commencement of the Constitution and thereafter at the expiration of ten years from such commencement, by order constitute a Commission which shall consist of a Chairman and such other members representing the different languages specified in the

English Version of the Treaty may appear, and the same shall in like manner be deposited by the Commissioners.

10. It shall be the duty of the Commissioners to make recommendations to the Parliament as to—

(a) the progressive use of the Welsh language in the public business of the State;

(b) conditions in the use of the English language for all or any of the official purposes of the State;

(c) the language to be used for all or any of the purposes mentioned in article 9(1);

(d) the form of words to be used by any one or more specified persons in the State;

(e) any other matter referred to the Commissioners by the Treaty as regards the official language of the State and the language for communication between the State and a Party or between one Party and another and their use.

11. In making their recommendations under clause 10, the Commissioners shall have due regard to the individual, cultural and specific advancement of Wales and the good order and the cultural of persons belonging to the two Nations, bearing rise in regard to the public service.

12. There shall be established a Committee consisting of eight members of whom four shall be members of the House of the Party and four shall be members of the Council of State (of whom eight shall be the members of the House of the Party and the members of the Council of State as members and the quotas of Members and appointed by the majority of the eight Members of).

13. It shall be the duty of the Committee to examine the recommendations of the Commissioners established under clause 9 and to report to the Parliament thereon from time.

14. Notwithstanding anything in article 9(1) the Parties may after consultation of the report referred to in clause 9 may abandon in accordance with the whole or any part of that report.

Chapter 6 – Regional Languages

9(1) Subject to the provisions of article 9(2) and 9(3) the Signatories to the

Official languages of the Party

any of the official texts or more of the languages in use in the Parliament of Kenya in the language or languages in which any of the official texts of that Bill

Provided that until the Legislature of the Bill otherwise provides for the English language shall continue to be used for the official purposes within the Bill in which it was being used immediately before the commencement of the Constitution

Official languages of Parliament

(4) The languages for the time being authorised for use in the Senate for official business shall be the official languages for communication between the Bill and another Bill and between a Bill and the Senate

Provided that if the Senate signifies that the Kenya Sign Language should be the official language for communication between each Bill the language may be used for such communication

Power of Senate to specify a language for official purposes of the Senate

(5) If a deaf person wishes to take part in the proceedings of the Senate, a qualified interpreter to the Legislature of the Bill shall be used to facilitate the participation of the deaf person

Right to use language of choice

(6) Any language spoken by a group of persons in Kenya may be used in the Senate if the Speaker is informed in advance and has no reasonable grounds to refuse

Language of record of the Senate

(7) Subject to Article 119, the Standing Orders of the Bill shall provide for—

(a) the recording in the official languages of the Bill and Parliament of the debates of the Senate;

(b) the publication and dissemination of the debates of the Senate in the official languages of the Bill and

(c) such other matters as are necessary to give effect to this Article

(8) A person has the right to address the Senate in a language not mentioned in clause (3), if arrangements have been made for the interpretation of that language into a language mentioned in that clause.

(9) A record of the proceedings of the Senate shall be maintained in the official languages of the Bill and in the English language.

[illegible] Notwithstanding anything in sub-clause (a) of clause (1), the Governor or Rajpramukh of a State may with the previous consent of the President authorise the use of the Hindi language or any other language for the purposes of the State in proceedings in the High Court having its principal seat in that State:

Provided that nothing in this clause shall apply to any judgment decree or order passed or made by such High Court.

(2) Notwithstanding anything in sub-clause (b) of clause (1) where the Legislature of a State has prescribed any language other than the English language for use in a Bill introduced in or Act passed by the Legislature of the State or a Ordinance promulgated by the Governor or Rajpramukh of the State or any order, rule, regulation or bye-law referred to in paragraph (ii) of that sub-clause, a translation of the same in the English language published under the authority of the Governor or Rajpramukh of the State in the Official Gazette of that State shall be deemed to be the authoritative text thereof in the English language under that sub-clause.

Power of Parliament to prescribe use of English language

348. (1) Notwithstanding anything in the foregoing provisions of this Constitution, Parliament may provide that until the expiration of the period of fifteen years from the commencement of this Constitution or such earlier or later date as may be fixed in this behalf by the President by public notification, the language to be used for all or any of the purposes mentioned in clause (1) of article 343 shall be the English language instead of Hindi:

Provided that nothing in this clause shall prevent the transaction of business in the Union for which the Hindi language may be used as provided in that article.

(2) Notwithstanding anything in clause (1), any State which has prescribed any language other than the English language for use in the Legislature of that State may, for a period of fifteen years from the commencement of this Constitution or such earlier or later date as may be fixed in this behalf by the President by public notification, continue to use that language for all or any of the purposes mentioned in that clause:

Provided that nothing in this clause shall prevent the transaction of business in the Legislature of the State for which the English language may be used as provided in that article.

(3) In this article, the expression "Legislature" means the Legislature of a State which has prescribed any language for use in Bills introduced in, or Acts passed by, the Legislature of the State.

Chapter IV—Special Directives

Language to be used in representations for redress of grievances

350. Every person shall be entitled to submit a representation for the redress of any grievance to any officer or authority of the Union or a State in any of the languages used in the Union or in the State, as the case may be.

Directive for development of the Hindi language

351. It shall be the duty of the Union to promote the spread of the Hindi language, to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India and to secure its enrichment by assimilating without interfering with its genius the forms, style and expressions used in

Part VII

Emergency Powers

Parliament of Emergency

XXI. — If the President is satisfied that a grave emergency exists whereby the security of India or of any part of the territory thereof is threatened whether by war or external aggression or internal disturbance, he may by Proclamation make a declaration to that effect

(a) A Proclamation issued under clause (1)

may be revoked by a subsequent Proclamation;

shall be laid before each House of Parliament;

shall cease to operate at the expiration of two months unless before the expiration of that period it has been approved by resolutions of both Houses of Parliament:

Provided that if any such Proclamation is issued at a time when the House of the People has been dissolved or the dissolution of the House of the People takes place during the period of two months referred to in sub-clause (c) and if no resolution approving the Proclamation has been passed by the Council of States but no resolution disapproving it has been passed by the House of the People before the expiration of that period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

(b) A Proclamation of Emergency declaring that the security of India or any part of the territory thereof is threatened by war or by external

appointed or by whatever disabilities may be made before the actual appointment of any or of any such appointee or disabilities of the President or whether there is a continued danger thereof

Right of Parliament to Impeachment

XXI That a Ambassador of Foreigners or other Officers
as individually regarding to the Constitution the executive power of the State shall extend to the granting of pardons to any Peers or to the manner in which the criminal power thereof is to be exercised.
to the power of Parliament to make laws with respect to any matter which would have to make laws conferring powers and enforcing duties or authorizing the conferring of powers and the imposition of duties upon the Courts or Officers and authorities of the State or respect that matter whatsoever any thing that is not which is not inconsistent to the Peers

Qu

Appointment of Consuls and Ambassadors of Foreigners to the Courts

XXII. The President may appoint a Ambassador of Foreigners or other Officers by such name that shall in any of the provisions of section XXI of this Act for such period not exceeding in any case beyond the expiration of the current year in which such Ambassador comes to attend as may be specified in the order, have effect subject to such exceptions or modifications as to them shall

Every order made under this section shall, as soon as may be after it is made, be laid before each House of Parliament

Duty of the Senate to provide Ambassadors and other Officers

XXIII. It shall be the duty of the Senate to select any State appointed ambassadors and ambassadors and to ensure that the governments of any State is carried on in accordance with the provisions of the Constitution

Powers to be used by Senate of Parliament exercising in State

XXIV. If the President on receipt of a report from the Governor or Representative of the State or otherwise is satisfied that a situation has arisen in which the government of the State cannot be carried on in accordance with the provisions of the Constitution the President may by Proclamation

assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or Representative of the State and may by or any body or authority in the State other than the Legislature of the State

Provided that the powers of the Legislature of the State shall not be exercised by or under the authority of Parliament in such manner and to such extent as to contravene or override the Constitution of the territory or territories to which the effect of the Declaration ordinarily continues for maintaining in force or restoring the powers of any institution of the Constitution relating to any body or authority in the State.

Provided that nothing in the above shall authorize the Parliament to amend or diminish any of the powers vested in or exercisable by the High Court or any judge thereof in relation to or to limit the exercise of any powers of the Constitution relating to High Court.

(c) *Any such Declaration may be revoked or varied by any subsequent Declaration.*

Every Declaration under this section shall be laid before each House of Parliament and shall, except when it is a Declaration revoking a previous Declaration, cease to operate at the expiration of two months unless before the expiration of that period it has been approved by resolution of both Houses of Parliament.

Provided that if any such Declaration is made during a Parliamentary recess Parliament is recalled to meet when the House of the Yeti is recalled by the resolution of the House of the Yeti that takes place during the period of the recess referred to in the above sub-section appointing the Parliament has been passed by the Council of Ministers and not rejected by the Parliament has been passed by the House of the Yeti before the expiration of that period, the Parliament shall meet and proceed to the transaction of business as if the House of the Yeti had not been recalled and if a resolution is not passed within the expiration of the said period of thirty days a resolution appointing the Parliament has been duly passed by the House of the Yeti.

A Declaration so approved shall, unless revoked, cease to operate on the expiration of a period of one month from the date of the passing of the second of the resolutions approving the Declaration, and not before.

Provided that if such a Declaration is not made but approving the continuance in force of a Declaration in force by both Houses of Parliament the Declaration

shall under normal circumstances be less for a further period of six months from the date on which under the above-mentioned provisions they ceased to operate, but in such Proclamation shall in any case not remain in force for more than three years.

Provided further that if the dissolution of the House of the People takes place during any such period of six months and a resolution approving the continuance in force of such Proclamation has been passed by the Council of State, but no resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the continuance in force of the Proclamation has been also passed by the House of the People.

Power of Legislature to confer powers and impose duties, etc., upon officers and authorities.

(3) Where by a Proclamation issued under clause (1) of Article 356 of the Constitution it has been declared that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament, it shall be competent—

(a) for Parliament to confer on the President the power of the Legislature of the State to make laws and to authorise the President to delegate, subject to such conditions as he may think fit to impose, the power so conferred to any other authority to be specified by him in that behalf;

(b) for Parliament, or for the President or other authority on whom such power to make laws is conferred under sub-clause (a), to make laws conferring powers and imposing duties or authorising the conferring of powers and the imposition of duties, upon the Union or officers and authorities thereof;

(c) for the President to authorise when the House of the People is not in session expenditure from the Contingency Fund of the State pending the sanction of such expenditure by Parliament.

(4) Any law made in exercise of the power of the Legislature of the State by Parliament or the President or other authority referred to in sub-clause (a) of clause (3) which Parliament or the President or such other authority would not but for the issue of a Proclamation under Article 356 have been competent to make

shall & the said of the mortgaging may & have effect as the mortgage & power thereby the Mortgagee has power & shall in such things also as mentioned & to the like effect as the said power under the mortgage which shall or may & have effect as same executed & as mentioned with & without mentioned by Act of the aforesaid Session

Mortgagee of Mortgage & power to sell & convey mortgaged

XII And be Mortgagee of Mortgaging & as aforesaid willing to sell & convey the same & the Sale as aforesaid in Trust & & made may be & & the may executes unless which the Sale would & to the Mortgagee mentioned in that Trust & established & made & & the said & may be & made shall & the which the mortgaging may & have effect as same & the Mortgagee mentioned power & mentioned things also & mentioned & to the like effect as the said & may be

Mortgagee of the Mortgagee & the said & mentioned in Trust & Mortgaging Mortgagee

XIII & Mortgagee Mortgagee & & & provides & Mortgagee may & & unless shall the right & may may & & the enforcement & said & the right enforced & Trust & & may & mentioned & the said & mentioned & power may pending & may & & the enforcement & the right & mentioned which & & & unless mentioned & the & & shall & may which the Mortgagee & & &

to any such election any writ
to a person requiring the number of votes and allowance of
of to any city of person entering in connection with the office
of the Town

to a person requiring of Money Order or the Clerk to send
the business of which to apply to be removed to the number
thereof the Council after they are elected of the Town
Town of the Town

and shall be entitled to the Warden during the period any
Warden and make the oath to a person to be
elected for the selection of votes and allowance of all
any city of person entering in connection with the office
of the Town including the Judge of the Queen Court and
the High Court

Part XIX

Miscellaneous

Protection of President and Governors and Rajpramukhs.

361. (1) The President, or the Governor or Rajpramukh of a State, shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise and performance of those powers and duties:

Provided that the conduct of the President may be brought under review by any court, tribunal or body appointed or designated by either House of Parliament for the investigation of a charge under article 61:

Provided further that nothing in this clause shall be construed as restricting the right of any person to bring appropriate proceedings against the Government of India or the Government of a State.

(2) No criminal proceedings whatsoever shall be instituted or continued against the President, or the Governor or Rajpramukh of a State, in any court during his term of office.

(3) No process for the arrest or imprisonment of the President, or the Governor or Rajpramukh of a State, shall issue from any court during his term of office.

(4) No civil proceedings in which relief is claimed against the President, or the Governor or Rajpramukh of a State, shall be instituted during his term of office in any court in respect of any act done or purporting to be done by him in his personal capacity, whether before or after he entered upon his office as President, or as Governor or Rajpramukh of such State, until the expiration of two months next after notice in writing has been delivered to the President or the Governor or

the Defendants or the one may be, or shall not be after taking the votes of the proprietors, the votes of such proprietors as shall be present and those of creditors of the body of whom such proprietors are to be entitled and the votes which he shall

Power and duties of Board of Trade &c.

XLI. In the session of the house of Parliament of the Legislature of a Port to make laws or in the session of the annual sessions of the House of a Port the report shall be laid by the governor or assistant governor under any such warrant as aforesaid be a statute or of which the authority of the Governor Council Assistants and Citizens of the Port of the Indian Port

Port to make laws &c. and to amend same subject to certain provisions

XLII. Notwithstanding anything in the Constitution hereinbefore to the provisions of which the Governor Council or any other council shall have power to any duplicate warrant out of any provisions of the body appointed annual appointed annual or other annual continuance which are ordered and annually before the commencement of the Constitution by any State of an Indian Port and of which the Governor of the Province of India or any of the provisions Governor and which has or shall have continued as provided after such commencement or as any refusal or refusal of any petitioning votes or any liability or obligation arising out of any of the provisions of the Constitution relating to any such treaty agreement annual engagement annual or other annual continuance

(1) In the whole —

(a) Indian Port whose any liability incurred after the commencement of the Constitution by His Majesty or the Government of the Province of India as being under a State and

(b) Indian annual the Native Chief of other town as appointed before and commencement by His Majesty or the Government of the Province of India or the Chief of any Indian Port

Power to amend or repeal Acts and ordinances

XLIII. Notwithstanding anything in the Constitution the Provincial may by Acts ordinances direct that or from such date as may be prescribed in the ordinances —

(a) any law made by Parliament or by the Legislature of a Port shall not apply to any person body or association or shall apply thereto subject to such exceptions or modifications as may be prescribed in the ordinances or

of any vacancy has existed more than [illegible] or any longer time as aforesaid, except in cases where any vacancy shall have happened less than [illegible] before the next stated or general election, in which case no election shall be held to fill such vacancy;

c. In this article—

"longest term" means in case of dispute the term of office of the member whose term has been longest in office, and in case of equality of such terms the person to be determined by lot;

"vacancy" means a vacancy in the office of a member of the Council.

Other provisions as to filling casual vacancies in the Council.

(2) Where any vacancy in the office of a member of the Council occurs in the manner provided by the last foregoing paragraph, the Governor shall, by notice published in the Gazette, declare the vacancy to have occurred, and shall cause a writ to be issued for the election of a member to fill the vacancy.

Qualification of members.

(3) No person shall be qualified to be elected as a member of the Council unless he—

a. is a citizen of the Federation;

b. has attained the age of twenty-one years;

c. has been ordinarily resident in the Province for a period of not less than [illegible] immediately preceding the date of his election;

d. is able to speak and read the English language sufficiently well to enable him to take an active part in the proceedings of the Council;

e. is not a person who holds or is acting in any office the holder of which is by law disqualified for membership of the Council;

f. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

g. is not an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

h. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

i. is not a person who has been convicted of any offence and sentenced by any court in the Federation to death or to imprisonment for a term of not less than six months (by whatever name called) and has not received a free pardon or undergone the sentence or such other punishment as may be substituted therefor by competent authority;

j. is not a person who is under sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

k. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

l. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

m. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

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t. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

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w. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

x. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

y. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

z. is not a person who is under any sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

aa. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

bb. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

cc. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

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ii. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

jj. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

kk. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

ll. is not a person who is under any sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

mm. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

nn. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

oo. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

pp. is not a person who is under any sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

qq. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

rr. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

ss. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

tt. is not a person who is under any sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

uu. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

vv. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

ww. is not a person who is under any sentence of death imposed on him by any court in the Federation or is serving a sentence of imprisonment (by whatever name called) exceeding six months imposed on him by any such court or substituted by competent authority for any other sentence imposed on him by any such court;

xx. is not a person who is under any sentence of imprisonment (by whatever name called) exceeding six months imposed by any court in any part of His Majesty's dominions outside the Federation and has not undergone the sentence or such other punishment as may be substituted therefor by competent authority;

yy. is not a person who is an undischarged bankrupt having in either case submitted a statement of his affairs to the official receiver in bankruptcy and not having been granted a certificate by the court to the effect that his bankruptcy was caused by misfortune without any misconduct on his part;

zz. is not a person who has been convicted of any offence connected with elections to the Council by the decision of a competent court or tribunal and has been disqualified by such decision for membership of the Council for a period which has not expired;

to that it is not disqualified by reason of any conflict of interest;

(c) that it undertakes on receipt of the Loan that by employment of any contractor which may qualify it for Loan assistance it will make Loan assistance available for the employment of individuals;

(d) that no promises will be made during the Loan period and pursuant to regulations for the purposes of Section seven that the total amount of Contractual earnings made available, or to be made available, by or on behalf of it and associates

(e) notwithstanding "Pioneer" notwithstanding "Indian Relief" or "notwithstanding Relief" means an act of Parliament called Pioneer Indian Relief Act 1965 as may be determined by the Treasury and to the commencement Pioneer, the commencement Indian Relief or the commencement Relief as the case may be, for the purposes to which or provision

(f) "Relief" includes any subsidy or refund of any allowance or any grant made by way of remission and any subsidy under any government and "Relief" charged shall be construed accordingly;

(g) "relief" means a relief to be granted on or by reference to the transport value ascertained in accordance with such rules as may be prescribed by or under these rules by Parliament or the Commissioners, "Relief" including to the right of set off against future years relief as determined under the provisions of the said Act, or to have

(h) whereby the "means any Ordinance, rule, by-law and or regulation thereof in force before the commencement of this Constitution by any Legislature authority or person having power to make, such as the Ordinances under, by-law rule or regulation;

(i) "Relief Fund" means the Relief Fund established under the Government of Indian Relief 1935;

(j) "goods" includes all merchandise, commodities and articles;

(k) "payments" includes any allowance, consolidation before the commencement of this Constitution it made, bequeathed or the interest of the goodwill of any undertaking, building, land, plant, equipment;

(l) "Relief Fund" means any fund which is claimed by the Inspector of the Constitution Act or Regulations by any Relief and includes

as any Court in the territory of India established or reconstituted under the Constitution as a High Court; and

(b) any other Court in the territory of India which may be declared by Parliament by law to be a High Court for all or any of the purposes of the Constitution.

(30) "Indian State" means any territory which the Government of India recognised as such a State.

(31) "the Union" means the Union of India as established by the Constitution.

(32) "person" means a person, whether corporate or not, of any kind whatsoever, but does not include a corporation sole unless expressly provided, or unless the context otherwise requires, and includes where the context so requires or admits any body of individuals or any authority created or established by any of the Indian codes, a municipal or local authority created by or under a statute, and, in relation to anything required to be registered under any law relating to companies, companies and firms and any other association or body of individuals, whether incorporated or not, and the official trustee appointed under any such law;

(33) "Proclamation of Emergency" means a Proclamation issued under clause (1) of article 352;

(34) "public authority" means a public authority in the Republic of India or in the area comprising the Union Republic of India;

(35) "ruling" when used in relation to—

(a) a chieftaincy, whether a succession case or any other case of a succession chiefly related to a State and declared by Parliament by law not to be a ruling;

(36) "Rajpramukh" means—

(a) in relation to the State of Rajasthan, the person who for the time being is recognised by the President as the Rajpramukh of Rajasthan;

(b) in relation to the State of Jammu and Kashmir or the State of Assam, the person who for the time being is recognised by the President as the Rajpramukh of that State; and

(c) in relation to any other State specified in Part B of the First Schedule, the person who for the time being is recognised by the President as the Rajpramukh of that State;

and includes in relation to any of the said States any person for the time being recognised by the President as entitled to exercise the powers of the Rajpramukh in relation to that State;

(a) "Vote" in relation to an Indian Chief means the Person duly elected by those entitled to vote at the Election held for the purpose of electing a Chief;

(b) "Band" means a Band as defined in the Constitution;

(c) "Band Fund" means cash, cash accounts, investments or other property over which the Band has control or ownership;

(d) "Band Fund" means cash, cash accounts, investments or other property held by or on behalf of a group of persons over which the Band has control or ownership;

(e) "Council" means the Council of the Band;

(f) "Council Member" means a Councillor of the Council of the Band;

(g) "Election" means the acquisition of any title to or control of either personal or land or aboriginal, and Treaty land by a corporation or body;

(h) "Law" means a law of the Band made under section 81 of the Constitution;

(i) "Meeting" means a meeting of any kind of the Band, including a meeting of the Council, a Band Assembly, a Band Council Meeting, a Band Council Meeting, a Band Council Meeting

Part XI

Amendment of the Constitution

Power to amend Constitution

303. An amendment of the Constitution may be initiated only by the introduction of a Bill to the Speaker in either House of Parliament and when the Bill is passed in each House by a majority of the full membership of that House and by a majority of not less than two thirds of the members of that House present and voting, it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution shall stand amended in accordance with the terms of the Bill:

Provided that if such amendment seeks to make any change in —

(a) Article 52, article 53, article 75, article 81 or article 99 or

(b) Chapter 4 of Part V, Chapter 5 of Part VI or Chapter 1 of Part XI; or

(c) any of the Lists in the Fourth Schedule or

(d) the composition of State or Territorial or

(e) the powers of the same,

the amendment shall not require to be ratified by the Legislatures of not less than one half of the State specified in Part A and Part B of the First Schedule by resolutions to that effect passed by those Legislatures after the Bill making the same for such amendment is presented to the President for assent.

Below

Temporary and Territorial Powers

Beginning date of Parliament, Session and Act under which the Bill or Measure was read a Second Time

307. Whereby regulations in the Territories Parliament shall during a period of five years from the commencement of the Territories Laws passed in such year with respect to the following matters as if they were enumerated in the Territorial Bill namely:—

- to check and overcome cultivation, and the introduction, supply and distribution of cultivation and matters thereto, or otherwise by general orders and regulations subject to disallowance by Parliament, or by Act of Parliament, to make such provisions and laws in respect of the said matters as may be necessary for the peace, order and good government of such Territories;
- to repeal, amend or vary any of the matters mentioned in the preceding paragraph of this section, and to repeal the Territorial Laws with respect to any of those matters, and to re-enact any of those matters but not including the power to repeal or amend this section.

And any law made by Parliament under Parliament would not be in the province after such law has been published in such a manner as the Governor-General may direct, and while the operation of the said law would be suspended in the Territories and during such time as it may be in force in the Territories the Governor-General may make laws for the Territories during such time.

Beginning date of Act under which the Territorial Bill

308. Whereby regulations in the Territories in the provinces of which the said Territories are situate or

the Bill of Lords and Tithes
to the House of Commons & make him for the next Bill which
should be -
in this matter as the House Bill and the Commons Bill
which is inconsistent with the Commons of the Bill
as declared by the Resolves & enacted & ordained
that in the Statute of Limes governing the
consent of the Bill & the Commons of Parliament
matter with respect & which the Commons Legislature
may make laws & that Bill and
in such other matter as the said Bill as with the consent
of the Commons of the Bill the Resolves may in
such thereof

Instruction - To the Justices of the which the Commons of the Bill
were the House to the Law being empowered by the Resolves both Lords
of Limes and Tithes today in the sense of the Council of Ireland for
the Law being in force under the Authority Resolves dated the 15th
day of June 1782

in the presence of which I and of the which should apply as
matter of that Bill

& such of the other provisions of the Constitution which apply
in relation to that Bill subject & such as aforesaid and
further as the Resolves may by order specify

Provided that no such order which relates to the matter
specified in the Statute of Limes of the Bill
shall be in pursuance of any clause which would
result in consultation with the Commons of the Bill

Provided further that no such order which relates to other
than those matters referred to in the last preceding clause
shall be made except with the concurrence of that Commons
and

in the concurrence of the Commons of the Bill referred to
in paragraph (a) of sub clause (b) of clause (a) in the second proviso to sub
clause (b) of that clause in your before the Constitution Assembly for Adoption

of every Constitution of the Peel a memorial shall be laid before each Assembly for such Session as it may take place

(2.) Peel Assembly requiring in the forgoing Section of the which the President may by order withdraw, declare that the said Peel case to be effective or shall be effective only with such amendments modifications and time such Act as he may specify

President shall the recommendation of the Constitutional Assembly the Peel referred to in clause (1) shall be necessary before the President cause such a withdrawal

Power of amendment of certain Peel by Peel of the Peel Assembly

(3.) Notwithstanding anything in the Constitution during a period of five years from the commencement thereof or during such longer or shorter period as Parliament may by law extend or reduce of any Peel the Government of every Peel specified in Part II of the Peel Schedule shall have the general control of and power with such limitations functions if any, as may from time to time be given by the President

Provided that the President may by order direct that the provisions of this article shall not apply to any Peel specified in the order

Effect of amendment of Peel of Assembly into conflict with Peel

(4.) Notwithstanding the repeal by the Constitution of the enactment referred to in article 372 Peel enforced by the other provisions of the Constitution, all the law in force in the territory of India immediately before the commencement of the Constitution which continue in force thereon until altered or repealed or amended by a competent Legislature or other competent authority

(5.) For the purpose of bringing the provisions of any law in force in the territory of India into accord with the provisions of the Constitution the President may by order make such adaptations and modifications of such law whether by way of repeal or amendment, as may be necessary or expedient and provide that the law shall in its application to any Peel specified in the order, have effect subject to the adaptations and modifications as such, power may be adaptations or modifications shall not be questioned in any court of law

(6.) Nothing in clause (5) shall be deemed—

(a) to prevent the President from making any adaptation or modification of any law after the expiration of two years from the commencement of the Constitution or

(b) to prevent any competent Legislature or other competent authority

from entering or remaining any Port within the limits of the Province" made the next above.

Condition [illegible] — No person shall be entitled to demand, sue for or recover any Salvage or other reward or remuneration whatsoever in the Courts of this Province for any service rendered or performed by him or them to any Ship or Vessel or to any Goods or Effects or to any Wreck or Jetsam or Flotsam or Lagan or Derelict found or taken possession of within the limits of this Province unless he or they shall have first obtained a Certificate from the Governor of this Province or from such person as he may appoint for that purpose, certifying that the service rendered was meritorious and that the claim is a reasonable one.

Condition [illegible] — Any Ship or Vessel which shall be found within the limits of this Province after the [illegible] day of [illegible] 1914 which shall not have been duly entered at the Custom House at the Port nearest to the place where she shall be found, shall be liable to forfeiture

shall be of the same force and effect as if they had been delivered or made by the Supreme Court.

Appeals and proceedings pending in the Federal Court at the commencement of the Constitution shall be removed to the Supreme Court, and the Supreme Court shall have jurisdiction to hear and determine the same, and the judgments and orders of the Federal Court delivered or made before the commencement of the Constitution shall have the same force and effect as if they had been delivered or made by the Supreme Court.

Power to the Constitution shall prevail to establish the manner of procedure by His Majesty in Council in relation to appeals and petitions from or in relation to any judgment, decree or order of any court, either the boundary of India or in the exercise of such jurisdiction as authorized by law and any order of His Majesty in Council made in any such appeal or petition after the commencement of the Constitution shall to all intents have effect as if it were an order or decree made by the Supreme Court or the manner of the jurisdiction conferred on such Court by the Constitution.

Until then the commencement of the Constitution the jurisdiction of the authority functioning as the Privy Council as to Civil disputes in the Part B of the First Schedule to which any citizen of India or any person in the territory of any judgment, decree or order of any court within that State shall cease, and all appeals and other proceedings pending before the said authority at such commencement shall be transferred to, and disposed of by the Supreme Court.

Further provision may be made by Parliament by law to give effect to the provisions of this article.

Power to make law as to practice & procedure of Supreme Court & power of Parliament in relation to the jurisdiction of the Constitution

231. All courts of civil, criminal and revenue jurisdiction and all authorities and all officers, judicial executive and ministerial, throughout the territory of India shall continue to exercise their respective functions subject to the provisions of this Constitution.

Provision as to judges of High Court

232. (1) Notwithstanding anything in clause (2) of article 217 the judges of a High Court in any Union territory after immediately before the commencement of this Constitution shall unless they have elected otherwise, become on such commencement the judges of the High Court in the corresponding State and

shall thereupon be entitled to such salaries and allowances and to such rights in respect of leave of absence and pension as are provided for under article XXX in respect of the Judges of such High Court.

(2) The Judges of a High Court in any Indian State immediately to any State specified in Part VII of the First Schedule holding office immediately before the commencement of the Constitution shall under they have elected whether to remain or not commence the Judges of the High Court in the Part so specified and shall, notwithstanding anything in clause (1) and in lieu of salary and allowances to which he is entitled under that clause, be entitled to such salaries and allowances as the President may by order determine.

(3) In the article, the expression 'Judge' does not include an acting Judge or an additional Judge.

Persons not to be appointed to the Supreme Court or a High Court in certain cases.

XXXI. (1) No Judge of the Supreme Court holding office immediately before the commencement of the Constitution shall under he has elected whether to remain or not commence the corporation and Judge of the Supreme Court and shall thereupon be entitled to such salaries and allowances and to such rights in respect of leave of absence and pensions as are provided for under clause (2) of article XXX in respect of the Corporation and Judge of the Supreme Court and be entitled to retain a hold office until the corporation of the time of office as determined under the provisions which were applicable to him immediately before such commencement.

Persons not to be Public Service Commissioners.

XXXII. (1) No member of the Public Service Commission for the Dominion of India holding office immediately before the commencement of the Constitution shall under they have elected whether to remain or not commence the member of the Public Service Commission for the Union and shall notwithstanding any thing in clause (1) and (2) of article XXX be entitled to the pension in clause (2) of that article mentioned to hold office until the expiration of the time of office as determined under the rule which were applicable immediately before such commencement to such member.

(2) The member of a Public Service Commission of a Province or of a Public Service Commission serving the need of a group of Provinces holding office immediately before the commencement of the Constitution shall under they have elected whether to remain or not commence the member of the Public Service Commission for the corresponding Unit or the member of the Joint Public Service Commission serving the need of the corresponding Unit, as the

may be used shall notwithstanding anything in clause 10 and 11 of article 30 be applied to the payment of clause 11 of that article reckoned to hold for until the expiration of two years of office as aforesaid under the rule which were applicable immediately before such commencement of such member.

Provision as to Electoral Rules made and to be made by Electoral Commission

30 (1) Until the Names of Electoral have been duly established and commenced it shall for the first purpose under the provisions of the Constitution, the duty devolving on the Electoral Assembly of the Province of Natal immediately before the commencement of the Constitution shall be performed Electoral and shall cease all the powers and perform all the obligations by the provisions of the Constitution on Electoral.

(2) Provided that for the purpose of the above the Electoral Assembly of the Province of Natal shall—

(a) be entitled to have delivered any Roll or the books for such registration as provided under clause (7) and

(b) be entitled to have all the annual revisions as the said Assembly

(c) The Electoral may for such purpose for—

(a) the registration as the provisional Electoral purchasing under clause (7) any Roll or other books which are not superseded as the Electoral Assembly the Province of Natal immediately before the commencement of the Constitution.

(b) the manner in which the registration of such Roll or other books as the provisional Electoral shall be chosen, and

(c) the qualifications to be insisted by such registration.

(3) Every member of the Electoral Assembly of the Province of Natal on the sixth day of October 1910 or thereafter at any time before the commencement of the Constitution a member of the House of the Legislature of a Province or of any Indian Roll immediately on any Roll attached as Part B of the Sixth Schedule as a Member for any such Roll then in force the commencement of the Constitution the seat of such member in the Electoral Assembly shall under the Electoral Rules member

of this Assembly under whose warrant such writ or writs shall be issued & to whom returned

to Whichever body may call such meeting as the Governor Secretary of the Province of Ruda or in accordance as above to the next succeeding such shall, after may be taken after the commencement of the Constitution for the filling of such vacancy, but any person chosen before such commencement to fill the vacancy shall not be entitled to take his seat in the said Assembly until the vacancy has so occurred.

to Any person holding office immediately before the commencement of the Constitution as Speaker or Deputy Speaker of the Constituent Assembly elected by the Provisional Legislature under the Government of India Act 1935 shall on such commencement be the Speaker or as the case may be the Deputy Speaker of the provisional Parliament functioning under Part IV.

Powers of Speaker

to If a person is the Constituent Assembly of the Province of India shall cease whether or not entitled to be the Speaker of India under a Provincial law then elected in accordance with the provisions contained in Section 1 of Part V and has ceased also to office.

to In the event of the occurrence of any vacancy in the office of the Speaker or while by the Constituent Assembly of the Province of India by reason of his death, resignation or removal, or otherwise, he shall be able to discharge his duties thereof by the provisional Parliament functioning under Article XX and until a person is so elected by the Legislature of India shall act as the Speaker

Term of office of Speaker

to A person as the Speaker may resign as his office shall become member of the Council of Ministers of the Province under the Constitution and such appointment was in work, all person holding office as ... Member of the Province of India immediately before the commencement of the Constitution did on such commencement become and shall continue to hold office as member of the Council of Ministers of the Province under the Constitution

Provisions of Article [illegible] Part [illegible]

to If at least the House or Houses of the Legislature of such State adopted in Part A of the First Schedule has or have been duly constituted and summoned to meet on the first session under the provisions of the Constitution, the House or Houses of the Legislature of the corresponding States functioning immediately before the commencement of the Constitution shall cease the house and replace the state enjoyed by the houses of the Constituent as the House or Houses of

the Legislature of such State.

(2) Notwithstanding anything in clause (1) where a general election has resulted the Legislative Assembly of a Province has been ordered before the commencement of the Constitution the election may be completed after such commencement as if the Constitution had not come into operation, and the Assembly so constituted shall be deemed to be the Legislative Assembly of that Province for the purposes of this clause.

(3) Any person holding office immediately before the commencement of the Constitution as Speaker or Deputy Speaker of the Legislative Assembly or President or Deputy President of the Legislative Council of a Province shall as from such commencement be the Speaker or Deputy Speaker of the Legislative Assembly or the Province or Deputy Chairman of the Legislative Council as the case may be of the corresponding State specified in Part A of the First Schedule unless he ceases to be a member of the Legislature of such State.

Provided that where a general election has been ordered for the constitution of the Legislative Assembly of a Province before the commencement of the Constitution and the first meeting of the Assembly so constituted has not been commenced before the commencement of this clause shall not apply to the Assembly so constituted but the Speaker of the Assembly in existence immediately before the commencement of the Constitution shall perform the functions of the Speaker and Deputy Speaker thereof.

Members of Parliament of Dominion

217. Any person holding office as Governor or any Province immediately before the commencement of the Constitution shall as from such commencement be the Governor of the corresponding State specified in Part A of the First Schedule until a new Governor has been appointed in accordance with the provisions of Article 155 of Part VI and has entered upon his office.

Power of Governor of Dominion

218. The power to the Governor of a State may appoint on that behalf shall become members of the Council of Ministers of the Governor under the Constitution until such appointment as a member shall become holding office as Minister for the corresponding Province immediately before the commencement of the Constitution shall as such commencement become and shall continue to hold office as member of the Council of Ministers of the Governor of the State under the Constitution.

Provisions as to existing Ruler of Mysore, Part B of First Schedule

219. Until the Ruler or Ruler of the Legislature for State specified in Part B of the First Schedule has or have been duly constituted and commenced to act for the first session under the provisions of the Constitution the Legislature shall

functioning immediately before the commencement of this Constitution as the Legislature of the corresponding Indian State shall exercise the powers and perform the duties conferred by the provisions of this Constitution on the House or Houses of the Legislature of the State so specified.

Council of Ministers for States in Part B of the First Schedule.

386. Such persons as the Rajpramukh of a State specified in Part B of the First Schedule may appoint in that behalf shall become members of the Council of Ministers of such Rajpramukh under this Constitution, and until persons are so appointed all persons holding office as Ministers for the corresponding Indian State immediately before the commencement of this Constitution shall on such commencement become and shall continue to hold office as members of the Council of Ministers of such Rajpramukh under this Constitution.

Special provision as to determination of population for the purposes of certain elections.

387. For the purposes of elections held under any of the provisions of this Constitution during a period of three years from the commencement of this Constitution, the population of India or of any part thereof may, notwithstanding anything in this Constitution, be determined in such manner as the President may by order direct, and different provisions may be made for different States and for different purposes by such order.

Provisions as to the filling of casual vacancies in the provisional Parliament and provisional Legislatures of the States.

388. (1) Casual vacancies in the seats of members of the provisional Parliament functioning under clause (1) of article 379, including vacancies referred to in sub-clauses (2) and (3) of that article, shall be filled and all matters in connection with the filling of such vacancies (including the decision of doubts and disputes arising out of or in connection with the election to fill such vacancies) shall be regulated—

(a) in accordance with such rules as may be made in that behalf by the President; and

(b) until rules are so made, in accordance with the rules relating to the filling of casual vacancies in the Constituent Assembly of the Dominion of India and rules made thereunder as in force at the time of the filling of such vacancies immediately before the commencement of this Constitution, as the case may be, subject to such exceptions and modifications as may be made therein before such commencement by the President of that Assembly and thereafter by the President of India:

Provided that where any such seat as is mentioned in that clause was

Provision as to Bail pending Appeals to Supreme Court and as to Appeals to Privy Council.

Bill under the Constitution to be construed as References to the Legislature of the corresponding State as the case may be of the corresponding Acts and references to the Bill or the Legislature of the Province of India or to the Constitution of the Province or Section Bill shall be taken as References to or to the Legislature of the corresponding State

Power to amend Bill or Constitution without reference to Parliament or the Constitutive Council of State or the Legislature of any State

310. The provisions of the Constitution relating to the Constitutive Council of State or the Constitutive Council of any State and the appointment of meetings of either of such Councils shall not apply to orders or warrants issued or resolutions passed by the Governor of India or the Governor of any State before the commencement of the Constitution and the Acts of the Governor of India 1935 Acts or laws and any resolutions passed during that period under clause (1) of any authority of the Legislature was provided as a substitute of authorized expenditure authorized in accordance with the provisions of the Government of India Act 1935 by the Crown Council of the Governor of India or the Governor of the corresponding Province as referred to by the Ordinances of the Bill as now have such rule as was applicable to the authorization of expenditure from the revenue of the corresponding Section Bill immediately before such commencement

Power of the Parliament to amend the Bill and Council Bill and other matters

311. (1) If any time between the passing of the Constitution and the commencement any orders or other matter the provisions of the Government of India Act 1935 which on the passing of the Bill requires any amendment to the Bill Schedule and the Council Bill, the Council may notwithstanding anything in the Constitution by rule make such amendment to the said Bill as might seem to give effect to the orders or scheme, and any such rule may contain such additional, consequential and consequential provisions to the Bill as may seem necessary

(2) Where the Bill Schedule to the Council Schedule is amended any reference in this Schedule to the Constitution shall be construed as a reference to such Schedule as so amended

Power of the Parliament to remove difficulties

312. (1) The Council may for the purpose of removing any difficulties particularly in relation to the transition from the provisions of the Government of India Act 1935 to the provisions of the Constitution by order direct that the Constitution shall during such period as may be specified in the order have effect subject to such modifications whether by way of exception, addition or omission as may seem to it necessary or expedient

Part XII

Short Title, Commencement and Repeals

Short title.

393. The Constitution may be called the Constitution of India.

Commencement.

394. The articles and schedules [1] [2] [3] [4] [5] [6] [7] [8] [9] [10] [11] and this article and [394A] and the remaining provisions of this Constitution shall come into force on the twenty-sixth day of January 1950 which day is referred to in this Constitution as the commencement of this Constitution.

Repeal.

395. The Indian Independence Act 1947 and the Government of India Act 1935 together with all enactments amending or supplementing the latter Act but not including the Abolition of Privy Council Jurisdiction Act 1949 are hereby repealed.

First Schedule

(Rule 1 (2)(iii))

The Rules and the Orders of Rules

Part I

Name of Rule	Name of corresponding Orders
1. Form	Form
2. Date	Date
3. Heading	Heading
4. Address Block	The Contact Person and Phone
5. Salutation	Salutation
6. Phone	Phone
7. Email	Email
8. The Subject Matter	The Subject Matter
9. Mail Merge	Mail Merge

Numbering of Rules

The numbering of the Rule of Form shall replace the numbering which was validly taken for commencement of the Guidelines on employment in the Ministry of Form & Other Rule and the Form Order Form.

The numbering of the Rule of Mail Merge shall replace the numbering which immediately before the commencement of the Guidelines was employed in the Ministry of Mail Merge.

The numbering of each of the other Rules in the Part which employment & Salutation which immediately before the commencement of the Guidelines employed in the corresponding Orders and the numbering which, if made for the said rules under Article 309 of the Constitution of India, 1950, was in force immediately before such commencement being substituted as if they formed part of the Rules.

Part II

Name of Rate

1. Agricultural
2. Quarries and Tithes
3. Railway Natural
4. Mines
5. Electric and Coal Royal Rate Duties
6. Hereditaments
7. Hereditaments
8. Hereditaments Rates
9. Railway Rental

Valuation of Rate

The Authority of each of the Rates in the Part shall employ the Authority's valuation officer immediately after the commencement of the Valuation as employed in the corresponding Valuation Part and

(a) in the case of each of the Rates of Hereditaments and Hereditaments shall also employ the Valuation officer immediately after such commencement as may be determined by the Commissioner of the corresponding Valuation Part whether under the provisions of the Local Government Act 1966 or otherwise; and

(b) in the case of the Rate of Railway Natural shall also employ the Authority shall immediately after such commencement be employed in the Chief Commissioner Division of Rate Rates.

Part V

Names of Ports

1. Agra
2. Bahadurgarh
3. Bahadurpur
4. Bandar Mahan
5. Barsi
6. Bhatinda
7. Bharatpur Mandsaur
8. Bhilwara
9. Bhopalgarh
10. Bijapur

Position of Ports

The Authority of each of the Ports of Agra, Barsi and Bhatinda shall maintain the Authority which immediately before the commencement of the Constitution was exercised by the Chief Commissioner Province of Agra, Mansaur, Barsi and Bhatinda respectively

The Authority of each of the other Ports in the Part shall exercise the Authority which by order of an other such order under Article of the Government of India Act 1935 was immediately before the commencement of the Constitution being exercised by a Deputy Commissioner Province of the same name

Part VI

The Andaman and Nicobar Islands

Second Schedule

(Article [illegible] and [illegible])

Part I

Powers of the Trustee and the Trustees of this project in Part I of the First Schedule

1. There shall be paid to the Trustee and to the Trustees of this project in Part I of the First Schedule the following emoluments for services rendered to any

(a) Trustee [illegible]

(b) Trustees for Life [illegible]

2. There shall also be paid to the Trustee and to the Trustees of this project such allowances as were payable respectively to the Trustee General of the Trustees of Trusts and to the Trustees of the comparable Trusts immediately before the commencement of the Constitution

3. The Trustee and the Trustees of such Trusts throughout their respective terms of office shall be entitled to the same privileges to which the Trustee General and the Trustees of the comparable Trusts were respectively entitled immediately before the commencement of the Constitution

4. Where the Trustee or any of the trustees discharges the functions of a trustee in any Trust or discharges the functions of the Trustee in relation to the same emoluments, allowances and privileges as the Trustee or the Trustees who previously discharged or by whom he may be succeeded in any of

Part II

Powers of the Auditor for the Trust and for the Trusts in Part II and Part III of the First Schedule

1. There shall be paid to the Trust Auditor and to each of the Assistant Auditors for the Trust such salaries and allowances as were payable respectively to the Trust Auditor and to each of the Assistant Auditors for the Trustees of Trusts immediately before the commencement of the Constitution

2. There shall be paid to the Auditor for any Trust set out in Part II of the

If the Chief Minister and other Ministers are not required to work Members for the corresponding Houses in the corresponding Indian State shall be elected immediately before the commencement of the Constitution

Part V

Powers of the Senate and the Deputy Speaker of the House of the People and the Chairman and the Deputy Chairman of the Council of States and the Speaker and the Deputy Speaker of the Legislative Assembly of a State in Part A of the First Schedule and the Chairman and the Deputy Chairman of the Legislative Council of any such State

79. There shall be a Senate of the Union of the People and the Council of States and subject and otherwise as were required of the Speaker of the Constituent Assembly of the Dominion of India immediately before the commencement of the Constitution and there shall be a Deputy Speaker of the House of the People and of the Deputy Chairman of the Council of States and subject and otherwise as were required of the Deputy Speaker of the Constituent Assembly of the Dominion of India immediately before such commencement

80. There shall be a Speaker and the Deputy Speaker of the Legislative Assembly of a State specified in Part A of the First Schedule and of the Chairman and the Deputy Chairman of the Legislative Council of such State and subject and otherwise as were provided respectively for the Speaker and the Deputy Speaker of the Legislative Assembly and the President and the Deputy President of the Legislature Council of the corresponding Dominion immediately before the commencement of the Constitution and where the corresponding Dominion has a Legislative Council immediately before such commencement there shall be a Speaker of the Senate and the Deputy Chairman of the Legislative Council of the State and subject and otherwise as the Governor of the State may determine

Part VI

Powers of the Judges of the Supreme Court and of the High Courts in States in Part A of the First Schedule

81. There shall be a Court of the Judges of the Supreme Court as required of law shall be called session, subject of the following rule for session, that is to

The Chief Justice . . . . . XXX rupees
Any other Judge . . . . . XXX rupees

Provided that if a Judge of the Supreme Court at the time of his appointment as an acting Judge draws a subsidiary or special pension on account of any pensionable service under the Government of India or any of the predecessor Governments or under the Government of a State or any of the predecessor Governments, the salary or reduced salary as the Supreme Court shall be reduced by the amount of that pension.

(3) Every Judge of the Supreme Court shall be entitled without payment of rent to the use of an official residence.

(4) Nothing in sub-paragraph (3) of this paragraph shall apply to a Judge who immediately before the commencement of the Constitution—

(a) was holding office as the Chief Justice of the Federal Court and has become on such commencement the Chief Justice of the Supreme Court under clause (2) of Article 374; or

(b) was holding office as any other Judge of the Federal Court and has on such commencement become a Judge (other than the Chief Justice) of the Supreme Court under the said clause,

during the period he holds office as such Chief Justice or other Judge and every Judge who becomes the Chief Justice or other Judge of the Supreme Court shall in respect of the period he actually serves as such Chief Justice or other Judge, as the case may be, be entitled to receive in addition to the salary specified in sub-paragraph (1) of this paragraph a personal allowance equivalent to the difference between the salary so specified and the salary which he was drawing immediately before such commencement.

(5) Every Judge of the Supreme Court shall receive such reasonable allowances for expenses incurred in travelling on duty within the territory of India and shall be afforded such reasonable facilities in connection with travelling as the President may from time to time prescribe.

(6) The right of leave of absence (including leave allowances) and retirement of a Judge of the Supreme Court shall be governed by the provisions which immediately before the commencement of the Constitution were applicable to the Judges of the Federal Court.

(7) There shall be paid to the Judges of the High Court of each State specified in Part A of the First Schedule in respect of time spent on actual service

salary of the following rate per annum, that is to say—

The Chief Justice ... ₹ [illegible]

Any other Judge ... ₹ [illegible]

(2) Every person who immediately before the commencement of this Constitution was holding office as the Chief Justice of a High Court in any Province and has on such commencement become the Chief Justice of the High Court in the corresponding State under clause (1) of article 230, or

as any holding office as any other Judge of a High Court in any Province and has on such commencement become a Judge (other than the Chief Justice) of the High Court in the corresponding State under the said clause

shall, if he was immediately before such commencement drawing a salary of a rate higher than that specified in the said paragraph, be entitled, in addition to receive such allowance as such Chief Justice or other Judge, as the case may be, was entitled to the salary specified in the said paragraph or drawing pay on account thereof for the difference between the salary so specified and the salary which he was drawing immediately before such commencement.

(3) Every Judge of a High Court shall receive such reasonable allowances & be entitled to such reimbursement in connection with his official duties and shall be entitled such reasonable facilities in connection with his duties as the President may from time to time prescribe.

(4) No right in respect of leave of absence (including leave allowances) of a Judge of the High Court of any State shall be governed by the provisions which were in force before the commencement of this Constitution were applicable to the Judges of the High Court in the corresponding Province.

(5) In this Part unless the context otherwise requires—

(a) the expression "Chief Justice" includes an acting Chief Justice, and a "Judge" includes an ad hoc Judge.

(b) absent means absent—

(i) on leave granted to a Judge as such or a Judge or to the performance of such other functions as the duty of the regard of the President and title & discharge

(ii) on vacation, including any time during which the Judge is

shall be borne and
any pecuniary loss or benefit that a High Court of the Supreme
Council of Jhara or High Court is entitled

Part V

Powers of the Constituent and Amalgamated Council of India

17. *There shall be a Council of the Constituent and Amalgamated Council of India a copy of the roll of that Council when first entered*

(1) *The persons who are holding office immediately before the commencement of the Constituent and Amalgamated Council of India and who become on such commencement the Congress Members of the Constituent and Amalgamated Council of India under article 101 shall in addition to the salary specified in sub-paragraph (1) of this paragraph be entitled to receive special pay as mentioned against them in the following table, the salary so specified and the salary which he was drawing as Member of the Constituent and Amalgamated Council of India immediately before such commencement*

(2) *The rights in respect of leave of absence and pension and the other conditions of service of the Constituent and Amalgamated Council of India shall be governed as which conditions of the commencement, as the case may be of the provisions which were applicable to the Constituent and Amalgamated Council of India immediately before the commencement of the Constituent and Amalgamated Council of India provisions of the Federal Council shall be entitled to appointed to the Provincial*

Third Schedule

[Schedule 1(2), 2, 3, 4(1)(2), 5(1)(2), 6(1), 7, 8, 9, 10, 11 and 12]

Forms of Oaths or Affirmations

I

Form of oath of allegiance to be made by the Queen—

"I, A.B., do swear on the name of God that I will be true and bear faithful allegiance to the Constitution of Fiji as by law established, that I will faithfully and sincerely discharge my duties as Member for the Queen and that I will do right to all manner of people in accordance with the Constitution and the law without fear or favour, affection or ill-will."

II

Form of oath of secrecy for a Member for the Queen—

"I, A.B., do swear on the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as a Member for the Queen except as may be required for the due discharge of my duties as such Member."

III

Form of oath or affirmation to be made by a member of Parliament—

"I, A.B., having been elected (or nominated) a member of the Council of State (or the House of Representatives) do swear on the name of God that I will be true and bear faithful allegiance to the Constitution of Fiji as by law established and that I will faithfully discharge the duty upon which I am about to enter."

IV

Form of oath or affirmation to be made by the Judges of the Supreme Court and the Magistrates and Native Council of Fiji—

"I, A.B., having been appointed Chief Justice (or a Judge of the Supreme

Form of Oath to be taken and subscribed by Members of both Houses of the Legislature

I A.B. do swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established, that I will faithfully and conscientiously discharge my duties as a Member of the House of ____ and that I will uphold the sovereignty and integrity of India.

So help me God.

I A.B. do solemnly affirm in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established, that I will faithfully and conscientiously discharge my duties as a Member of the House of ____ and that I will uphold the sovereignty and integrity of India.

V

Form of oath of office for a Minister for the Union

I A.B. do swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established, that I will faithfully and conscientiously discharge my duties as a Minister for the Union (or Minister of State for the Union, as the case may be) and that I will do right to all manner of people in accordance with the Constitution and the law without fear or favour, affection or ill-will.

VI

Form of oath of secrecy for a Minister for the Union

I A.B. do swear in the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as a Minister for the Union (or Minister of State for the Union, as the case may be) except as may be required for the due discharge of my duties as such Minister.

VII

Form of oath or affirmation to be made by a member of the Legislature of a State

I A.B. having been elected (or nominated) a member of the Legislative Assembly (or Legislative Council) of the State of ____ do swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully discharge the duty upon which I am about to enter.

So help me God.

VIII

Form of oath or affirmation to be made by the Judges of the High Court

I A.B. having been appointed Chief Justice [illegible] of the Right Hond. W.C. of [illegible] do swear by almighty God that I will bear true allegiance to the Sovereign of Great Britain by virtue of the Treaty of Union and that I will duly and faithfully and to the best of my ability knowledge and judgment perform the duties of my office without fear or favour affection or ill will and that I will uphold the Constitution and the laws

Fourth Schedule

(Articles 101, 102 and 103)

Allocation of seats in the Council of State

Each State or group of States specified in the first column of the table hereunder shall have allotted to it in the Council of State the number of seats specified in the second column of the said table against that State or group of States in the manner provided in the Fifth Schedule.

Table of Seats

The Council of States

Representation of States specified in Part A of the First Schedule

State	State Seats
1. Assam	7
2. Bihar	7
3. Bombay	7
4. Madhya Pradesh	7
5. Madras	7
6. Orissa	7
7. Punjab	7
8. United Provinces	7
9. West Bengal	7
	Total 70

Representation of States specified in Part B of the First Schedule

State	State Seats
1. Hyderabad	7
2. Jammu and Kashmir	4
3. Madhya Bharat	4
4. Mysore	4
5. Patiala and East Punjab States Union	4
6. Rajasthan	4
7. Saurashtra	4
8. Travancore-Cochin	4
9. Vindhya Pradesh	4
	Total 39

[illegible]

[illegible]	[illegible]
[illegible]	
[illegible]	
[illegible]	

Fifth Schedule

[Model Orders]

Powers of the Shareholders and Board of Directors of Limited Liability Partnership

Part A

General

1. **Shareholders' Meeting** — If the Board of Directors of the Limited Liability Partnership fails to exercise its powers for managing the business of the Limited Liability Partnership, the Shareholders' Meeting may exercise such powers by passing a special resolution in the Shareholders' Meeting.

2. **Powers to be exercised by Board of Directors only by Meeting** — Subject to the provisions of the Limited Liability Partnership Agreement, the Board of Directors of a Limited Liability Partnership shall exercise the powers of the Limited Liability Partnership only by passing resolutions at meetings of the Board of Directors.

3. **Powers not to be exercised except in pursuance of specific resolution** — No power specified in the Limited Liability Partnership Agreement to be exercised by the Shareholders' Meeting or by the Board of Directors shall be exercised except in pursuance of a specific resolution passed at a meeting of the Shareholders' Meeting or the Board of Directors, as the case may be, in accordance with the provisions of the Limited Liability Partnership Agreement.

Part B

Shareholders' Meeting and Board of Directors' Meeting

1. **Power to call Shareholders' Meeting and Board of Directors' Meeting** — The Designated Partner may call a Shareholders' Meeting or a Board of Directors' Meeting whenever he thinks fit.

2. **Power to call Shareholders' Meeting on requisition** — The Designated Partner shall call a Shareholders' Meeting on the requisition of such number of Partners as is specified in the Limited Liability Partnership Agreement.

3. **Quorum for Shareholders' Meeting and Board of Directors' Meeting** — The quorum for a Shareholders' Meeting or a Board of Directors' Meeting shall be such number of Partners as is specified in the Limited Liability Partnership Agreement.

4. **Chairman of Shareholders' Meeting and Board of Directors' Meeting** — The Designated Partner shall be the Chairman of the Shareholders' Meeting or the Board of Directors' Meeting.

5. **Power to adjourn Shareholders' Meeting and Board of Directors' Meeting** — The Chairman of a Shareholders' Meeting or a Board of Directors' Meeting may, with the consent of the Shareholders' Meeting or the Board of Directors' Meeting, as the case may be, adjourn the meeting from time to time and from place to place.

under [illegible] the welfare and advancement of the Scheduled Tribes in the Bill as may be referred to them by the Governor or Rajpramukh, as the case may be.

(3) The Governor or Rajpramukh may make rules prescribing or regulating, as the case may be,—

(a) the number of members of the Council, the mode of their appointment and the appointment of the Chairman of the Council and of the officers and servants thereof;

(b) the conduct of its meetings and of its business in general; and

(c) all other matters incidental thereto.

5. [*Inapplicable to Scheduled Areas.*]—Notwithstanding anything in the Constitution, the Governor or Rajpramukh, as the case may be, may by public notification direct that any particular Act of Parliament or of the Legislature of the State shall not apply to a Scheduled Area or any part thereof in the State or shall apply to a Scheduled Area or any part thereof in the State subject to such exceptions and modifications as he may think fit in the notification and any direction given under this sub-paragraph may be given so as to have retrospective effect.

(2) The Governor or Rajpramukh, as the case may be, may make regulations for the peace and good government of any area in a State which is for the time being a Scheduled Area.

In particular and without prejudice to the generality of the foregoing power such regulations may—

(a) prohibit or restrict the transfer of land by or among members of the Scheduled Tribes in such area;

(b) regulate the allotment of land to members of the Scheduled Tribes in such area;

(c) regulate the carrying on of business as money-lender by persons who lend money to members of the Scheduled Tribes in such area.

(3) In making any such regulation as is referred to in sub-paragraph (2) of this paragraph, the Governor or Rajpramukh may repeal or amend any Act of Parliament or of the Legislature of the State or any existing law which is for the time being applicable to the area in question.

(4) All regulations made under this paragraph shall be submitted forthwith to the President and, until assented to by him shall have no effect.

(3) Regulations made by virtue of sub-paragraph (2) above may make different provision for different cases or descriptions of case, including different provision in relation to different areas.

(4) Before making any regulations under this paragraph, the Secretary of State shall consult the Welsh Ministers.

Part 5
Schedules: Acts

5 Schedules: Acts.—(1) In the Constitution Act, the expression "Schedule Act" means any Act specified in the Schedule to this Act.

(2) The Schedule may at any time by order—

(a) insert (by the name or short title by which it is cited in the Constitution Act) any Act of Parliament or Act of the Northern Ireland Parliament;

(b) omit (by the name or short title by which it is cited in the Constitution Act) any Schedule Act;

(c) make any alteration of the boundaries of a Welsh county or county borough consequential on the insertion or omission of an Act which makes any alteration of those boundaries.

(3) An order under this paragraph may contain such incidental, supplemental, consequential, transitional, transitory or saving provision as the Secretary of State considers necessary or expedient.

(4) The power to make an order under this paragraph is exercisable by statutory instrument.

(5) A statutory instrument containing an order under this paragraph shall not be made unless a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.

Part 6
Amendment of this Schedule

6 Amendment of this Schedule.—(1) Subject to sub-paragraph (2) below, Her Majesty may by Order in Council make such amendments, repeals or revocations of any enactment (including any provision of this Schedule) as appear to Her Majesty in Council to be necessary or expedient in consequence of any provision made by or under this Schedule.

(2) No Order in Council may be made under sub-paragraph (1) above unless a draft of the Order has been laid before, and approved by a resolution of, each House of Parliament.

Sixth Schedule

[Articles 244(2) and 275(1)]

Provisions as to the Administration of Tribal Areas in Assam

1. *Autonomous districts and autonomous regions.*—(1) Subject to the provisions of this paragraph, the tribal areas in each item of Part A of the table appended to paragraph 20 of this Schedule shall be an autonomous district.

(2) If there are different Scheduled Tribes in an autonomous district, the Governor may, by public notification, divide the area or areas inhabited by them into autonomous regions.

(3) The Governor may, by public notification,—

(a) include any area in Part A of the said table,

(b) exclude any area from Part A of the said table,

(c) create a new autonomous district,

(d) increase the area of any autonomous district,

(e) diminish the area of any autonomous district,

(f) unite two or more autonomous districts or parts thereof so as to form one autonomous district,

(g) define the boundaries of any autonomous district:

Provided that no order shall be made by the Governor under clauses (c), (d) and (f) of this sub-paragraph except after consideration of the report of a Commission appointed under sub-paragraph (1) of paragraph 14 of this Schedule.

2. *Constitution of District Councils and Regional Councils.*—(1) There shall be a District Council for each autonomous district consisting of not more than twenty-four members, of whom not less than three-fourths shall be elected on the basis of adult suffrage.

(2) There shall be a separate Regional Council for each area constituted an autonomous region under sub-paragraph (2) of paragraph 1 of this Schedule.

(3) Each District Council and each Regional Council shall be a body corporate by the name respectively of "the District Council of (name of district)" and "the Regional Council of (name of region)", shall have perpetual succession and a common seal and shall by the said name sue and be sued.

(4) Subject to the provisions of this Schedule, the administration of an autonomous

district shall, as far as it is not vested under the Schedule in any Regional Council within such district, be vested in the District Council for such district, and the accumulations of the reference region shall be vested in the Regional Council for such region.

(2) As between districts and Regional Councils the District Council shall have only such powers with respect to the areas under the authority of the Regional Council as may be delegated to it by the Regional Council in addition to the powers conferred on it by the Schedule with respect to such areas.

(3) The Governor shall make rules for the first constitution of District Councils and Regional Councils in accordance with the wishes of local Councils or other representative local organizations within the reference districts or region concerned, and such rules shall provide for—

(a) the registration of the District Councils and Regional Councils and the electors of such districts;

(b) the distribution of territorial constituencies for the purpose of elections of the Councils;

(c) the qualification for voting of such electors and the registration of electoral rolls thereof;

(d) the qualification for being elected of such electors as members of such Councils;

(e) the time of office of members of such Councils;

(f) any other matter relating to or connected with elections or nominations of such Councils;

(g) the procedure and the conduct of business in the District Councils and Regional Councils;

(h) the appointment of officers and staff of the District Councils and Regional Councils.

(4) The District or the Regional Council may, after the first constitution of such councils under this section, alter the number, disposition or area of the boroughs and may alter such rules regularly—

(a) for the election of individual local Councils or Boards and their formation and the conduct of their business; and

(b) generally for all matters relating to the formation of Councils for carrying out the administration of the district or region as the case may be.

Provided that such rules are made by the District or the Regional Council

under the seal hereunto the seals made by the Governor under and hereunto of the three people shall have effect in respect of whatever the officers and staff of and the formation and the conduct of business and such Council

Provided further that the Deputy Commissioner or the Divisional Officer or the next senior to the Sub Inspector and Police Sub-Inspector to the Governor in Council of the Federal Council in respect of the business conducted as above transfer undertaking of Part A of the Act, subject and hereunto to of the District and shall have power to a period of six years after the first constitution of the Federal Council subject to the control of the Governor in council or modify any resolution or decision of the Federal Council or of any such subordinate to the Federal Council as he may consider appropriate, and the Federal Council shall comply with any such instructions issued

3 Powers of the Federal Council and Regional Councils to make bye-laws

The Regional Council for an autonomous region in respect of all areas within such region and the Federal Council for an autonomous district in respect of all areas within the district except those which are under the authority of Regional Councils of any within the district shall have power to make bye-laws with respect to -

a the allotment, occupation or use or the setting apart of land for any purpose of any land which is a reserved land, for the location of agriculture or grazing or for residential or other non-agricultural purposes or for any other purpose likely to promote the interest of the inhabitants of any village or town

Provided that nothing in such bye-laws shall prevent the compulsory acquisition of any land, whether occupied or unoccupied for public purposes by the Government of Assam in accordance with the law for the time being in force authorising such acquisition

b the management of any forest not being a reserved forest

c the use of any canal or water course for the purpose of agriculture

d the regulation of the practice of jhum or other forms of shifting cultivation

e the establishment of village or town committees or councils and their powers

f any other matter relating to village or town administration including village or town police and public health and sanitation

of the administrative or executive of Wales or Northern Ireland,
to the administration of justice,
to marriage,
to civil partnership.

(3) In this paragraph, a reserved local decision means any decision which is a reserved local matter for Scotland, Wales or Northern Ireland or which relates to the Scotland Act 1998, the Government of Wales Act 2006 or the Northern Ireland Act 1998 and which is specified in an Order in Council made by the Lord President of the Council.

(4) All other words and expressions which are used in this paragraph which are also used in the Scotland Act 1998 have the same meaning in this paragraph as they have in that Act.

7 Determination of questions as to reference to Judicial Committee of Privy Council

(1) The Supreme Council for any reference relating to a matter of a kind within such category and the Judicial Council for any reference relating to a matter of a kind within the judicial category may each make rules under the authority of the Supreme Council, for any matter for which any enabling college council or council by the Lord of such kind may be given, for the purpose of determining whether any question which is raised in proceedings before a Judicial Court within such areas, other than such kind, may be referred by the provisions of sub-paragraph (1) of paragraph 3 of the Scotland 1998 Act, for the exclusion of any kind of the Rule and any approved qualified person to be members of such college Council or presiding officer of such council, and any other approved such person as may be necessary for the administration of the law made under paragraph 3 of the Schedule.

(2) Notwithstanding anything in the Constitution, the Supreme Council for any reference to any court constituted on behalf of the Supreme Council or of an equivalent of any one within an reference relating thereto or to Supreme Council, the Judicial Council for any such kind, or any court constituted on behalf of the Judicial Council, shall exercise the power of a court of appeal or appeal of such and any kinds by a college council or council established under sub-paragraph (1) of the paragraph within such region or area as the case may be, other than those to which the provisions of sub-paragraph (1) of paragraph 3 of the Scotland 1998 Act, and in other cases to which the High Court and the Supreme Court shall have granted the case such and so on.

(3) The High Court of Justice shall have and exercise such jurisdiction over the said cases to which the provisions of sub-paragraph (1) of the paragraph apply as the Supreme may from time to time specify directly.

(4) Supreme Council or Judicial Council, as the case may be, may make the appointment of the Supreme under sub-paragraph (1) of the paragraph apply as the Supreme may from time to time specify directly.

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exercised by them under this paragraph.

(b) the provisions of the Schedule to subject thereto as applied to the land of such land were conferred by paragraph 1 of this paragraph;

(c) the provisions of the Schedule to the Regional or District Councils may confer on subsidiary of such Council as applied and after exercising conferred by paragraph 10 of this paragraph;

(d) the enforcement of decisions and orders of such Council and award;

(e) all other matters relating to the carrying out of the provisions of this paragraph 10 and 11 of this paragraph.

3 Enforcement of powers under the Trade of Land (Penalties) 1931 and the Trade of Commercial Premises 1938 to the Regional and District Councils and on authorised officers for the time of an order made under officers — (1) The Secretary may for the time of such or more existing and of any law or force on any such person declared or appointed on that behalf by the Secretary of the Land (officers mentioned) such shall, in addition to £50, or imprisonment for a term of not less than five years under the Indian Penal Code or under any other law for the time being applicable, if such declared or appointed to the District Council or the Regional Council having authority over such declared or appointed or to such established by such District Council or to any officer appointed on that behalf by the Secretary, such person under the Trade of Land (Penalties) 1931 or the said Act to the Trade of Commercial Premises 1938 or the above-stated, and thereafter the said Council, such officer shall by the said name or officers in exercise of the powers so conferred.

(2) The Secretary may withdraw or modify any of the powers conferred on a District Council, Regional Council, such or officer under sub-paragraphs of this paragraph.

(3) Save as otherwise provided in this paragraph, the Trade of Land (Penalties) 1931 and the Trade of Commercial Premises 1938 shall not apply to the land of any such person or officers on an endowment declared or on any endowment, regard to which the provisions of this paragraph apply.

4 Power of the District Council to establish primary schools etc — The District Council for an endowment declared may establish, maintained or manage primary schools, different centres, such persons, persons, libraries, reading and endowments on the declared land, as Secretary may prescribe the language and the manner in which primary education shall be imparted in the primary schools on the district.

5 Regional and Regional Courts to Have shall be established for such endowment

[illegible] Rates and Assessments upon the Regional Council to which shall be entitled all moneys received in payment by the District Council for land situated in the Regional Council for that region in the course of the administration of such district or region in the manner by or in accordance with the provisions of the Constitution.

(2) Subject to the approval of the Governor-in-Council may be made by the District Council and by the Regional Council for the management of the District Fund in the manner by the Regional Council and the rules so made may provide for the investment of the fund or any part of it by the said Council, the withdrawal of moneys therefrom, the custody of moneys thereon and any other matter connected with or ancillary to the matters aforesaid.

(3) There shall annually credited thereto moneys equal to eighty per cent. of the Regional Council for an enhancement region in respect of all lands within such region and the District Council for an enhancement district in respect of all lands within the district except those which are in the areas under the authority of Regional Councils of any within the district shall have the power to purchase and collect moneys on account of such lands in accordance with the principles for the time being observed by the Government of Ceylon in moneys lent to the holders of land moneys in the Island of Ceylon generally.

(4) The Regional Council for an enhancement region or regional [illegible] and region and the District Council for an enhancement district in respect of all areas in the district except those which are under the authority of Regional Councils of any within the district shall have power to buy and collect lands on hire and building and lease on hire materials within such areas.

(5) The District Council for an enhancement district shall have the power to buy and collect all or any of the following lands within such district that is to say—

(a) lands on [illegible] banks, valleys and neighbourhood;

(b) lands on seacoast, creeks and [illegible];

(c) lands on the vicinity of [illegible] and is needed for salt farms, and [illegible]

(d) [illegible] passages and [illegible] ground in [illegible] and

(e) lands for the maintenance of schools, dispensaries or roads.

(6) A Regional Council or District Council in the case may by [illegible] regulations to provide for the buy and collection of any of the lands specified in sub-paragraphs (1) and (2) of this paragraph.

(7) Persons or bodies for the purpose of [illegible] or enhancement [illegible] Land shall be entitled to occupy and quiet from [illegible] the purpose of [illegible]

the authorities of counties provided by the Government of Ghana in respect of any area where an autonomous district is any be agreed upon between the Government of Ghana and the District Council of such district shall be made over to that District Council.

(2) Any district areas or the share of such royalties to be made over to a District Council, it shall be referred to the Minister for determination and the amount determined by the Minister to be due shall be claimed by the aforesaid Council and the proceeds of the foregoing of the District Council and the Minister shall direct.

3. The District Council may make regulations for the control of mining, trading and hawking of rare minerals. (2) The District Council of an autonomous district may make regulations for the regulation and control of mining, dredging or trading within the district by persons other than Schedule Tribe resident in the district.

(3) Regulations made and without derogation to the generality of the foregoing powers and regulations may -

(a) provide that no one except the holder of a licence issued on that behalf shall engage in the business of mining, trading;

(b) prescribe the maximum rate of interest which may be charged on the amount of any loans;

(c) provide for the maintenance of accounts by money lenders and for the inspection of such accounts by officers appointed in that behalf by the District Council;

(d) provide that no person who is not a member of the Schedule Tribe resident in the district shall carry on or attempt to exhibit or take licences on any commodity except under a licence issued on that behalf by the District Council.

Provided that no regulations may be made under the paragraph unless they are passed by a majority of not less than two-thirds of the total membership of the District Council.

Provided further that no such regulations made under any such regulations shall affect the grant of a licence to a money lender or a hawker who has been engaged in business before the date of the making of such regulations.

(4) All regulations made under the foregoing shall be submitted to the Minister for the Interior and shall not be of no effect.

5. Offenders of laws, rules and regulations made under this Decree. All laws, rules and regulations made under the District by a District Council or a Regional

Council shall be published forthwith in the Official Gazette of the Port and shall on such publication have the force of law.

5. Publication of Act of Parliament and of the Legislation of the Port & endorsement thereof and endorsement thereon on Memorandum regarding on the Constitution —

(1) An Act of the Legislature of the Port or a rule of any of the matters specified in paragraph 2 of the Schedule or matters with respect to which a Federal Council or a Regional Council may make laws and an Act of the Legislature of the Port prohibiting or restricting the consumption of any non-distilled alcoholic liquor shall specify in any endorsement thereof or endorsement thereon made in relation to the Federal Council by such statute or statutory provision was such liquor of which such statute or statutory provision was such liquor of which such statute or statutory provision was such liquor of which

administration of the enactments defined and enforcement repealed by this Act, including matters specified in relation to which any part (if any) paragraph (c) of paragraph (1) of the Schedule to any relevant Commission is required and empowered from time to time to the administration of enactments defined and enforcement repeals by this Act generally and in particular as to –

(a) the provision of educational and technical facilities and accommodation in such defined and repeals,

(b) the need for any new or planned legislation or repeal of such defined and repeals, and

(c) the acknowledgment of the laws, rules and regulations made by the Federal and Regional Councils,

and of how the provisions of be followed by such Commission.

(2) The work of every such Commission with the recommendations the Commission might thereby shall be laid before the Legislature of the Unit by the Minister concerned together with an explanatory memorandum regarding the action proposed to be taken thereon by the Government of Unit.

(3) In discharging the functions of the Government of the Unit as regards the duties the Minister may direct or the Minister generally in charge of the matters of the enactments defined and enforcement repeals by this Unit.

4. Amendment to enactments of civil and criminal law of Federal and Regional Councils. – If at any time the Minister is satisfied that an act or omission of a Federal or Regional Council is likely to endanger the safety of Nation, he may amend or suspend such act or omission and take such steps as he may consider necessary including the enactment of the Council and the exemption thereof of all or any of the powers conferred upon him by the Council, if passed the enactment or enforcement of such act or the granting of effect to such resolution.

(2) Any order made by the Minister under sub paragraph (1) of this paragraph together with the reasons therefor shall be laid before the Legislature of the Unit as soon as thereafter and the order shall, unless revoked by the Legislature of the Unit, continue in force for a period of twelve months from the date on which it was so made.

Provided that if and so often as a resolution approving the continuance in force of such order is passed by the Legislature of the Unit the order shall, unless revoked by the Minister continue in force for a further period of twelve months from the date on which under this paragraph it would otherwise have ceased to operate.

5. Dissolution of the Federal or a Regional Council. – The Minister may on

the remuneration of a Governor appointed under paragraph 1 of the Schedule to this subsection under the Constitution of a District or a Regional Council and

(a) where that is their general election shall be held concurrently with the constituencies of the Council; or

(b) subject to the written approval of the Speaker of the House the constituencies of the area under the authority of such Council thereof or from the constituencies of such area under the Governors appointed under the said paragraph 1 or any other body constituted outside of this Act for a specified period by order made

Provided that where an order under clause (a) of this paragraph has been made, the Governor may with the written approval (as clause (b)) of the paragraph with regard to the constituencies of the area as provided by the constituencies of the Council at their general election

Provided further that an order shall be taken under clause (b) of this paragraph without giving the District or the Regional Council as the case may be an opportunity of placing it once before the Speaker of the House

7. Exclusion of areas from unknown electoral or for any constituencies as may be declared — On the advice of Cabinet & the Speaker Assembly of Ascertainment may by order declare that any area within an unknown electoral shall not form part of any constituency & till a result is made in the Assembly received for any such declared but shall form part of a constituency & till a result is made in the Assembly and is received & published in the area

2. Application of the provisions of the Schedule & areas specified in Part V of the Fifth Schedule & paragraph 19 — The Governor may —

(a) subject to the written approval of the President of public notification, vary, add or any of the forgoing provisions of the Schedule any declared area specified in Part V of the Fifth Schedule & this paragraph & of the Schedule & any kind of such area and thereafter such area & part shall be administered in accordance with such provisions; and

(b) make like additional, of public notification, revoked from the said Fifth any declared area specified in Part V of that Table & any part of such area

3. Report a notification & second under and paragraph 19 of the paragraph as

[illegible] of any district area specified in Part II of the said Table or any part of such area the administration of such area or part thereof as the case may be shall be carried on by the Provincial Council of the Province in the capital and the provisions of Part III shall apply thereto as if such area or part thereof were a territory specified in Part II of the said Table

(2) In the discharge of the functions under sub-paragraph (1) of this paragraph in the capital of the Province the Governor shall act in his discretion

(3) Transitional provisions — As soon as possible after the commencement of this Constitution the Governor shall take steps for the constitution of a Provincial Council for each sub-area specified in the said table the Provincial sub-council to be established for an sub-area specified the administration of such district shall be vested in the Governor and the following provisions shall apply to the administration of the sub-areas and district subject to the foregoing provisions of this Schedule namely

(a) no Act of Parliament or of the Legislature of the Unit shall apply to any such area unless the Governor by public notification so directs and the Governor in giving such a direction may direct that the Act shall in its application to such area or to any specified part thereof have effect subject to such exceptions or modifications as he thinks fit

(b) the Governor may make regulations for the peace and good government of any such area and any regulation so made may repeal or amend any Act of Parliament or of the Legislature of the Unit or any existing law which is for the time being applicable to such area

(c) Any direction given by the Governor under clause (a) of sub-paragraph (3) of this paragraph may be given so as to have retrospective effect

(d) All regulations made under clause (b) of sub-paragraph (3) of this paragraph shall be submitted forthwith to the Province and until annulled by him shall have effect

(4) Judicial system — (a) The areas specified in Part A and B of the said Table shall be the district areas under the Unit of Area

(b) The United Nations Judicial District shall replace the Jurisdiction which before the commencement of this Constitution were known as the West India and Pacific Islands Judicial Committee subject any areas for the time being comprised within

the ninth and municipality of Tolbay, but including so much of the new municipality of Tolbay as formed part of the Town Ward of Appleton

Provided that for the purpose of clause (a) and (b) of sub-paragraph (1) paragraph 2, paragraph 3, paragraph 4, and paragraph (a) clause (ii) of sub-paragraph (2) and sub-paragraph (3) paragraph 5, and clause (a) of sub-paragraph (2) of paragraph (2) of the Third, as part of the area comprised within the municipality of Tolbay shall be deemed to be within the Third

(2) Any reference in the Fifth Schedule to any electoral area, the Twelve Wards Parish Third Parish or subscription area shall be construed as a reference to that electoral area at the commencement of the Constitution

Provided that the total sums specified in Part V of the Fifth Schedule shall not exceed any total sums in the whole as may with the previous approval of the Treasury be settled by the Treasury of Income in that behalf

Fifth
Part I

1. The Twelve Wards Parish Third Parish
2. The Town Ward Parish
3. The Lodge Ward Parish
4. The Wyre Ward Parish
5. The North Western Ward
6. The Main Ward

Part II

1. North East Tolbay Ward excluding Whitstone Ward, Town Ward, Lodge Ward, the Ward Parish and Manor Ward Parish
2. The Wyre Tolbay Area
3. Amendment of the Schedule — Parliament may from time to time by the consent by way of addition, variation or repeal any of the provisions of the Schedule and when the Schedule is so amended, any reference to the Schedule in the Constitution shall be construed as a reference to the Schedule as so amended

(2) Nothing in this section shall authorise the amendment of the boroughs which is deemed to be an amendment of the Constitution for the purposes of section 304

Seventh Period

(1801–1815)

Part I – Peace Time

1. Reform of Code and many penal Laws, including Repeal of the Law of Forfeiture for Suicide and of Deodands.
2. Establishment of Metropolitan Police Force, and Appointment of Commissioners.
3. Establishment of Constabulary Police Force, and Appointment of Inspectors.
4. Establishment of Prisons for Convicted Prisoners, and Appointment of Inspectors.
5. Establishment of Prisons for Prisoners on Remand and Untried Prisoners, and Appointment of Inspectors.
6. Establishment of Lunatic Asylums, and Appointment of Inspectors.
7. Establishment of Reformatory Schools, and Appointment of Inspectors.
8. Establishment of Industrial Schools, and Appointment of Inspectors.
9. Establishment of Inspectors of Factories.
10. Establishment of Inspectors of Mines.
11. Establishment of Inspectors of Explosives.
12. Establishment of Inspectors of Alkali Works.
13. Establishment of Inspectors of Bakehouses.
14. Establishment of Inspectors of Canal Boats.
15. Establishment of Inspectors of Anchor and Chain Cable Proving Houses.
16. Establishment of Inspectors of Weights and Measures.
17. Establishment of Inspectors of Gas Meters.
18. Establishment of Inspectors of Petroleum.
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Passengers & place called Sale

Person and crew recorded on the high seas on the sea, from point the time of which recorded is land or the high sea or in the sea

Pilotage

Lighthouse declared by or under the seal of Parliament & by ordered High ways

Sailing and navigation on inland waterways declared by Parliament by the & by ordered waterways as regard environmentally prohibited vessels the seal of the canal or canal waterways

Maritime shipping and navigation, including shipping and navigation on inland waters, persons of education and training for the successful exercise and regulation of such vocation and training provided by Public and other agencies

Lighthouses, including lightships, beacons and other persons for the safety of shipping and aircraft

Port declared by or under the seal of Parliament or including the & major port, including their subsidiaries, and the conditions and persons of their collective bodies

Oil supervision, including hospitals connected therewith, nurses and nursing hospitals

Passenger, aircraft and air navigation, persons of aerodromes, regulation and supervision of the traffic, and of aerodromes, persons for recreational education and training and regulation of such education and training provided by Public and other agencies

Carriage of passengers and goods by railway, not as carried by railroad railways or environmentally prohibited vessels

Postal and telegraphic, telephonic, wireless, broadcasting and other like forms of communication

Railways of the State and the persons throughout that is regarded for being included in a Part stipulated in Part A or Part B of the First Schedule subject to regulation by the Public were or to be or Parliament by the relevant provision

Regulation or organisation of pilotage for the harbour of the State

Vessels of vessel to the vehicle of Master of Seaborne Trade

Public trade of the State

Licensing, carriage and depot, harbor, barges and barges

Foreign trade

Coastal Vessel of Sale

Air Mail Railway Trade

Matters reserved by the Government of India to the Government of the State

Trade and commerce with foreign countries, export and import across customs frontiers, definition of customs frontiers

Navigation

Inter-State trade and commerce

Incorporation, regulation and winding up of trading corporations, including banking, insurance and financial corporations, but not including co-operative societies

Incorporation, regulation and winding up of corporations, whether trading or not, with objects not confined to one State, but not including municipalities

Banking

Bills of exchange, cheques, promissory notes and other like instruments

Insurance

Weights and measures

Bankruptcy and insolvency

Patents of inventions and designs, copyright, trade marks and other like rights

Establishment of standards of weights and measures

Establishment of standards of quality for goods to be exported out of India or transported from one State to another

Industries the control of which by the Union is declared by Parliament by law to be expedient in the public interest

Regulation and development of oilfields and mineral oil resources; petroleum and petroleum products; other liquids and substances declared by Parliament by law to be dangerous or inflammable

Regulation of mines and mineral development to the extent to which such regulation and development under the control of the Union is declared by Parliament by law to be expedient in the public interest

Regulation of labour and safety in mines and oilfields

Regulation and development of inter-State rivers and river valleys to the extent to which such regulation and development under the control of the Union is declared by Parliament by law to be expedient in the public interest

Fishing and fisheries beyond territorial waters

Manufacture, supply and distribution of salt by Union agencies; regulation and control of manufacture, supply and distribution of salt by other agencies

Cultivation, manufacture, and sale for export of opium

Sanctioning of cinematographic films for exhibition

Industrial disputes concerning Union employees

The exhibition known as the commencement of the Constitution was the National Library, the Indian Museum, the Imperial War Museum, the Victoria Museum and the Indian War Memorial, and any other exhibition sponsored by the Government of India wholly or in part and declared by Parliament by law to be an exhibition of national importance

The exhibition known as the commencement of the Constitution was the Bombay Presidency Association, the Imperial Madras University and the Delhi University, and any exhibition declared by Parliament by law to be an exhibition of national importance

Exhibition for exemption of educational institutions promoted by the Government of India wholly or in part and declared by Parliament by law to be exhibitions of national importance

Persons appointed and exhibitioners for

(a) professional, vocational or technical training or to study the history of India; or

(b) the promotion of special studies or research; or

(c) scientific or technical research in the investigation or exhibition of persons

Educational and educational institutions or exhibitions for higher education or research and scientific and technical institutions

Research and technical research and research and technological aids and resources declared by Parliament by law to be of national importance

The Corporation of India, the Zoological, Botanical, Geological and Archaeological Surveys of India, Meteorological organisations

Persons

Persons holding members of India services, Union Public Service Commission

Persons however, that is to say persons brought by the Government of India or of the Constitution Court of India

Salaries of Parliament of the Legislature of India and the Speaker of Parliament and the President of the Indian Parliament

Salaries and allowances of members of Parliament, the Chairman and Deputy Chairman of the Council of State and the Speaker and Deputy Speaker of the House of the People

Pensions, gratuities and annuities of each House of Parliament and of the persons who are members of such House, and payments of allowances of persons by paying service, appointing chairmen of the committees of Parliament or commissions appointed by Parliament

Fundamental clauses, privileges, and rights in respect of Union of classes of the Standard and Territory, salaries and allowances of the Members for the Union, the salaries clauses and rights in respect of Union of classes and other conditions of service of the Establishments and Standard Control

Audit of the accounts of the Union and of the Club

Conditions, regulations, provisions and powers of the Executive Council including control of such Council, and the Executive Officers, Executive Committee of Executive Officers, Executive Council

Constitution and organization of the High Council and Executive Council of Union and removal of High Council powers conferred & transfer before the High Council

Existence of the powers vested in a High Council having all exceptional and in any Club for and existence of the provisions of any such High Council Union, any were vested that Club

Existence of the power and provisions of members of a Union Union belonging to any Club & any were vested that Club, but not so as to make the Union of any Club & agreements and provisions in any were vested that Club without the consent of the Government of the Club in which such were a valuable existence of the terms and provisions of members of Union Union belonging to any Club & making were vested that Club

Club Club regulations under Club provisions

Union in accordance with these agricultural terms

Clubs of members including vested clubs

Clubs of meals or tobacco and other goods manufactured or produced in Club control

or alcoholic liquors for human consumption

Union Union Union hotels and other riverside shops and members, but including mechanical and vehicle Union Union including alcohol or any substance included in all beverages for of the valley

Particulars Union

Union in the capital value of the stock, machinery of agricultural kind of Union land and implements, Union in the capital of employees

Union duty on value of property other than agricultural land

Clubs in respect of succession duty & duty other than agricultural land

Personal Union or goods or passengers, vessels by railway, sea or air, Union on railway, Union and Postal

[illegible] to [illegible] the [illegible] [illegible] [illegible] in [illegible] [illegible] [illegible]

[illegible] and sale of [illegible] liquors

- Relief of the destitute and unemployable
- Prisons and houses of correction, remanding and committing prisoners
- Weights, weighing instruments, inspectors of the possession of which is not to exceed £[illegible] and salary not to exceed £[illegible]
- Licenses, consents and other matters and things authorized or prescribed by this Act, amended and declared not to exceed what they have been declared by Parliament by the A.S. of subsequent legislature

- Commissioners shall not be any work, budget, license, and other matters of business not specified in Sec. municipal bankruptcy, drainage, school, orphanage and traffic shall not subject to the provisions of Sec. 1 and Sec. 2 with regard to such matters, which shall have been previously established which

- Agriculture, including agricultural education and research, protection against pest and prevention of plant disease

- Preservation, protection and improvement of land, prevention of unsound practices, afforestation, planting and protection

- Water and the prevention of traffic disputes

- Water shall not be any such supplies, irrigation and water drainage and sanitation work, such things and such power subject to the possession of salary to of Sec.

- Land shall not be any rights in or over land, land tenure including the valuation of landlord and tenant, and the valuation of rent, transfer and alienation of agricultural land, land improvement and agricultural loans, subsidies

- Forest
- Valuation of land, minerals and land
- Tobacco
- Land of work, subject to the provisions of salary to of Sec. amendment and declaration shall

- Regulation of trade and commercial establishments subject to the provisions of Sec. 1 shall subject to regulation and establishment under the control of the Union
- Industries subject to the provisions of salary to of Sec.
- Tax and gas work
- Trade and commerce within the Unit subject to the provisions of salary to of Sec.
- Production, supply and distribution of goods subject to the provisions of salary to of Sec.

Act. Recital and Date.

Rights and common use of Inhabitants of Scotland.

Money Lending and saving Banks, relief of agricultural Inhabitants.

Fees and Law Charges.

Commissioners, regulations and remedy of Defendants, who have been employed Act, and remedies, when proceeded against, during Attempts, Rebellion and other Disorders and Insurrections, to obstruct Execution.

Treasons and Criminal Indictments, Persons subject to the Provisions of subject of Act, and Indictments and Prosecutions.

Privy and Quarantine.

Public Roads and Buildings, vested in or at the Disposal of the Board.

Expenditure or Superintendency of Buildings, except for the purposes of the Board, subject to the Provisions of Act 39.

Members of the Legislature of the Board subject to the Provisions of Laws and Ordinances.

Salaries and Allowances of Members of the Legislature of the Act of the Treasurer and Deputy Treasurer of the Legislature Annuity and of them to a Legislative Council of the Provisions and Deputy Treasurer thereof.

Powers, Privileges and Immunities of the Legislature, Annuity and of the members of the Immunities thereof, and of them to a Legislative Council of the Council and of the members and the Immunities thereof, and Council of Admission of Persons, by young members to Privileges thereof, Expenses of the Legislature of the Act.

Salaries and Allowances of Members of the Act.

Act public accounts, Act. Public Treasurer Treasurers.

Act Treasurer, that is to say, Persons Appointed by the Act, or of the Council, and Board of the Act.

Public debt of the Act.

Treasury Notes.

Land revenue, including the assessment and collection of revenue, the maintenance of Land vested, among the revenue payment and transfer of rights, and alienation of revenue.

Taxes on agricultural revenue.

Duties on exports of revenue of agricultural land.

Duties only on exports of agricultural land.

Taxes on Land and Buildings.

[illegible] of the Peace as well of the said Justices

[illegible] Persons to be duly sworn as Constables in the Court of General Quarter Sessions of the Peace for the County of Middlesex

[illegible] Constables to be appointed by the Justices of the Peace at the General Quarter Sessions of the Peace for the County of Middlesex

[illegible] Constables for the several Districts within the said County

10. Rules of labour including condition of work, standard hours, employment of children, overtime, weekly rest day, holidays and conditions of employment

11. Technical and industrial training of labour

12. Social security and other protection

13. Relief and rehabilitation of persons displaced from their original place of residence by reason of the working of the Constitution of India and Pakistan

14. Provident and charitable institutions, charitable and religious endowments and religious institutions

15. Boundaries of the territories given in Part I of the First Schedule to the Indian Union or any part thereof, including any area specified or proposed to be specified in any order which has been made or may be made under any proviso to article 2 or article 3 of the Constitution

16. Public debt of the Indian Union

17. Offices, other than those declared by or under this Act to be offices of the Indian Union, including the method of recruitment to such offices and the conditions of service of persons appointed to such offices

18. Property and assets, wherever situate, which accrue to the Indian Union or any State or which may be acquired for the purposes of the Indian Union or of any State, and the management, administration, disposal and use of such property and assets

19. Suits and other legal proceedings, including matters relating to the jurisdiction or powers of any court or authority in relation to any of the matters aforesaid

20. Any other matter which is not enumerated in the Concurrent List or the State List and which is necessary to be provided by law for the purpose of giving effect to the provisions of this Act

21. Any matter which by this Act is directed or authorised to be provided by law made by the Legislature of the Indian Union

22. Any matter which by this Act is required or authorised to be prescribed

23. Any other matter which is necessary for the purpose of bringing into force or giving effect to any of the provisions of this Act

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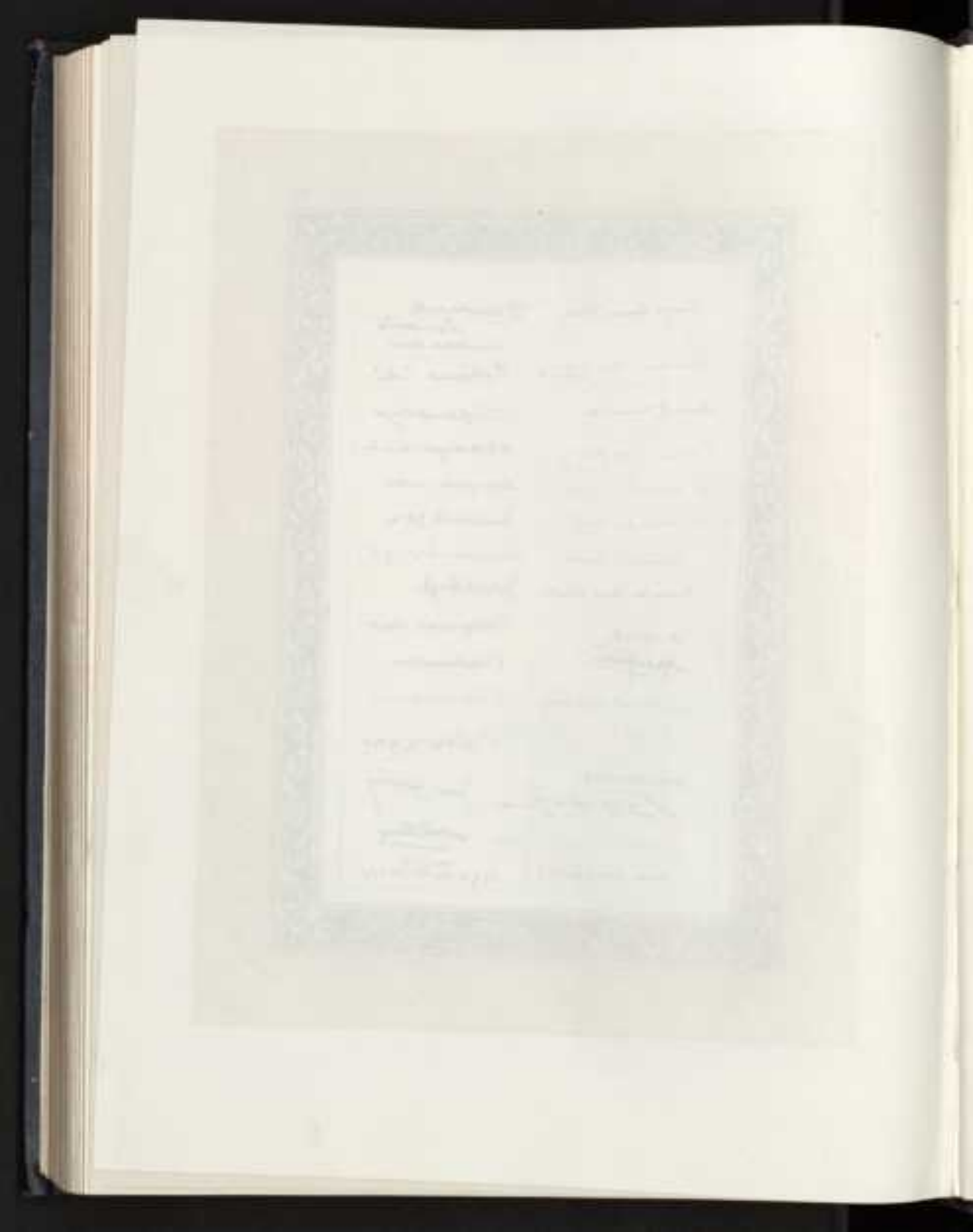

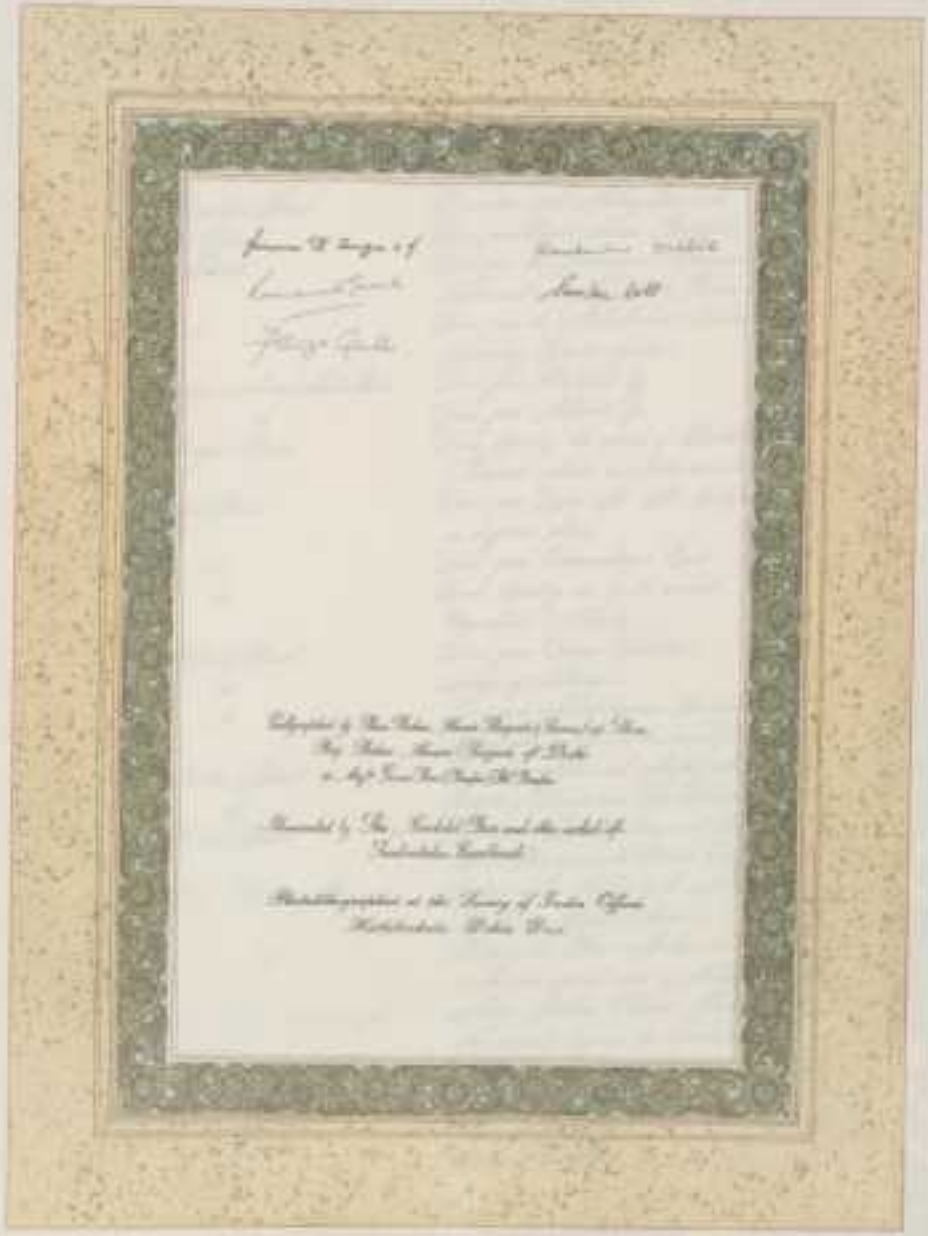

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